12/3/2025 - Consol. Edison - 25-E-0072, 25-G-0073

STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

CASE 25-E-0072 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules, and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service.

CASE 25-G-0073 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules, and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service.

EVIDENTIARY HEARING

DATE: DECEMBER 3, 2025 at 10 a.m.

LOCATION: 90 Church Street
4th Floor Boardroom
New York, New York 10007

BEFORE: ALJ JAMES COSTELLO
ALJ TARA KERSEY
ALJ NICHOLAS PLANTY

Reported by Ildiko Nyari

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CON EDISON WITNESSES:

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YAN FLISHENBAUM, Sworn; 141

SHAKIRA WILSON, Sworn; 141

JAMES BRENNAN, Sworn; 141

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DPS STAFF WITNESSES:

JERRY SHANG; Sworn 142

DAVID WARNOCK; Sworn 142

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STEPHAN SMITH; Sworn 142

PHILIPOSE PHILIP; Sworn 142

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MOHAMMED HASAN; Sworn 142

CHRISTOPHER MOQUETE; Sworn 142

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(The hearing commenced at 10:00 a.m.)

A.L.J. KERSEY: Good morning. I call case numbers 25-E-0072 and 25-G-0073, Proceedings on the Motion of the Commission as to the Rates, Charges, Rules, and Regulations of Consolidated Edison Company of New York, Inc. for gas and electric service.

My name is Tara Kersey. I am an administrative law judge with the Department of Public Service. With me today are Administrative Law Judges James Costello and Nicholas Planty. Together, we are presiding over these proceedings. We are here this morning for an evidentiary hearing that was noticed by the Secretary on November 10th, 2025. At today's hearing, we will receive into evidence the Joint Proposal that was filed in these proceedings on November 5th, 2025, as well as other exhibits and to admit certain testimony and allow cross-examination of certain witnesses.

We will start by taking appearances. And to streamline the process, we will call the parties and ask that the party representative identify themselves for the record.

Ildiko, our court reporter, to the

extent you require the spelling of any names, please feel free to interrupt so that we can ensure an accurate record. We have provided some of those spellings for you.

Okay. And as I said, if any of the attorneys would like to use this podium who may not be seated at a table with a microphone, please feel free. So we will start with the Company, Consolidated Edison Company of New York, Inc.

MR. KONECNI: Good morning, Your Honor. Joshua Konecni. And with me today are, Grace Su, Enver Acevedo, Edward Sherwin, and Walter Hedeman.

A.L.J. KERSEY: Okay. Thank you. New York State Department of Public Service.

MR. KRAMER: Thank you, Your Honor. For Department of Public Service staff, Steven Kramer, as well as Charles Coryer and Michelle Zaludek. Thank you.

A.L.J. KERSEY: Thank you. City of New York.

MR. LANG: Good morning, Your Honors. For the City of New York, Kevin Lang from the law firm Couch White, along with my colleague Amanda

Trinsey.

A.L.J. KERSEY: Thank you. Alliance for a Green Economy. Okay.

Consumer Power Advocates.

MS. LOFFREDO: Madalyn Loffredo.

UNIDENTIFIED SPEAKER: Speak up.

A.L.J. KERSEY: Can you speak up, Ms. Loffredo?

MS. LOFFREDO: Yes. Madalyn Loffredo.

A.L.J. KERSEY: Okay. Electrify America, LLC. Okay.

Environmental Defense Fund.

MS. MURPHY: Good morning. Erin Murphy on behalf of Environmental Defense Fund.

A.L.J. KERSEY: Good morning. National Railroad Passenger Corporation or Amtrak. Okay.

New York Energy Consumers Council, Inc.

MR. DIAMANTOPOULOS: George -- George Diamantopoulos from the law firm of Seham, Seham, Meltz & Petersen for the New York Energy Consumers Council.

A.L.J. KERSEY: Okay. I just want to

ask that everybody just speak up and speak clearly. We have certain mics with respect to the audio with respect to our court reporting. So please just speak loud.

Thank you, Mr. Diamantopoulos.

The New York Geothermal Energy Organization. Okay.

The New York Power Authority.

MR. LEVENSON: Your Honor, Gary Levenson for the New York Power Authority. I'm also entering an appearance for colleague, Matthew Barnett.

A.L.J. KERSEY: Okay. Thank you. Thank you, Mr. Levenson.

Retail Energy Supply Association. Okay.

Metropolitan Transportation Authority.

Public Utility Law Project of New York, Inc.

MS. NOVAK: Good morning, Your Honor. Kelly Novak for Public Utility Law Project and with me is Patrick O'Brien and Sonja Rezepski.

A.L.J. KERSEY: Thank you, Ms. Novak.

Utility Intervention Unit, Division of

Consumer Protection, Department of State.

MR. MUSICH: Good morning, Your Honor. Thomas Musich on behalf of the Department of State Utility Intervention Unit.

A.L.J. KERSEY: Thank you, Mr. Musich.

Westchester Municipal Consortium.

MR. DICHTER: Good morning, Your Honor. Joel Dichter of Dichter Law, LLC on behalf of the Westchester Municipal Consortium. Thank you.

A.L.J. KERSEY: Good morning, Mr. Dichter.

Digital Energy Corporation. Okay.

NineDot Energy.

The Office of State Senator Robert Jackson, representing the 31st Senate District.

MR. QUINSAC: Good morning, Your Honor. Dario Quinsac on behalf of the State senator.

A.L.J. KERSEY: Can I -- can I actually have you come up and speak into the mic? Thank you so much. You're just so far away.

MR. QUINSAC: Dario Quinsac on behalf of State Senator Robert Jackson. Thank you.

A.L.J. KERSEY: Thank you. Thank you, Mr. Quinsac.

Brooklyn Navy Yard Cogeneration Partners, LP. Okay.

Natural Resources Defense Council. New York Battery and Energy Storage Technology Consortium.

AARP New York.

New Yorkers for Clean Power. Sane Energy Project.

County of Westchester. UtiliSave, LLC.

MR. STEIFMAN: Thank you, Your Honor. Michael Steifman from UtiliSave. And with me is James Knowlton from Steifman, LLP.

MR. KNOWLTON: Stephen.

MR. STEIFMAN: What did I say?

MR. KNOWLTON: James.

MR. STEIFMAN: I said James?

MR. KNOWLTON: Yes.

A.L.J. KERSEY: Can you repeat his name again?

MR. STEIFMAN: Stephen Knowlton. My apologies.

A.L.J. KERSEY: Thank you so much.

MR. STEIFMAN: I've only know him for

many years.

A.L.J. KERSEY: The Office of Assembly Member Chris Burdick.

The Office of Assembly Member Dana Levenberg.

The Office of Assembly Member MaryJane Shimsky.

Utility Workers Union of America, AFL-CIO, Local 1-2.

Roger Caiazza?

MR. MENTON: Your Honor, I'm Francis Menton, Independent Intervenor. And Mr. Ellenbogen and I are taking care of Mr. Caiazza's interest today. He couldn't make it from Syracuse.

A.L.J. KERSEY: Thank you so much. All right. Richard Ellenbogen.

MR. ELLENBOGEN: Good morning, Your Honor.

A.L.J. KERSEY: Good morning. Mr. Menton who just appeared.

And Passive House Center, Inc.

MR. KEVERLING BUISMAN: Floris Keverling Buisman for Passive House Center, Inc.

A.L.J. KERSEY: Good morning. I'm

going to just ask you to -- can you stand up and just say that one more time for the record?

MR. KEVERLING BUISMAN: Floris Keverling Buisman, Passive House Center, Inc.

A.L.J. KERSEY: Thank you, Mr. Buisman.

MR. KEVERLING BUISMAN: Keverling Buisman.

A.L.J. KERSEY: Thank you. Thank you. And Fred Farella.

All right. Is there anyone else who is making an appearance today who I have not called? Okay. Seeing none.

We will now go through the exhibit list. We previously requested the parties to identify any corrections to the exhibit list. At this point, does anyone have any further corrections?

MR. MENTON: Your Honor, I -- I don't have that list in front of me. I -- the -- the question I have is, does -- does it include the thirty-three exhibits that have been listed by the Independent Intervenors?

A.L.J. KERSEY: It does not currently, Mr. Menton, and we will -- we will address those a

bit later --

MR. MENTON: When --

A.L.J. KERSEY: -- in the proceeding.

MR. MENTON: -- when you're ready, we are ready, too.

A.L.J. KERSEY: Certainly. Thank you. And I will just ask everybody when they speak, just for the record, please identify yourself.

A.L.J. COSTELLO: I just -- I just want to clarify. You were going to -- you cannot get them admitted unless you lay a foundation for them, which you'll have to do on cross-examination of the witness panels. So they're not automatically admitted, which is what we had indicated earlier.

MR. MENTON: I -- I know you've admitted -- you've said that, Your Honor. By a foundation, I understand -- my understanding would be you're talking about authenticity, so we have an -- we have to start with an affirmation --

A.L.J. COSTELLO: You have to --

MR. MENTON: -- from Mr. Ellenbogen.

A.L.J. COSTELLO: If you're going to cross-examine witnesses -- there's two things, all right?

MR. MENTON: Right.

A.L.J. COSTELLO: If you're going to -- if you're going to try to get it in on cross-examination, you can do that. If you want to get it in independently, we'll deal with that after -- after the cross-examination. We'll see what you can get in that way, okay?

MR. MENTON: Actually, not okay. I would like to admit the exhibits --

A.L.J. COSTELLO: Okay.

MR. MENTON: -- before the cross-examination if we can.

A.L.J. COSTELLO: We'll -- we'll address it then before cross-examination.

MR. MENTON: Great. Thank you, Your Honor.

A.L.J. KERSEY: I did notice some entries to the room. Before we get started, is there anyone else who is making an appearance today who I have not called?

MS. OSTROVSKAYA: Nora Ostrovskaya, Metropolitan Transportation Authority.

A.L.J. KERSEY: Can you -- can you just say that one more time very loudly and clearly

for the court reporter?

MS. OSTROVSKAYA: With pleasure. Nora Ostrovskaya, O-S-T-R-O-V-S-K-A-Y-A, Metropolitan Transportation Authority. Thank you.

MS. MURPHY: And this is --

A.L.J. KERSEY: That was --

MS. MURPHY: -- Erin Murphy for EDF. We had another clarification on the exhibit list.

A.L.J. KERSEY: Let me just -- just one second on that. I just want to confirm that's with Metropolitan Transportation Authority, correct?

MS. OSTROVSKAYA: Yes, ma'am.

A.L.J. KERSEY: For the record. Thank you so much, Ms. Ostrovskaya.

The exhibit list. I'm sorry, Ms. Murphy.

MS. MURPHY: Thanks. Erin Murphy for Environmental Defense Fund.

A.L.J. KERSEY: Thank you.

MS. MURPHY: I -- I believe there's -- I don't think there's any, like, dispute on this topic but we did just want to make sure there was clarity. The affidavit that was filed by the Company along with a number of other files on November 24th,

which is the greenhouse gas emissions accounting that was submitted by the Company, consistent with the JP. I don't believe those files have been assigned exhibit numbers in the exhibit list. I'm happy to defer to the Company on the approach there. But we just did want to make sure that those are for the record. Thanks.

A.L.J. KERSEY: Yes, I don't believe that is on the list, Ms. Murphy. So again, can you go through what -- what you're looking to have admitted to the exhibit list?

MS. MURPHY: So Erin Murphy for EDF. It was our understanding that those -- that affidavit and the attachments would be part of the record of decision before the Commission, and I believe that means that they should be assigned exhibit numbers as well to ensure they're all admitted to the record.

A.L.J. KERSEY: Correct. But what are they exactly? Can go through them again? And --

A.L.J. COSTELLO: When were they submitted?

MS. MURPHY: On November 24th. I might defer to the -- I'm happy to go through them or if -- if the Company would like to since it's the one

that filed them.

UNIDENTIFIED SPEAKER: You're --

A.L.J. COSTELLO: Well, if it's the Company, we'll get to the Company's -- we'll get to the Company's -- with the affidavit and the exhibits, we'll get to the Company's. That's not EDF's submission. That's the Company's submission. Is that correct?

MS. MURPHY: That's correct. We just want to makes sure that they --

A.L.J. COSTELLO: Okay. Yes. We haven't -- we -- we'll deal with that later on once we go through what's already on the list.

MS. MURPHY: Okay. Thank you.

A.L.J. KERSEY: Give us another ten minutes and let us know if that's still an issue for you.

MS. MURPHY: Okay.

A.L.J. KERSEY: Okay. Thank you.

Okay. We have the exhibit list with exhibits that are identified from Number 1 to 1216. The first 1212 exhibits consist of the pre-filed testimony and pre-filed exhibits that would have underlined the litigated hearing had it not gone the

proposed settlement route. We are marking the Joint Proposal and appendices filed on November 5th, 2025 as Exhibit 1213.

The summary of the Joint Proposal filed November 6th, 2025, as Exhibit 1214. Corrected appendix 18, gas safety measures -- I'm sorry, gas safety performance measures, filed on November 21st, 2025, as Exhibit 1215. And the revised Joint Proposal with appendices, including revised appendix 18, as Exhibit 1216.

A.L.J. COSTELLO: And just for clarity -- just for clarity, I submitted yesterday, or I provided everybody yesterday, with an updated exhibit list that includes those documents.

A.L.J. KERSEY: The revised Joint Proposal with the corrected version of Appendix 18 has been uploaded to DMM, as Judge Costello just mentioned, on December -- I'm sorry. It's been uploaded to DMM on December 2nd, 2025. It replaces the original version, has been marked as Exhibit 1216, as I just mentioned, and is the version that will be attached to the Commission's order in this case.

We note DPS Staff submission of

certain corrected materials as follows. I'm going to go through each one. Staff's accounting panel corrected direct testimony filed on December 2nd, 2025, on DMM, which I am marking as Exhibit 1217.

Staff's accounting panel corrected exhibits, part 1 of 4, filed on December 2nd, 2025, which I am marking as Exhibit 1218.

Staff's corrected sales forecasting panel direct testimony filed on December 2nd, 2025, which I am marking as Exhibit 1219. All these for identification. Staff corrected sales forecasting panel, redacted exhibits, filed on December 2nd, 2025, which I am marking as Exhibit 1220 for identification.

And Staff-corrected sales forecasting panel exhibits confidential, which I believe, Mr. Kramer, has been provided to all parties.

MR. KRAMER: Yes, Your Honor.

A.L.J. KERSEY: And it's been provided to the Secretary, just not yet uploaded to DMM, which I am marking as exhibit 1221 for identification.

We also note the Company's submission of the following. There is a one-page affidavit from Greg Slintak sworn to on November 21st, 2025 and

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filed on November 26, 2025, which I am marking as Exhibit 1222 for identification.

2025 rate case, N gas projects GHG impact final updated.xlsx, which contains a number of Excel spreadsheets and which I am marking as Exhibit 1223 for identification.

2025 rate case shared services building exhibit.xlsx, which also contains a number of Excel spreadsheets and which I am marking as Exhibit 1224.

Appendix 23.xlsx. Hold for just one moment. Let me just repeat that. Appendix 23.xlsx. I want to -- yes. I want to clarify that with the Company. So is the projected steam electric CO2 emissions -- they're -- they're two separate, I believe. I believe Appendix 23 is with respect to an update to the JP. Is that correct?

MR. ACEVEDO: That is correct, Your Honor.

A.L.J. KERSEY: Okay. So Appendix 23 updated, which I'm going to mark as Exhibit 1225, and then projected steam electric CO2 emissions.xlsx, which I'm marking as Exhibit 1226.

Subpart DD reporting form for RY 2019

through RY 2024, which I am marking for identification as Exhibit 1227. And Subpart W reporting form RY2024_04202025.xlsx, which I am marking as Exhibit 1228 for identification.

I just want to note, please correct me if I'm wrong, that exhibits -- the exhibits that have been marked for identification, 1223 through 1228, they're all Excel files which contain Excel -- a number of Excel spreadsheets in each. Is that correct?

MR. ACEVEDO: That's correct, Your Honor.

A.L.J. KERSEY: Thank you so very much. Okay.

We are -- Ms. Murphy, does that cover -- was that the issue that you were looking at covered?

MS. MURPHY: Yes, it did.

A.L.J. KERSEY: Thank you very much. Okay. We are going to --

MR. LANG: Your Honor, this is Kevin Lang from the City. Just a clarification question.

A.L.J. KERSEY: Yes, sir.

MR. LANG: When you look -- when you

mentioned corrected Exhibit 18, you said -- which I think is 126 -- 1215 -- you mentioned that when this goes to the Commission, it's going to include that corrected exhibit. So I think Appendix 23 should be treated the same way. I'm just asking, is it your plan to treat it the same way as you're doing with 18? Is that --

A.L.J. KERSEY: We can do that, Mr. Lang.

MR. LANG: Okay. Thank you.

A.L.J. KERSEY: Thank you. All right. So -- so we will -- to correct what I had said before then we will update Appendix 23.

A.L.J. COSTELLO: So what we'll end up doing is, we'll add it to the JP, and then we'll reupload the JP. We'll add another document, another JP document, to the exhibit list, which we'll circulate. We're going to strike 1226, because -- I'm sorry -- 1225. So that number will not be used, 1225, because it will become part of the exhibit that will be updated Joint Proposal with the Appendix 23 update.

(Judges confer)

A.L.J. KERSEY: Okay. Any questions

on any of that so far? We have a little bit more to do. We are going to require that the testimony of the Department of Public Service Staff Management and Operations Audit Panel and the portion of Con Edison's accounting panel testimony regarding management audits be entered into the record in these proceedings. We have received three affidavits.

Con Edison, we have a one-page affidavit sworn to by Kelly McLaughlin on November 12th, 2025, which I am marking as Exhibit 1229.

For DPS staff, we have a two-page affidavit sworn to by Angela Morina on November 12th, 2025, which I am marking as Exhibit 1220 -- no, 1230.

And a two-page affidavit of Jeremy Routhier sworn to on November 12th, 2025, which I am marking as Exhibit 1231.

We also require DPS staff to provide sufficient witnesses to adopt all the factual statements in its statement of support of the Joint Proposal or affidavits of those witnesses if there is no cross-examination plan for that witness.

Counsel for DPS?

MR. KRAMER: Yes, Your Honor.

A.L.J. KERSEY: With respect to those

affidavits?

MR. KRAMER: So we apologize. Those affidavits are still in process. Some of them will take a little bit longer than next couple of days. We have some folks out who will be back next week, but we are working towards getting the affidavits. I can give you list of the affidavits, the names of the individuals, who will be providing affidavits if that's helpful?

A.L.J. KERSEY: Sure, that would be great.

MR. KRAMER: Okay.

A.L.J. KERSEY: Thank you.

MR. KRAMER: So the first, individual is Andrew Carpenter. And the next is Daniel Gadomski.

A.L.J. KERSEY: Can you spell that please?

MR. KRAMER: G-A-D-O-M-S-K-I.

A.L.J. KERSEY: Thank you so much.

MR. KRAMER: The next individual is Robert Jucha, J-U-C-H-A.

A.L.J. KERSEY: Okay.

MR. KRAMER: Then we have, Jeremy

Routhier, R-O-U-T-H-I-E-R.

A.L.J. KERSEY: Thank you.

MR. KRAMER: And Angela Morina.

A.L.J. KERSEY: Okay.

MR. KRAMER: The next -- next individual is Richard Schuler, S-C-H-U-L-E-R.

A.L.J. KERSEY: Okay.

MR. KRAMER: Then we have Brian Fisher.

A.L.J. KERSEY: Okay.

MR. KRAMER: We -- we have -- the next affidavit will be provided by Jeremy Flaum, F-L-A-U-M.

A.L.J. KERSEY: Thank you.

MR. KRAMER: And that -- that is it, Your Honor. Thank you.

(Judges confer)

A.L.J. KERSEY: Okay. So we are -- when we receive those, when they've been filed, then we will admit those by a ruling, a separate ruling, that will come in the future. Also, the testimony that is procured today will be reliant on those witnesses.

A.L.J. COSTELLO: Yes, it's subject --

the admission of the statement, the factual portions of the statement, it's just -- we'll admit it, but subject to the -- the submission of those documents.

MR. KRAMER: Understood, Your Honors. Thank -- thank you. That's very helpful. Just one -- one point of clarification. I believe my recollection is that you indicated previously that these affidavits should not be filed with the Secretary. Is that still the case?

A.L.J. COSTELLO: That's -- yes. That's correct. What we'll do is, when we issue a ruling admitting those documents, we'll -- we'll assign exhibit numbers to them. We'll update the exhibit list, and we'll -- we'll have the exhibit uploaded.

MR. KRAMER: Very good. Thank you, Your Honor.

A.L.J. KERSEY: Thank you. It is our understanding that Independent Intervenors are not going to be seeking direct testimony, but Mr. Menton, Mr. Ellenbogen, I believe that you had an -- is that -- I'd like to confirm that, I guess, first of all.

MR. MENTON: Yes. Let me explain.

A.L.J. KERSEY: Sure.

MR. MENTON: So in -- in the pre-trial conference, the question of whether Mr. Ellenbogen would testify directly came up. The issue is we have a number of exhibits. It's actually thirty-three of them. And the question is whether there will be objections on ground of authenticity to those exhibits. That is the only subject on which Mr. Ellenbogen would -- would testify directly if -- if that comes up. If there's an objection to authenticity, which is a bona fide objection, which I don't think there will be, but if there is, then Mr. Ellenbogen could testify as to authenticity of the document, and -- and -- and that would be it.

To -- to obviate this, we have prepared, and we have here signed -- we could submit right now, and we have many copies to pass out -- an affirmation of Mr. Ellenbogen authenticating each of the documents. It also affirms the fact statement in our -- in our statement in opposition. So if Your Honors would like, we can, provide that affidavit -- or that affirmation -- I'm sorry -- to you now and pass out copies to the parties who are here. And hopefully, that will take care of the authentication

issue, and we won't have to put Mr. Ellenbogen on the stand.

A.L.J. KERSEY: I don't -- I don't know that it will take care of the authentication issue, but I would ask that you hand out your affidavits now to counsel and to the judges. We can take a look at them. Thank you.

MR. MENTON: We have twenty copies. I hope that's enough.

MR. ELLENBOGEN: It's a moving target on Monday at the meeting, so.

MR. MENTON: I -- I believe we asked for twenty -- more than twenty on -- on Monday when you made we go through the count.

MR. ELLENBOGEN: Actually, you got up to eighteen.

MR. MENTON: However --

MR. ELLENBOGEN: You got up to eighteen in the count, so.

MR. MENTON: Okay. 18?

A.L.J. KERSEY: Yes. Yes.

MR. MENTON: Okay. twenty should be fine.

A.L.J. KERSEY: Yes, we're good.

MR. ELLENBOGEN: All right.

A.L.J. KERSEY: Thank you.

A.L.J. COSTELLO: At this -- at this point we'll give time for counsel to look at this, and then we'd like to hear from Con Edison and DPS staff. Anything else? Are there parties that wants to comment on this?

So just let us know, Mr. Konecni, when you're -- when you're ready.

MR. LANG: Your Honor, this is Kevin Lang. Could I ask a procedural question about the exhibits? I don't know if it's for you or -- or for the Independent Intervenors. But it appears there's more exhibits on this list than what they circulated.

MR. ELLENBOGEN: Yes, I have more copies.

MR. LANG: So --

A.L.J. KERSEY: No, it appears that -- I'm sorry -- it appears that there's more exhibits here than what you had originally submitted. I think we had nineteen originally --

MR. LANG: Yes.

A.L.J. KERSEY: -- submitted.

UNIDENTIFIED SPEAKER: Yes.

A.L.J. KERSEY: Correct, Mr. Lang?

MR. LANG: Yes. That's what I'm trying to figure out. There's a lot --

A.L.J. COSTELLO: Right. And people haven't had the opportunity to -- to look at that, so we're not going to be able to address those --

MR. ELLENBOGEN: Okay. Can -- I can I have copies of them?

A.L.J. COSTELLO: If -- if -- not if -- it's not --

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: -- not the way we're going to do it.

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: So what we'll do, I think, is go through exhibit by exhibit and hear what counsel has to say.

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: We'll, at this point, just mark the exhibits for identification purposes only, which doesn't -- so they're not going in at this time. But just for purposes of clarity of the record, we're going to mark the exhibits for identification as we go through exhibit by exhibit.

(Counsel confer)

A.L.J. COSTELLO: Just so you know what we're doing. What we plan on doing is just determining at this juncture whether the affidavit is going to come in and we'll allow the exhibits. So if -- if it does, it does. If it doesn't, we'll allow the exhibits to come in. Then you'll have the opportunity to put Mr. Ellenbogen on the stand, or you have the opportunity on cross-examination to try to get the documents in. Whatever you don't get in through cross-examination, you might -- again, I'm saying -- I'm just saying if this happens.

I'm not saying what we're doing yet. We haven't heard from counsel. But I just wanted you to understand. We're only deciding right now whether it's going to be done through affidavits or affirmation.

MR. MENTON: Your Honor, Francis Menton, Independent Intervenor. May I -- may I make one other suggestion? The question of foundation or authenticity --

A.L.J. COSTELLO: It's not just a question of foundation or authenticity. So let's hear from counsel and see what they have to say.

MR. KONECNI: Your Honor, Joshua Konecni for Con Edison. We do have concerns on some of these exhibits, and I don't know how you'd like us to proceed if you'd like us to go --

A.L.J. COSTELLO: Well, let's -- let's do it exhibit by exhibit. You just mark them for identification. So Exhibit 1 --

MS. SU: Yes, sure.

A.L.J. KERSEY: Start with what we think we have then. Because we only have nineteen of them at the moment. Are there any other -- yes. Understood. So Exhibits 1 and 2 are questions posed by the Independent Intervenors in discovery. I'm going to be very specific here. Number 1 is Response to Independent Intervenors' Interrogatories, set 2-2.

Number 2 is Response To Independent Intervenors' Interrogatories, sets 2-1. And we're going to mark those for identification as Exhibits 1232. Number 1 is marked as -- for identification as Exhibit 1232. And Individual Intervenor's Exhibit 2 is marked as Exhibit 1233 for identification.

Okay. Are there any objections?

A.L.J. COSTELLO: Mr. Konecni?

A.L.J. KERSEY: Yes.

MR. KONECNI: We do not -- no objections to Exhibits 1 and 2.

A.L.J. COSTELLO: Okay. And just -- Mr. Kramer?

MR. KRAMER: Yes.

A.L.J. COSTELLO: Go ahead.

MR. KRAMER: So my recollection, and that's really what I'm going on right now, but my recollection is that many of the questions posed by Independent Intervenors were objected to. And those objections are not facts. They're -- they're a legal argument. So we would -- we would oppose that -- that -- the -- the responses that our objections being part of the record here today, Your Honor.

A.L.J. COSTELLO: Mr. Lang, do you have any anything you'd like to add?

MR. LANG: Yes. I mean, the -- the City -- this is Kevin Lang for the City. I mean, we -- we generally object to all of these because they weren't included with any statements submitted by the Independent Intervenors. If they can establish that there's a need, if they're cross-examining a party, that's one thing. But the fact that Mr. Ellenbogen is going to take the stand and

say, I -- I verify these, that's irrelevant, because he's not being crossed on these issues. And -- and he had the opportunity to submit them with his statement, and he didn't do it. So to do them here en masse is completely inappropriate.

A.L.J. COSTELLO: All right. I'm just going -- we can hear from you, too.

MR. MENTON: Yes. Francis Menton, Independent Intervenor. These exhibits absolutely were submitted with the statement on the same day as the statement. So that -- so that was incorrect.

A.L.J. COSTELLO: The exhibits that -- that we have already --

MR. MENTON: The first nineteen. And these are -- these are Number 1 and 2. They were submitted on November 26th with our statement. The second thing -- the second objection, I guess, as -- from Mr. Kramer, it sounds like it goes to relevance. It -- it -- it --

A.L.J. COSTELLO: It doesn't go to relevance. It goes to -- these are -- these are not -- these interrogatories are not factual information that was provided by witnesses. They are legal objections that were provided by counsel. That

is not relevant information, and it's -- it's legal information that's not appropriate to put in the record.

MR. MENTON: Okay.

A.L.J. COSTELLO: Had you -- had a problem with the objections, your appropriate recourse was a motion to compel at which it could have been decided at the time that these were -- responses were submitted. You can't point to any witness panel that is identified on those two documents as providing responses. The responses, it says NA, I believe, on both of those documents. So we are not going to do by affidavit. And quite frankly, I don't see any basis to get these in because -- based on the fact that they're legal objections.

MR. MENTON: Okay. Let -- let me address that, Your Honor. If -- if I assume many or most of the parties and yourselves either have or will read our statement in opposition, and a major, maybe the most important, or one of the most important, reason for our opposition is that the Company and the DPS staff have refused to identify which of the projects that are being funded by the

Joint Proposal are for safety and reliability and which are for climate act purposes, which are impossible.

A.L.J. COSTELLO: Right.

MR. MENTON: This --

A.L.J. COSTELLO: They refused to identify on legal grounds. They didn't respond on legal grounds. So no, these are not coming into evidence --

MR. MENTON: The -- these documents --

A.L.J. COSTELLO: -- based on -- I'm -- that's the ruling.

MR. MENTON: -- are written proof of their refusal.

A.L.J. COSTELLO: We're -- you can state that they refused. That's an argument, right? The legal -- the legal objections are not something that's a factual basis where you can rely on. So you can -- and if you want to cross-examine the Company --

MR. MENTON: We will.

A.L.J. COSTELLO: -- and ask them these questions, you can do that. They can make whatever objections they want to those questions, and

we'll rule it on them at that time. But these documents are not going to come into evidence.

MR. MENTON: Okay. I -- I respectfully submit that this document is proof of the refusal, and I ask for it to be admitted.

A.L.J. COSTELLO: Okay.

MR. MENTON: I understand --

A.L.J. COSTELLO: And I -- we said we're not going to admit it.

MR. MENTON: Okay.

A.L.J. COSTELLO: So that's -- if -- if you -- you can take whatever process you want to take with respect to that ruling, but those two documents are not going to be admitted.

MR. MENTON: We note an exception for appeal.

A.L.J. COSTELLO: Yes. You can -- you can try -- you can try again with the witnesses, but the fact is legal objections are not something that are admitted as -- into the record as factual information. Okay. So we're going to move on now.

A.L.J. KERSEY: Exhibit 3 is government data taken from the website of the Federal EPA. We will note it as summary data E grid with

2023 data, and we are marking that as Exhibit 1234 for identification.

Do any parties want to -- Mr. Konecni?

MR. KONECNI: Yes, Your Honor. We do object to the -- this exhibit. From our understanding of the exhibit, it's a comprehensive inventory of environmental attributes of electric power systems, and we don't understand how that's relevant. It is not something that we would have relied upon in conducting the JP.

A.L.J. KERSEY: Counsel for DPS?

MR. CORYER: This is Charles Coryer with DPS, and we share that concern with the Company.

A.L.J. KERSEY: Mr. Lang, or any other parties?

MR. LANG: Your Honor, Kevin Lang, for the City. To the extent that this exhibit is offered as support for their statement, it is what it is, and we don't object on that basis. If they try to cross-examine someone on it that is familiar with it, we'll deal with it at that point.

A.L.J. KERSEY: Thank you. Mr. Menton, do you want to speak to that?

MR. MENTON: Yes. Francis Menton,

Independent Intervenor. As I understand it, Mr. Konecni does not challenge authenticity, so I understand that is conceded. And so I'm addressing relevance. The data in this document with simple arithmetic calculations that anybody can understand with high school arithmetic, established that adding electric heat on the downstate system will increase rather than decrease emissions of -- of greenhouse gases over having people combust natural gas at their own home. That is extremely, extremely relevant to this. It -- it -- it -- that is what proves that -- that the Joint Proposal is counterproductive to the purposes of the Climate Act.

A.L.J. KERSEY: Any response? Mr. Konecni, Mr. Kramer, Mr. Lang, any other attorneys?

MR. KONECNI: So Your Honor, Mr. Menton talked about simple mathematics and simple proposals. So I -- I don't know what he means by that and -- and the kind of calculations he's talking about, but I can tell you that we did not look at -- or did not do the mathematics that he's referring to, so I -- I don't think that this exhibit is pertinent to the Joint Proposal.

A.L.J. COSTELLO: And let me just ask.

Is this something -- so this was something that was included as part of -- I think it's a footnote in the statement in opposition. All of the -- whatever exhibits are referenced are in there. Is that something that can be considered regardless of whether it's admitted into evidence? So -- and -- and perhaps as -- on judicial notices there or administrative notice?

MR. KONECNI: If -- if Your Honors believe so, yes. We have no objection to you taking notice of it.

A.L.J. COSTELLO: Okay. Any -- anyone else want to respond to that?

MS. MURPHY: Your Honors?

A.L.J. COSTELLO: Yes.

MS. MURPHY: This is Erin Murphy with Environmental Defense Fund. I think we would also be opposed to the admission of this exhibit in terms of relevance concerns. Generation makeup decisions for not -- are not part of the Joint Proposal or this rate case, and so the generation mix is not directly relevant to the outcome of the JP.

A.L.J. COSTELLO: Okay. With it -- that's their -- I mean, that's their argument. They

have an argument. I'm not saying whether the argument has merit or not, or it doesn't have merit. They have an argument as to why they believe that the Joint Proposal doesn't actually advance CLCPA goals in part. Again, I'm not saying that there's merit to it or not. I'm just saying since that's their argument, doesn't that give it some -- some force to again, perhaps we could take judicial notice of it, which means it doesn't have to be admitted into the record. It's something that -- that administrative notice could be taken of.

MS. MURPHY: Yes. I think I would agree with the point Mr. Lang made earlier that we don't -- certainly don't dispute the EPA data, but don't see it as relevant, and so that's why we were -- were opposed to it.

A.L.J. COSTELLO: Okay. And isn't that something -- again, I understand we're talking about admission into the record, but if -- if we took -- if we say we're going to take administrative notice of this document, that's an argument that can be made on your post-hearing brief explaining why that's -- you do not agree that this is something that should be considered.

MS. MURPHY: Yes, I think we would agree with that.

MR. MENTON: Excuse me, Your Honor?

A.L.J. COSTELLO: Yes.

MR. MENTON: Each of these documents, in and of themselves, does not paint the picture. When you look at the group of them together, that's where the picture forms. It's like you're looking at a tree or you're looking at a forest.

A.L.J. COSTELLO: Yes, but we can't --

MR. MENTON: Okay.

A.L.J. COSTELLO: -- we can't just do wholesale --

MR. MENTON: Okay.

A.L.J. COSTELLO: -- adopting the documents.

MR. MENTON: But -- okay.

A.L.J. COSTELLO: So this -- I -- I believe this type of document is something that we could take administrative notice of. It doesn't have to be admitted into the record, which means you can make arguments on it. Your arguments based on it, we -- we could consider this document, and the parties that are -- want to respond to this in post-

hearing briefs --

MR. MENTON: And -- and incidentally, the -- the arithmetic was provided in some -- in some of the documents that he said he did not get. That is in the documents. The arithmetic was included.

A.L.J. COSTELLO: Okay. We'll -- we'll -- okay.

A.L.J. KERSEY: Okay.

MR. CORYER: This is Charles Coryer on behalf of DPS.

A.L.J. COSTELLO: Yes.

MR. CORYER: We agree with Mr. Lang's, contention that this should be taken in administrative notice. And just to the extent that if this is only supportive arguments made in the Statement of Opposition, then we understand. But caution against side arguments or implications of this data that aren't contained within the text of their Statement of Opposition.

A.L.J. COSTELLO: It would be -- yes, it would be -- it would be based on the Statement of Opposition and then you'd have the opportunity to reply to that in post-hearing briefs.

MR. CORYER: Thank you.

A.L.J. COSTELLO: So -- so what we're doing is we're not admitting that document into evidence, but we're saying that it's subject to administrative notice. So it's something that you can rely upon.

MR. MENTON: Thank you, Your Honor.

A.L.J. KERSEY: Exhibit 4 is the complete draft comprehensive energy -- I should say, it's the comprehensive reliability plan -- the New York State Independent System Operator Comprehensive Reliability Plan 2025 to 2034, which I am marking for purposes of identification as Exhibit Number 1235.

Counsel for Con Ed?

MR. KONECNI: So we have the same objection. Well, we have an objection regarding relevance, that this is setting rates for -- well, the -- the first objection here is that this is a draft, and I'm not aware of what the current status of this NYISO document is, and how it may relate to the NYISO document. But we -- we also have questions about the relevance of this plan. And if Your Honors want to take notice of it and follow the same procedure, that would be fine with us.

MR. LANG: Your Honor, this is Kevin

Lang. If I may?

A.L.J. COSTELLO: Yes.

A.L.J. KERSEY: Yes.

MR. LANG: The document has been finalized. There is a final version available on the New York Independent System Operator's website. As with the last one, this is an official document from NYISO, and it's something that you could take notice of. So if we were to just substitute the final version for the draft, I think we could treat it the same way we did for the last one.

A.L.J. KERSEY: Ms. -- I'm going to hear from DPS counsel first and then Mr. Menton, I'd like to hear what your thoughts are on that.

MR. KRAMER: Yes, Your Honor. Staff would be fine with Your Honors taking administrative notice of this --

A.L.J. KERSEY: Of the final?

MR. KRAMER: Of the final document. We do want to point out, however, that calling out portions as exhibits, copies of illustrations found within the exhibit, is objectionable. We should just have the single document.

A.L.J. KERSEY: Okay. And we'll --

yes, we'll -- we'll get to that in just a second.

MR. KRAMER: Thank you, Your Honor.

A.L.J. KERSEY: Thank you. No, thank you so much.

MR. KRAMER: Yes.

A.L.J. KERSEY: Mr. Menton, thoughts on -- particularly on the thoughts of Mr. Lang and the -- that we take administrative notice of the final document versus the draft?

MR. MENTON: Yes. We recognize that problem. The final only came out a few days ago, and we hadn't actually found it when we submitted the exhibit, although it was immediately prior. We have found it since. We've made copies of the final, and we are happy to substitute that and have it used. All of the charts we want to use are the same between the draft and the final. So --

MR. ELLENBOGEN: The only thing that happened is they changed the page numbers. We've -- we've noticed the page changes. I've made them on my copy. I can attest to the page number change. So all the -- all the images are -- are in there.

A.L.J. KERSEY: And no -- no concerns about that, Mr. Ellenbogen. We would -- we're going

to take -- does any other counsel have anything to say about this?

All right. So we are going to do the same thing as we did -- we are going to take administrative notice of the final NYISO 2025 to 2034 Comprehensive Reliability Plan. And actually, at this point, Mr. Ellenbogen, would you pass out that document? You said you have copies. Do you have --

MR. ELLENBOGEN: We have -- we have one copy.

A.L.J. KERSEY: You have one copy.

MR. MUSICH: It's eighty -- it's eighty pages.

A.L.J. KERSEY: Okay. Don't worry about it.

MR. ELLENBOGEN: I can -- I can provide it to you if you would like?

A.L.J. KERSEY: No. That's all right.

MR. ELLENBOGEN: Okay.

A.L.J. KERSEY: We will take administrative notice of the --

MR. ELLENBOGEN: All right. The --

A.L.J. KERSEY: -- of the finalized 2025 to 2034 New York Independent System Operator

Comprehensive Reliability Plan. And that will be -- well, we're not going to mark it. Okay. Thank you. So exhibit -- right. Exhibits -- exactly. So just to make note of that, Exhibits 5 to 7 -- Mr. Menton, if you'll just confirm for us, they are included -- these items are included. They were graphs in the NYISO report. And as we are taking administrative notice of the finalized NYISO report, we are not going to be addressing those as individual exhibits. Is that satisfactory to you?

MR. MENTON: Yes, that's satisfactory. We just thought it would be easier for cross-examining a witness to have a one-page document instead of eighty. That's all.

A.L.J. KERSEY: Okay. All right. Thank you. Okay. Exhibit 8 is a -- is a article entitled "Study Shows Heat-Related Deaths Rose in Florida Nursing Homes after Hurricane Irma". And it was published December 15th, 2021.

Mr. Konecni, go ahead.

MR. KONECNI: Yes, Your Honor. Thank you. We don't understand why that would be relevant to this case.

A.L.J. KERSEY: Okay. Counsel DPS?

MR. KRAMER: Yes, thank you, Your Honor. A number of objections here. The first one is it apparently is referring to a report, this article. I would think that the report itself would be the better evidence. However, having said that, we do agree with Mr. Konecni, the Company, that this is irrelevant to these proceedings.

A.L.J. KERSEY: Mr. Lang, any other counsel would like to speak to the issue?

MR. LANG: Kevin Lang for the City.

A.L.J. KERSEY: Thank you.

MR. LANG: We agree as to relevance to the end if it's a document that they're citing to in their statement, and it's offered simply as support for their statement for whatever that's worth, we didn't have -- we wouldn't object on that basis.

A.L.J. KERSEY: Any other counsel? Mr. Menton, would you like to be heard on this issue? No?

MR. MENTON: Well, I -- I -- I guess so. I'm -- I'm trying to -- trying to digest Mr. Lang's objection because he's saying that he doesn't object to having this document support our statement, but he does object to have it in the proceeding. But

our -- our -- our statement is -- our objection that's in this proceeding, we want the panel to understand why we've made it.

I mean, the issue here is if you electrify heat or if you electrify air conditioning and the electricity goes out, people are going to die. I just want everybody to understand because that's the plan of the Joint Proposal. That's what the Joint Proposal is charging the ratepayers to electrify the heat so that people will die when the electricity goes out. Thank you.

MR. KRAMER: Your Honor, we're going to object to that. Can that be stricken from this record? That was testifying. That was testimony. He's unsworn.

A.L.J. COSTELLO: We're -- we're not treating any of this as testimony.

MR. KRAMER: Okay. Thank you, Your Honor.

A.L.J. COSTELLO: We're treating this as argument.

MR. KRAMER: All right. Fair enough. Thank you.

MR. LANG: Your Honor, this is Mr.

Lang. Just to clarify, we're objecting that the document is not relevant to the issues in this case. However, it's a document that they referenced in their report, so it's solely on that basis that it's something they referenced that they're providing in the source material. That's a different issue as to whether it's relevant to this proceeding.

A.L.J. COSTELLO: Mr. Lang, let me just ask you a follow-up question. So -- so to the extent that they relied on it in their statement and opposition, does that mean that the document automatically comes in as -- into the evidentiary record, or is it something that would just be -- something they can refer to in argument and something that could be responded to in argument, but not necessarily something that would come in as evidence, like an evidentiary exhibit?

MR. LANG: So based on my experience in PSC proceedings, I would say it would come into the record because things like this have definitely come into the record in prior proceedings. As to what weight, first you and then the Commission gives, that's -- that's up to them. But it -- it's been my experience over many years that if it's a document

that a party relies upon that that is appropriately included in the administrative record.

A.L.J. COSTELLO: And Mr. Lang, I'm sorry. Can we go back to you? But I just want to ask. So -- I mean, with respect to documents that they rely upon, to the -- so anything that -- anything that's in their statement in opposition that's been listed as one an -- one of the exhibits, you would say that comes in, whatever weight as the Court is doing, and it's subject to argument by parties, and -- and post-hearing briefs.

MR. LANG: I -- I wouldn't say any because they also include what they call exhibits as a law. The law is not an --

A.L.J. COSTELLO: Right.

MR. LANG: -- exhibit, so to answer, in my view, the law is the law is the law. It's not -- it shouldn't be marked as an exhibit. As to the other documents, I mean, yes, we all have objections on relevance grounds, and -- and it's one thing for these documents to come in because they referenced them if they did in their statements, but if their intent is to cross-examine other parties on them, that's a different story, and -- and we would

have different objections.

A.L.J. COSTELLO: Right.

A.L.J. KERSEY: That's understood.

A.L.J. COSTELLO: They -- they still have to lay the foundation --

MR. LANG: Correct.

A.L.J. COSTELLO: -- to be able to cross-examine.

MR. HEDEMAN: Your Honor, Walter Hedeman. I'd also like to point out that this document and, in fact, all documents but Exhibit 1 and 3, are not called out in their Statement of Opposition.

A.L.J. COSTELLO: And can you point out any in the Statement of Opposition?

MR. MENTON: Well, I'll have to go through it. I think -- I don't know that all of them are, but I think most of them are. But I'd -- I'd have to take time to go through the footnotes of it to --

(ALJs confer)

A.L.J. KERSEY: We're going to take a ten-minute break, Mr. Menton, and let you do that.

MR. MENTON: Okay.

A.L.J. KERSEY: And let people use the restroom. We will come back on the record at 11:15.

(Off the record)

(On the record)

A.L.J. KERSEY: We're back on the record. We were discussing Individual Intervenors Exhibit 8.

Mr. Menton, can you identify which of, between 8 and 19, of your exhibits that you have provided, which ones are reflected in your statements in opposition?

MR. MENTON: I haven't been able to come up with a checklist. And relatively few of them are specifically referenced in the Statement of Opposition. I can give you some examples, but I'll tell you what has occurred in our preparing for cross-examination.

A.L.J. COSTELLO: No, let me just say this. So right now what we're trying to do is see if you have them referenced in your statement in opposition, because we were going to see from counsel what their position was, if those documents, as Mr. Lang has suggested were to come in for whatever the weight -- they'll come into the record for whatever

weight they could be accorded, and be subject to post-hearing briefing. So we did want to know what documents. If you want -- can you tell us which documents are not included, because we're not prepared to do this without knowing specific information. We can't just say, okay, we need to have it on the record specifically what we're dealing with.

MR. MENTON: Well, let me just -- let me just give Your Honor an example.

A.L.J. COSTELLO: I'm not looking for an example. Do you have your statement in opposition?

MR. MENTON: Yes, I have.

A.L.J. COSTELLO: Okay. Do you have -- what documents are listed in the footnotes that are also exhibits that you are purported to want to get into the evidence?

MR. MENTON: 1, 2, and 3, as far as I've found so far.

A.L.J. COSTELLO: 1, 2, and 3?

MR. MENTON: Yes.

A.L.J. COSTELLO: When you say as far as you found so far, are there further documents

that -- further footnotes that you haven't?

MR. MENTON: It's more complicated than I could do in ten minutes. I'm sorry. I don't know of others right now.

A.L.J. COSTELLO: Okay.

MR. MENTON: So many of the documents that are exhibits that we selected for purposes of cross-examination. We selected them because they have a nice one-page chart for cross --

A.L.J. COSTELLO: All right. Do you understand --

MR. MENTON: -- that establishes the same information from another document that's cited in the statement.

A.L.J. COSTELLO: All right. Do you understand, though, that you can ask your questions, but the documents, you may not be able to cross-examine -- even though the documents are in evidence, it may not be appropriate to cross-examine these witnesses based on those documents. Because they have to be familiar with the information, and they have to be -- have relied on that information.

Just because it's in evidence doesn't mean it's appropriate for cross-examination.

MR. MENTON: I'll leave that to Your Honor's ruling. We did submit and circulate exhibits 1 to 19 at the same time as our statement.

A.L.J. COSTELLO: That's not what -- the deciding factor. In any event, if you cannot point out, other than Exhibits 1, 2, and 3, we'll go through and just hear what people have to say about the documents.

And again, Mr. Lang, because we do not know what documents are in the statements in opposition, we're not prepared to go on that basis. So we'll hear from counsel with respect to each document.

A.L.J. KERSEY: So again, I believe we're on item -- the article study showing heat-related deaths rose in Florida nursing homes after Hurricane Irma. I believe that Con Ed had said that they objected on relevance ground. Is that correct, Mr. Konecni?

MR. KONECNI: It is, yeah.

A.L.J. KERSEY: Okay. And I believe that DPS staff said that as well.

MR. KRAMER: Correct, Your Honor.

A.L.J. KERSEY: Correct?

MR. KRAMER: Yes.

A.L.J. KERSEY: Okay.

MR. LANG: And Your Honor, the City also objected on relevance grounds, and we did not see this in the statement. So to my earlier point, if it's in the statement, it's one thing, but if it's not in the statement it shouldn't come in.

A.L.J. KERSEY: Okay. We're going to sustain on Con Edison and DPS, and Mr. Lang, the City of New York's objections as to relevance on this item.

Next item is, number 9, that they've identified as number 9. Heat pump costs in the Con Ed billing area.

Counsel for Con Ed, please.

MR. SHERWIN: This is Edward Sherwin for the Company. The Company objects on three principal grounds, the first being lack of relevance to the Court's proposal, and the questions whether it's fair and reasonable in the public interest.

Secondly, this document, or this court exhibit is not relied on by the Independent Intervenors in their statements in opposition.

And third, the first two pages of this

exhibit are basically testimonial. This looks like an attempt to bring in testimony or argument through the form of an exhibit. The third page is an excerpt of a larger document and so we don't have -- so we don't even know if these are from the same documents, so this lacks reliability. We just don't have a complete exhibit of that underlying document for the third page.

Finally, we do have issues with the substance of the calculations done by the Independent Intervenors. Those we would -- if this is admitted in any part, we would address those on the paper rather than in this hearing.

A.L.J. KERSEY: Thank you.

Counsel for Staff?

MR. CORYER: Department Staff also mirrors these concerns with the Company, but also objects, potentially, unless there is further characterization of the first two pages of data as to its source as it is not provided anywhere that we are aware of, other than these.

A.L.J. COSTELLO: Just as a reference, do you have a copy of the affidavit that was provided by the Independent Intervenors?

MR. CORYER: Not in front of me.

A.L.J. COSTELLO: Did you provide the affidavit to Counsel?

MR. MENTON: Yes, I did. Yes, I dropped everybody --

A.L.J. COSTELLO: Hard copy here today. Okay.

MR. MENTON: Yeah. And there's a bunch up there and --

A.L.J. COSTELLO: And I would look at Exhibit 9 referenced on the second page. It just says a calculation I prepared, which is by Mr. Ellenbogen?

MR. CORYER: Yes, perhaps I'm not being -- yes, sorry, I've been looking at it this whole time. Sorry for that. Maybe I could state this better. I am not sure. It looks like this is a screenshot of a whole. Like, I am not sure on the source of the numbers in the first two pages itself.

A.L.J. COSTELLO: Okay.

MR. ELLENBOGEN: Richard Ellenbogen. The page --

A.L.J. COSTELLO: Yeah. But the document has to, I mean, stand by itself. You can't

explain. I mean, go ahead. This is an argument.

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: So we'll hear what you're saying, but.

MR. ELLENBOGEN: Page 2 is spreadsheet that I created to do the calculations. Page 3 is my Con Ed bill from last February. Con Ed has access to that. And page 1 is when I went out and did research on what the -- how the heat pumps performed in cold climates. We can provide sources for it. I'm sure that there's nothing in there that runs afoul of standard knowledge.

MS. MURPHY: Your honors, EDF would also like to register an objection to this exhibit whenever appropriate.

A.L.J. KERSEY: Go ahead, Ms. Murphy.

MS. MURPHY: Thank you. I think we agree with the concerns expressed by Company and Staff and want to just further note on the reliability point that in addition to the lack of source information or explanation for where the information comes from. Just visually, it does look very similar to AI-generated outputs, and I don't know if there's a policy on that, but that feels

important to acknowledge and discuss whether AI outputs are admissible and reliable.

MR. LANG: And Your Honor, this is Kevin Lang from the City. We join in all the cases of objections (indiscernible) by Counsel.

A.L.J. COSTELLO: Okay. What we're going to do is not -- we're not going to admit it based on the affidavit. To the extent you'll -- you have additional exhibits as well, which we're going to -- we'll give you an opportunity to get on the stand for the limited purpose of testifying to try to get those documents in, as well as this document.

And again, subject to cross-examination by other parties if they want, or if they don't, subject to objections by the parties at that time. Okay. So we're going to put that Exhibit 9 off, and we'll address that later on.

A.L.J. KERSEY: Okay. Exhibit 10 is New York City Local Law 97. That is, we don't need to hear any argument on that. It's a local law, so there's administrative notice of that.

MR. MENTON: Right. Francis Menton, Independent Intervenor. We're not seeking to have that introduced in evidence. We thought it might be

useful to have it marked for identification if we were to cross a witness.

A.L.J. KERSEY: Okay. Thank you. Exhibit 11 is a report from Inside Climate News, dated November 19th, 2025.

Counsel for Con Ed?

MR. KONECNI: Yes, Your Honor. So I'm looking at the article here, and I think we have two objections to this. First, again, the relevance. This article appears to be about a coop building converting to a heat pump, and not clear how that's relevant to the just and reasonableness of the rates in the Joint Proposal.

Also, to the extent not stated in the affidavit, the purpose for which this is being asserted, in the statements and the article are being asserted as factual, we would have concerns about that as well.

A.L.J. KERSEY: Okay. Counsel for DPS Staff.

MR. KRAMER: Thank you, Your Honor. Frankly, similar objections. You know, the one thing I would point out though, in addition is that this isn't some sort of study, it's just some examples.

So it's relevance or probity here is very questionable.

A.L.J. KERSEY: Okay. Any other entities?

Mr. Lang?

MR. LANG: Thank you, Your Honor. Kevin Lang for the City. We join in the same basis of objection. And also based on our review, it doesn't appear to be mentioned at all in their statements. So it's not something we can comment on that basis.

A.L.J. KERSEY: Mr. Menton?

MR. MENTON: Yeah. I don't think this one is specifically measured -- mentioned in the statement.

A.L.J. KERSEY: Okay.

MR. MENTON: As to the issue of relevance, the question that's relevant in the proceeding is why Con Edison, the Company is putting -- getting revenue to support various things. One of those is a specific thing that's called out in the summary of the Joint Proposal, is to encourage and support heat pump adoption, and this goes to the question of whether that is a waste, and therefore

the ratepayers should not be charged for it. That is the fundamental issue in this proceeding.

MR. ELLENBOGEN: The other issue in there is if you read the article, one of the big things about this it's called nonpipe -- in the rate case it's called "nonpipe alternatives". And if you read that article, the owner of the building says that they could not remove their gas service because they have to run it on cold days. So that's why that was included specifically.

And I'm not testifying, I'm just making an observation as to why we included it, because it shows that what -- the policy they're taking does not support their nonpipe alternative projects.

A.L.J. COSTELLO: Okay. Can I just ask you? According to your affirmation, it says, "This discusses the cost for buildings within New York City to convert to electric heat in order to comply with Local Law 97".

MR. ELLENBOGEN: Um-hum.

A.L.J. COSTELLO: Local Law 97 is what it is.

MR. ELLENBOGEN: Um-hum.

MR. MENTON: And whether the cost. or whatever costs are included in the -- if it's required by Local Law 97 for them to do these things. I don't see the relevance of this exhibit, and I don't see any way the relevance of simply the costs for buildings to convert to electric heat to comply with the law. So that document --

MR. ELLENBOGEN: Your Honor?

A.L.J. COSTELLO: Yeah. Go ahead.

MR. ELLENBOGEN: If Local Law 97 states that they have to comply with certain metrics and get below certain metrics by 2025 and 2030 --

A.L.J. COSTELLO: You can you can ask questions on cross-examination about this.

MR. ELLENBOGEN: Okay. But one of our arguments is that the metrics in Local Law 97 are not based upon physical reality, which was the purpose of the --

A.L.J. COSTELLO: That is irrelevant. The local law is the local law. So you can ask questions on cross-examination to the extent you want to. You can try to ask these questions. Again, all questions are subject to objection, but this document is not going to be admitted into evidence.

MR. ELLENBOGEN: All right.

MR. MENTON: Okay. Your Honor, Francis Menton, the relevance to this proceeding is there's revenue in this Joint Proposal for Con Ed to support the electrification.

A.L.J. COSTELLO: Again, you can raise this on cross-examination. The document itself is not coming into evidence.

MR. ELLENBOGEN: Okay.

MR. MENTON: Okay.

A.L.J. KERSEY: Exhibit Number 12 consists of some printout information from DPS draft biannual report, July 2024.

MR. MENTON: I believe this one is mentioned and cited in the Statement of Opposition.

A.L.J. KERSEY: Counsel for Con Ed?

MR. KONECNI: Your honors, we are unaware whether the draft has been superseded by a final report and would ask the Department to weigh in on that.

MR. KRAMER: Yeah. Thank you, Your Honor, and Mr. Konecni.

A.L.J. KERSEY: Counsel for Staff.

MR. KRAMER: So upon information and

belief, I do believe that there is a final version of this document. So we would object to the use of this document in these proceedings. The other issue is, it's an excerpt which we, of course, have problems with. And finally, this is something that Your Honors can take administrative notice of.

A.L.J. KERSEY: Mr. Lang, or any other counsel?

MR. LANG: This is Kevin Lang. We agree with Staff.

A.L.J. KERSEY: Mr. Menton, can you give us your thoughts on us taking administrative notice of the final report? I can't say that we know whether or not this this information is in the final report. I believe that the objections would be sustained with respect to this item as it is a draft to the extent a final -- we would take administrative notice of the final report, but I don't know if what is -- what you're looking for here is in it?

MR. MENTON: Okay. Your Honor, I think we have no problem with substituting the final for this. I am sorry, compared to the other one, we didn't track down the final in time for this proceeding. Would we have leave to go out and get it

tonight?

A.L.J. COSTELLO: We'll have to see where we are at the end of the --

MR. MENTON: Okay.

A.L.J. COSTELLO: -- at the end of the day. Okay?

MR. MENTON: Okay.

A.L.J. KERSEY: Okay. So this item though is not coming in as -- being marked as evidence or coming in as evidence.

Item 13 is a Con Ed document. It's delineated as a Con Edison document, Con Ed's total electric system line loss with respect to 2007. It's two pages and -- but again, it's sort of identified as Con Ed's total electricity system line loss for 2007. It provides certain mathematical figures. And then in the back it says, "From a Con Ed presentation to PSC, July 17, 2008", and it looks like a PowerPoint slide.

Mr. Menton, are -- Mr. Menton, what --

MR. ELLENBOGEN: There was a conference --

A.L.J. KERSEY: -- Mr. Ellenbogen, what are we looking at?

MR. ELLENBOGEN: There was a conference on line loss, a DPS conference on line loss that I attended. It was actually initiated based upon a paper that I wrote for the State. And the presentation from one of the VPs of Con Ed included that slide that documented line loss. When I looked online to find a later version, the last line loss calculations Con Ed did and publicly released was in 2007.

A.L.J. KERSEY: So is this -- is the first page of this item --

MR. ELLENBOGEN: Which exhibit is that?

A.L.J. KERSEY: -- are those your --

MR. ELLENBOGEN: Which exhibit is that?

A.L.J. KERSEY: -- is this your compilation of the data?

MR. ELLENBOGEN: Hang on. 13? Let me --

A.L.J. KERSEY: Sure. Take a second.

MR. MENTON: This is Francis Menton. To make it clear, the line loss data is part of the calculation of why substituting electric heat pump --

heat for combustion of natural gas on site increases rather than decreases emissions and is contrary to the climate goal --

A.L.J. KERSEY: So it appears as -- it sounds as though -- I apologize -- it sounds as though what you're saying is this is part of Mr. Ellenbogen, and Mr. Menton, your argument, in favor of what you're arguing. But I think something you put together to back up your argument. What I'm trying to understand, is this Con Ed material? Did this come -- where did this come from?

MR. ELLENBOGEN: Okay. The images for Con Ed, I put the text in to explain -- some of the text is theirs. I put some of the text in to explain to people what they were looking at, because a lot of people don't understand what they're looking at.

A.L.J. KERSEY: Okay.

MR. ELLENBOGEN: And then the part on the first page, I did, as an analysis of it.

A.L.J. KERSEY: Okay. Got it.

MR. ELLENBOGEN: And to explain how it works.

A.L.J. KERSEY: Okay. Understood.

MR. KONECNI: So several objections,

Your Honor. First, with respect to the first page, it's essentially, it purports to be Con Ed's information, but it's essentially testimonial information. Second, with report -- with respect to the slide, it is an excerpt not the full presentation, so we object on those grounds. Also, slide is noted as having notations added, I guess September 2009, not clear of the authorship of those notations. So we have concerns in that respect.

And then finally, this is 2007 data, well I suppose it's purported in the affidavit as being 2007, but this slide says 2008 with notations added, 2009. But either way, almost twenty years ago, we don't think that that's reliable material to the Joint Proposal before Your Honors today.

A.L.J. KERSEY: Thank you, Mr. Konecni.

DPS Staff Counsel?

MR. KRAMER: Nothing to add here to the Company's objections. Thank you, Your Honor.

A.L.J. KERSEY: Okay. Mr. Lang?

MR. LANG: Nothing to add, Your Honor.

A.L.J. KERSEY: Okay. Anyone else?

MS. MURPHY: Erin Murphy for EDF. We

do support the objection raised by the Company.

A.L.J. KERSEY: Okay. Mr. Ellenbogen, and Mr. Menton?

MR. ELLENBOGEN: I will take ownership of what is on the first page. Those were my calculations based upon information provided on the graph.

A.L.J. KERSEY: Okay. So we going to sustain the objections of the various parties.

MR. MENTON: Your Honor, excuse me.

A.L.J. COSTELLO: Just let us finish the ruling. Okay?

MR. MENTON: Yes. You finish. I'm sorry to interrupt.

A.L.J. COSTELLO: And we're not going to revisit the ruling. The rulings aren't subject to just -- so you had your opportunity to speak. Let us finish the ruling.

A.L.J. KERSEY: All right. So we're going to -- we are going to sustain the objections on the grounds of relevance and reliability. Relevance as this is, information that is, going back a number of years and not, on point with respect to -- we don't consider it relevant with respect to the rate

case. Also, its reliability is document -- it's not evident that the document stands on its own. And also as it appears to be testimonial info and an analysis.

Next document is item 14, Exhibit 14, this was the draft -- so item number 14 it appears to be the -- there was a draft clean energy standard biennial review in case 15-E-0302, proceeding on motion of the Commission to implement a large-scale renewable program and a clean energy standard.

Again, I will let the parties speak to this, but I believe we'll take -- we would take administrative notice if there's a final version. I cannot speak to whether there is a final version, however, but we would not allow the draft to be included as evidence.

Staff Counsel, do we have any idea if there is a final?

MR. KRAMER: We're going to have to double-check that. I'll say that I recall reviewing one in the last six-or-so months, but I could be wrong about that.

A.L.J. KERSEY: So we would accept the final for administrative notice, but perhaps we can

circle back on that.

MR. KRAMER: Okay.

A.L.J. KERSEY: That would be great. Yeah. Okay. Item 15. Item 15 is entitled, "What surcharges in addition to rates are included in the attached document?" And it says, "Perplexity AI search". I'm going to go to Counsel or the party first, the Company.

MR. LANG: Excuse me, Your Honor. I'd like to just add to the record.

A.L.J. KERSEY: Certainly.

MR. LANG: On the last document, the PSC issued an order on May 15th, 2025, in case 15-002 as adopted, the Biennial Review is final. Just so you know what it is.

UNIDENTIFIED SPEAKER: Thank you.

A.L.J. KERSEY: Perfect. Then we will -- thank you, and then we will take administrative notice of that final report, so that rule --

Item number 15, as I just mentioned, the Perplexity AI Search. I'd like to hear from Company counsel, please?

MR. KONECNI: Thank you, Your Honor.

We object on the grounds of reliability. We have no confidence that this AI document is correct and no way to verify that it is.

A.L.J. KERSEY: Okay. Staff counsel?

MR. KRAMER: Thank you, Your Honor. Similar objection. Yeah. That's it. Thank you.

A.L.J. KERSEY: Thank you. Mr. Lang?

MR. LANG: Yes. The same objection. And we'd also add, we didn't see a reference in the statement.

A.L.J. KERSEY: Okay. Any other counsel?

MS. MURPHY: The EDF has the same objection.

A.L.J. KERSEY: Okay. Mr. Menton, Mr. Ellenbogen?

MR. ELLENBOGEN: Yeah. Your Honor, not being an attorney, I was not aware of these things. However, the way the AI searches work, is you can actually feed the document into it. So it's not like it's doing a broad search over the whole internet, and it will isolate anything you want to find. And then I went and I personally looked for those occurrences based upon what it found. Had I

known the terminology was not correct, I would not have used it. But I'm an engineer, and not a lawyer.

A.L.J. KERSEY: No, it's as --

MR. KONECNI: Your Honors, we would also raise a best evidence objection to this exhibit.

A.L.J. COSTELLO: Yeah, you would be able to reference -- I mean those types -- the information, evidently, is in the record elsewhere, right? Is that correct, the underlying information?

MR. ELLENBOGEN: It's actually in the JP.

A.L.J. COSTELLO: All right, so you have the JP --

MR. ELLENBOGEN: Because what I did is I just fed the JP --

A.L.J. COSTELLO: -- to reference.

MR. ELLENBOGEN: -- right into the --

MR. MENTON: You have the JP to reference.

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: We're not going to accept AI document.

MR. ELLENBOGEN: Okay. That just isolates the locations of everything so you can find

it easily.

A.L.J. COSTELLO: That's fine, but we won't add it in --

MR. ELLENBOGEN: Okay. That's fine. That's fine.

A.L.J. COSTELLO: -- as an evidentiary exhibit.

A.L.J. KERSEY: Okay. So we're going to sustain all three of the Company's objections on that item as to reliability as to -- actually as to -- I'm sorry -- as to reliability and on the grounds for the best evidence objection.

And also, I'm sorry, I believe Mr. Lang's, that we didn't see it referenced in the materials, but as was noted by Judge Costello, we simply note that the joint -- it appears the Joint Proposal contains much of that information.

Item 16 is the summary of the Joint Proposal. I'm just going to speak to that one. We are not going to let that in because that is already admitted as an exhibit, or will be admitted once we get there.

Item number 17 is a letter dated August 11, 2025, submitted by the New York State

Attorney General on behalf of DEC, in a court proceeding matter, of Citizen Action of New York, v. DEC.

Company Counsel?

MR. KONECNI: We think it's appropriate for you to take notice of this, Your Honors.

A.L.J. KERSEY: DPS Staff?

MR. KRAMER: Thank you, Your Honor, Staff agrees with that position. Thank you.

A.L.J. KERSEY: Mr. Lang?

MR. LANG: We do agree with that.

A.L.J. KERSEY: Any other thoughts?

Mr. Menton? Mr. Ellenbogen?

A.L.J. KERSEY: No objection to taking in --

MR. MENTON: Your Honor, I don't know why putting it in evidence is a problem, but if notice is what it is, we'll take it.

A.L.J. KERSEY: Okay. So we will take a judicial -- I'm sorry, administrative notice of this letter. Okay.

Item 18 is a document of graphs and mathematical information. It is in another language.

While it is identified -- while it is identified in the affirmation provided by Mr. Ellenbogen and Mr. Menton with more specifics, that information is not readily ascertainable from the exhibit itself.

Thoughts from Con Edison Counsel?

MR. KONECNI: We object on the grounds of relevance, first. Second, that it's not in the Statement of Opposition. And then third, as Your Honors mentioned, it's in Spanish. We have no way right now to understand what this information is.

A.L.J. KERSEY: Okay. Counsel for DPS?

MR. KRAMER: Your Honor, the same objections. Thank you.

A.L.J. KERSEY: Okay. Mr. Lang?

MR. LANG: Yeah. We would note, Your Honor, this one is referenced in their statement, it's at page 33. But we agree that it's not relevant.

A.L.J. KERSEY: Any other?

MR. DIAMANTOPOULOS: Your Honors, George Diamantopoulos from NYECC. To the extent that a foreign language exhibit has been submitted in (indiscernible) file, or the party submitting it

could have provided a translation, and which has not been provided, and I also subscribe to the additional objection that the other parties' gave.

A.L.J. KERSEY: Okay.

MR. DIAMANTOPOULOS: Thank you.

A.L.J. KERSEY: Mr. Menton, Mr. Ellenbogen, any response?

MR. MENTON: Yes. Francis Menton. Let me address, relevance.

A.L.J. KERSEY: Well, I want to actually -- let me just back you up for a second. I think that the -- the translation issue is possibly the number 1 issue. It is not something that I think is -- the information is not readily understood by those here. And so I think as mentioned by Mr. Diamantopoulos, before we get to relevance, I understand that this was reflected in your statement in opposition, but if you could -- the Commission is not going to be able to rely on that based on the language issue.

MR. MENTON: Can I provide a translation? I mean, it's a handful of words. It's literally a handful of words. I'd be happy to provide a translation. If you need me to get a

certified one, which I'll pay for with my own money? These are performance statistics of the El Hierro Wind Storage project that has totally failed, and it's documented --

(Cross-talk)

A.L.J. KERSEY: I'm going to let you -- no, no, I'm going to let you speak to the relevance issue because perhaps the issue -- we may be able -- you may be able to correct the language issue. So if you would speak to the relevance issue that's been raised, please?

MR. MENTON: Okay. This document is a fundamental document that anybody -- it's fundamental to the competence of understanding an energy system is how this system works in El Hierro Island. And if the Department of Public Service claims not to know about this and not to understand it, it is shocking, shocking. This is a failed --

A.L.J. KERSEY: But its relevance with respect to this rate proceeding, so.

MR. MENTON: The relevance with respect to this rate proceeding is that the El Hierro experience has proved why it is impossible to have a electricity system powered by intermittent renewables

and storage. It has proved why, therefore, the revenues included for Con Ed in this rate proceeding to support such an energy system are a waste, which is our fundamental objection.

A.L.J. KERSEY: Okay. So let me just stop you there. We will give you a time frame for which we would like a translation of this. And then we will mark it as an exhibit right now because -- so we are overruling the objections to the -- with respect to relevance. We are going to allow this in as it was referenced in your papers.

However, please note that the parties will be able to address this in the post-hearing briefs, and it will come in for whatever weight it eventually is recorded. So we're going to mark this as exhibit -- I believe we're on 1234. Is that correct? No. Hang on a minute.

Okay. We're marking this as Exhibit 1236 for identification.

Okay. Item, 19 --

MR. SHERWIN: Your Honor.

A.L.J. KERSEY: Yes. We'll be admitting this as Exhibit 1236. And we'll also be admitting (indiscernible).

MR. SHERWIN: Your Honor?

A.L.J. KERSEY: Yes.

MR. SHERWIN: Exhibit 19 that you're about to get to.

A.L.J. KERSEY: Yes.

MR. SHERWIN: Is just, again, it's another scan of the JP, so it can --

A.L.J. KERSEY: Okay.

MR. SHERWIN: -- go the way of the other one.

A.L.J. KERSEY: Okay. So Exhibit --

MR. SHERWIN: Because it's going to -- just for expediency.

A.L.J. KERSEY: Thank you. So Exhibit 19, we are going to --

MR. SHERWIN: Okay. Now, we're getting into --

A.L.J. KERSEY: We're not going to identify that. We're not going to allow that to be marked for identification, we are at this AI analysis, we do note, however, and so the reliability -- sufficient reliability can't be afforded to it, but we do note that it appears to reflect material in the JP.

Okay. At this time, are there any additional corrections to the exhibit list?

With respect to the remaining exhibits that not been provided to any parties, which I believe are Exhibits 20 through 33, we will address those later in the proceeding when we address the Independent Intervenors full case. Okay?

All right. So as I said, any additional corrections to the exhibit list?

At this time, we are going to move the exhibits that were previously marked into identification and that we just identified into the record.

A.L.J. KERSEY: As we said, we'll address any additional exhibits as necessary if someone seeks to have them admitted into evidence. Turning to the management and operations audit testimony before turning to the witnesses, we want to have the testimony regarding the Company's compliance with recently completed management and operations audits admitted into the record.

We previously admitted into evidence the affidavits from Con Edison and DPS Staff adopting their respective testimony on management operations

audits.

At this point, the court reporter should move into the record as though given orally here today, the section of direct testimony of Con Edison's accounting panels, pre-filed testimony regarding management and operations audits, page 128 at lines 14 to 20 and page 129, and the Department of Public Services prepared testimony of the staff management and operations audit panel.

I will forward the testimony -- I'll forward that testimony to the court reporting service for inclusion in the transcript.

INSERT TESTIMONY HERE

12/3/2025 - Consol. Edison - 25-E-0072, 25-G-0073

BEFORE THE STATE OF NEW YORK PUBLIC SERVICE COMMISSION

Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric and Gas Service.

25-E-XXXX;25-G-XXXX

January 2025

Prepared Testimony of:

Accounting Panel

Joseph Miller
4 Irving Place
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Wenqi Wang
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XVIII. MANAGEMENT AND OPERATIONS AUDITS

Q. Please discuss any developments in Commission-initiated management and operations audits since the Company's last base rate cases.

A. At the time of the Company's last base rate filings, the Company had three open 18 management and operation audits.

First, Case 14-M-0001 was a comprehensive management and operations audit of 20 Con Edison and O&R pursuant to Public Service Law §66(19). At the time, the Company had completed 35 of 36 recommendations and Staff had accepted and 2 closed 35 of 36 recommendations. Staff closed this audit on January 13, 2023.

Second, Case 18-M-0013 was an income tax accounting audit. The audit report was pending at the time of the Company's last base rate filing. The report is 5 currently still pending.

Third, Case 21-M-0193 was a comprehensive management and operations audit of Con Edison and O&R pursuant to

Public Service Law §66(19). At the time, the audit report was pending. The Company has now completed 32 of 42 recommendations and DPS Staff has reviewed and closed 16 recommendations.

Q. Has the Commission commenced any new management and operations audits since the Company's last base rate cases?

A. No.

Q. Does that conclude your direct testimony?

A. Yes, it does.

BEFORE THE
STATE OF NEW YORK
PUBLIC SERVICE COMMISSION

In the Matter of
Consolidated Edison Company Of New York, Inc. Cases 25-E-0072 and 25-G-0073

May 2025

Prepared Testimony of:

Staff Management and
Operations
Audit Panel

Jeremy Routhier
Chief Utility Accounting and
Finance

Angela Morina
Utility Analyst 2
Office of Accounting, Audits
and
Finance

State of New York
Department of Public Service
Three Empire State Plaza
Albany, New York 12223-1350

Members of the Staff Management and Operations Audit Panel (SMOAP or Panel) please state your names, employer, and business address.

A. Our names are Jeremy Routhier and Angela Morina. We are employed by the New York State Department of Public Service, referred to as the Department, at Three Empire State Plaza, Albany, New York 12223.

Q. Jeremy Routhier, what is your position at the Department?

A. I am employed as a Chief Utility Accounting and Finance in the Office of Accounting, Audits and Finance.

Q. Please describe your educational background and professional experience.

A. I hold a Bachelor of Arts in Sociology from the State University of New York at Albany, a Master of Public Administration from Marist College, and a Certificate in Business Contracts from Cornell University. I have been employed by the Department since April 2008. I supervise the Finance Policy and Management and Operations Audit Units within the Office of Accounting, Audits and Finance. Of relevance to this Panel’s testimony, the Management and Operations Audit unit oversees management and operations audits,

reviews the implementation of the resulting recommendations, and analyzes management and executive incentive compensation programs. I have supervised more than a dozen management and operations audits of investor-owned utilities in New York, including Case 21M-0193, referred to as the 2021 Management Audit, which was a comprehensive management and operations audit of Consolidated Edison Company of New York, Inc. (Con Edison or the Company) and Orange and Rockland Utilities, Inc. (O&R).

Q. Have you previously testified before the Commission?

A. Yes. I testified in the rate proceedings for Keyspan Gas East Corporation and The Brooklyn Union Gas Company in Cases 16-G-0058 and 16-G-0059, respectively, and the rate proceeding for National Fuel Gas Distribution Corporation in Case 23-G-0627.

Q. Angela Morina, what is your position at the Department?

A. I am employed as a Utility Analyst 2 in the Management and Operations Audit unit of the Office of Accounting, Audits and Finance.

Q. Please describe your educational background and professional experience.

A. I hold a Bachelor of Science in Business Administration from Russell Sage College. I have been employed by the Department since March 2016.

Q. Please briefly describe your responsibilities at the Department.

A. I am responsible for the oversight of management and operations audits, as well as the implementation of the resulting recommendations. I am also responsible for analyzing incentive compensation in rate proceedings.

Q. Have you worked on management and operations audits of New York State utilities?

A. Yes. I have worked on multiple management and operations audits of electric and gas utility companies. Of relevance to these rate proceedings, I am the Project Manager for the 2021 Management Audit and the Assistant Project Manager in Case 18-M-0013, referred to as the Income Tax Accounting Audit, which is an operations audit to investigate the income tax accounting of the Company, O&R, New York State Electric and Gas Corporation (NYSEG), and Rochester Gas and Electric Corporation (RG&E). I previously worked on Case 13-M-0314, which was a review of the accuracy and effectiveness of certain reliability and

customer service systems at multiple gas and electric utilities, including Con Edison, that provide statistics to the Commission.

Q. Have you previously testified in a proceeding before the Commission?

A. Yes. I testified before the Commission in the previous rate proceedings for Con Edison, Cases 22-E-0064 and 22-G-0065. I also testified in the rate proceedings for O&R in Cases 24-E-0060 and 24-G-0061 and Cases 21-G-0073 and 21-E-0074, and NYSEG and RG&E in Cases 19-E-0378, 19-G0379, 19-E-0380, and 19-G-0381.

Q. Will the Panel refer to any information Con Edison provided during the discovery phase of this proceeding in your testimony?

A. Yes, we will refer to, and have relied upon, the Company’s responses to information requests, referred to as IRs. These responses are contained in Exhibit___(SMOAP-1). We will refer to these responses by the designation the trial staff assigned, e.g., DPS-123.

Q. What is the purpose of your testimony?

A. Our testimony will discuss Con Edison’s implementation efforts related to recent management

and operations audits and respond to the Company's cost recovery requests for conducting audits.

Q. What is a management and operations audit?

A. Management and operations audits review a utility's construction program planning process, operational efficiency, and other matters. The Commission conducts comprehensive management and operations audits of large, investor-owned utilities, including Con Edison, on a five-year cycle. The Commission also conducts focused operations audits of specific topics as needed.

Q. What specific audits will you discuss in your testimony?

A. We will discuss three audits in our testimony. They are the comprehensive management and operations audit of Con Edison and O&R in Case 14-M-0001, referred to as the 2014 Management Audit, the Income Tax Accounting Audit, and the 2021 Management Audit. The 2014 Management Audit, the Income Tax Accounting Audit, and the 2021 Management Audit were open audits at the time of the previous rate proceedings for the Company in Cases 22-E-0064 and 22-G-0065.

Q. What is the status of the 2014 Management Audit?

A. The audit is complete. On January 13, 2023, Staff filed a letter with the Secretary to the Commission stating that Con Edison had satisfactorily implemented all recommendations.

Q. What is the status of the Income Tax Accounting Audit for Con Edison?

A. The Income Tax Accounting Audit is ongoing for Con Edison.

Q. What is the background and status of the 2021 Management Audit?

A. The Commission initiated this audit on May 13, 2021, in its Order Initiating a Management Audit in Case 21-M-0193. On October 9, 2021, in its Order Directing Utilities to Enter Into Contract with Selected Independent Auditor, the Commission selected NorthStar Consulting Group, which we will refer to as NorthStar, to conduct the audit. The Commission released NorthStar's Final Report on February 16, 2023, in its Order Releasing Audit Report. On October 12, 2023, in its Order Approving Implementation Plan with Modification and Denying Deferral Authority, which we will refer to as the Implementation Order, the Commission approved Con Edison and O&R's plan to implement the audit

recommendations. Con Edison and O&R filed their most recent implementation update on March 28, 2025. In the update, Con Edison and O&R indicate they have completed 32 of the 42 recommendations.

Q. Is the Company on track to complete the remaining ten recommendations according to the implementation steps and schedules detailed in the Commission-approved implementation plan?

A. No. Three of the recommendations remain on track, but seven have been delayed. The Company has sought approval for schedule extensions for each of them from the Director of the Department’s Office of Accounting, Audits and Finance, per the process detailed in the Implementation Order.

Q. Did the Department approve these schedule extensions?

A. Yes, though one recent request related to Recommendations VIII-10, VIII-11, VIII-13, and VIII-14 remains under review. These four recommendations pertain to the Company’s Personal Services Group, which conducts meter and billing investigations in response to customer complaints. Specifically, these recommendations require Con Edison to perform a workload analysis for the Personal Services Group, cross-train call center customer service

representatives to assist the Personal Services Group, develop a formal plan to reduce the Personal Services Group's backlog of investigations, and modify Company policies regarding the timing of shared meter investigations. Con Edison indicated in the implementation plan approved and modified by the Commission that it would complete these four recommendations by December 31, 2024. In November 2024, the Company submitted a request for a timeline extension to June 30, 2025, which Staff granted. On May 16, 2025, Con Edison submitted a request for a second timeline extension to February 28, 2026, citing delays in training and the need for increased staffing as the reasons. Further, the Company's March 28, 2025, implementation update noted that the backlog in Personal Services cases has increased as a result of the Company's transition to a new customer billing system and that the Company has only reduced the backlog of cases by 20 percent to date. Staff is currently reviewing the Company's request for additional time to complete these recommendations.

Q. Did the Company reflect any costs or savings in the Historic Test Year (HTY) resulting from the

implementation of any of the recommendations from the 2021 Management Audit?

A. No. According to Con Edison's response to DPS256 the recommendations applicable to the Company are qualitative, and a cost-benefit analysis is not easily quantifiable. The Company also states that any savings resulting from the implementation of a recommendation will be reflected in the HTY datA.

Q. Were there any recommendations from these audits that are relevant to these proceedings?

A. Yes, there are two recommendations from the 2021 Management Audit that are relevant to these rate proceedings: Recommendations VII-2 and IX-3.

Q. Please describe Recommendation VII-2.

A. As noted on page A-41 of NorthStar's Final Report, Recommendation VII-2 is that Con Edison perform an assessment of estimating accuracy for large capital projects to identify potential improvements. In the Company's December 31, 2024, Implementation Plan update, Con Edison reported that it completed implementing this recommendation on November 30, 2024.

Q. Why is Recommendation VII-2 relevant to these rate proceedings?

A. Con Edison has been developing a standard estimating process since the 2014 Management Audit. During the audit, NorthStar found that Con Edison reviewed project cost performance but focused on project management, oversight, and funding, rather than estimating accuracy. Con Edison indicated that it was planning to perform a quantitative review of project estimating data to assess budget, estimate, and forecast versus actual comparisons. Because Recommendation VII2 was implemented near the end of the HTY, any resulting changes to estimating cost assumptions, associated improvements, and resulting benefits or savings would not be reflected in the HTY.

Q. Please describe Recommendation IX-3.

A. As noted on page A-64 of NorthStar's Final Report, Recommendation IX-3 is that Con Edison develop a process for identifying, measuring, and tracking actual benefits and savings achieved from information technology projects. In the Company's March 31, 2025, Implementation Plan update, Con Edison reported that it continues to consider whether to adopt the resulting process more widely.

Q. Why is Recommendation IX-3 relevant to these proceedings?

A. During the audit, NorthStar found that Con Edison was implementing a methodological approach to more accurately tracking the value realized from system implementation. NorthStar states that a formal process such as the one being implemented by Con Edison would enable more accurate estimates, tracking, and reporting of savings and benefits from capital projects. Because Recommendation IX-3 will be implemented during the bridge period between the HTY and the RY, any resulting changes, associated improvements, and resulting benefits or savings would not be reflected in the HTY.

Q. How should these recommendations be considered in these proceedings?

A. We believe these recommendations should be considered in the context of the labor productivity adjustment, which is discussed in the Staff Accounting Panel testimony. Given the timing of implementation, we would expect the efficiency gains under Recommendations VII-2 and IX-3 to materialize during the RY. However, these improvements are difficult to identify and quantify with precision, and are,

therefore, more appropriately captured by a productivity adjustment.

Q. Is Con Edison requesting recovery of any costs associated with conducting management and operations audits?

A. The Company proposes to defer the actual cost incurred of any management and operations audit that the Commission might conduct during the rate plan for recovery in Con Edison's next base rate cases.

Q. Do you agree with the Company's proposed treatment of management and operations audit costs?

A. Yes, but with some limits. We agree that the Commission should allow Con Edison to defer the cost of comprehensive management and operations audits should the Company incur such costs during its rate plans. However, we recommend that the recovery of any deferral be limited to the costs allowed pursuant to the contract.

Q. Does this conclude your testimony at this time?

A. Yes.

A.L.J. KERSEY: I just want to give a reminder on the standard. The issue for a proposed settlement is whether that settlement is in the public interest. While opposing parties are able to seek information from the sponsoring parties on individual provisions of a settlement, the Commission considers the agreement as a whole, aware that the proposal is the product of negotiation among different interests and concerns.

The burden of supporting a proposed settlement is on the settling parties, and so those parties are able to define the witnesses that they choose to use sponsor a Joint Proposal.

In addition, sponsoring parties may put forward witnesses as one panel, or they may choose to have their witnesses appear as an individual party.

As a final reminder, cross-examination on legal conclusions, interpretation, and theory is improper. Such clearly legal material is for briefing and argument only. Even where a witness makes a claim that a response is based on the advice of counsel, the legal opinion of witnesses have no evidentiary value for a number of reasons, including

at a minimum, hearsay and lack of foundation to provide a legal opinion.

We plan to proceed first with UtiliSave, then with the Company and Staff's witness panels, and then with Mr. Ellenbogen and Mr. Menton. So we're going to move with respect to UtiliSave's, excuse me, witness.

Mr. Steifman, you can stay in your seat if you'd like to. My understanding, we previously asked the parties if they intended to do cross-examination of Mr. Steifman, and they said no.

As you are here, Mr. Steifman, we're not going to rely on the affidavit submitted. We're going to ask you a few questions.

So to begin, I would like to swear you in. Mr. Steifman, please --

MR. STEIFMAN: And can I just, Your Honor, if it's possible to have a five-minute break before we begin.

A.L.J. KERSEY: Sure.

MR. STEIFMAN: Thank you so much.

A.L.J. KERSEY: Sure. We're going to -- we're going to get going. Does anyone have a thought on when they'd like to break for lunch?

What I would -- what I would propose is we come back in five minutes. We wrap up UtiliSave and then we take a break from lunch before we start cross-examination of Con Ed and DPS Staff.

Does that work for everybody? We just take a five-minute break and come back at noon. Okay?

A.L.J. KERSEY: All right, we're off the record.

(Off the record)

(On the record)

A.L.J. KERSEY: We are on the record. Folks, we are back on the record. So if you could cease your conversations, thank you very much. Okay. We are on the record.

Mr. Steifman, please state your name and business address for the record. We're going to swear you in.

MR. STEIFMAN: Michael Steifman, 2 Eastway Drive, Southampton, New York.

A.L.J. KERSEY: Please stand and raise your right hand.

MICHAEL STEIFMAN (UTILISAVE); Sworn

A.L.J. KERSEY: Thank you. You may be

seated.

MR. STEIFMAN: Thank you.

A.L.J. KERSEY: Mr. Steifman, do you adopt the factual statements in the UtiliSave LLC statement in opposition to approval of the Joint Proposal filed on November 26th, 2025, as your sworn testimony in this proceeding?

MR. STEIFMAN: I do, Your Honor.

A.L.J. KERSEY: Mr. Steifman, do you have in front of you a document entitled The Testimony of Michael Steifman, Esq., for UtiliSave LLC, in Opposition to Approval of the Joint Proposal which was filed with the Commission on November 26th, 2025?

MR. STEIFMAN: I do, Your Honor.

A.L.J. KERSEY: Was that document prepared by you or under your supervision?

MR. STEIFMAN: It was, Your Honor.

A.L.J. KERSEY: Do you have any changes or corrections to that testimony?

MR. STEIFMAN: I do not, Your Honor.

A.L.J. KERSEY: And if I ask you the same questions today, would your responses be the same?

MR. STEIFMAN: With regard to this document, you mean?

A.L.J. KERSEY: With respect to your testimony?

MR. STEIFMAN: Yes, Your Honor.

A.L.J. KERSEY: And Mr. Steifman, do you adopt this as your sworn testimony in this proceeding?

MR. STEIFMAN: I do, Your Honor.

A.L.J. KERSEY: And are you asking that this testimony, the testimony of Michael Steifman, Esq., of UtiliSave LLC, in opposition to approval of the Joint Proposal be copied into the record as if given orally today?

MR. STEIFMAN: I do, Your Honor.

A.L.J. KERSEY: Are there any objections?

MR. SHERWIN: No, Your Honor.

A.L.J. KERSEY: Okay. The request is granted and the testimony of Michael Steifman, Esquire, for UtiliSave LLC, in opposition to approval of the Joint Proposal which was filed with the Commission on November 26, 2025, is entered into the record as if orally given today.

MR. STEIFMAN: Thank you, Your Honor.

A.L.J. KERSEY: Thank you. At this point, the court reporter should move into the record as though given orally such testimony.

INSERT TESTIMONY HERE

NEW YORK STATE

PUBLIC SERVICE COMMISSION

Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service.
Case 25-E-0072

Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service.
Case 25-G-0073

TESTIMONY OF MICHAEL STEIFMAN, ESQ. FOR UTILISAVE, LLC

IN OPPOSITION TO APPROVAL OF THE JOINT PROPOSAL

November 26, 2025

Michael Steifman, Esq.
UtiliSave, LLC
2 Eastway Drive
Southampton, NY 11968

INTRODUCTION

Q. Please state your name, business address, and identify for whom you are presenting testimony in these proceedings.

Michael Steifman 2 Eastway Drive Southampton NY 11968. I represent UtiliSave as its CEO and in my capacity as an agent for the utility bill auditing customers being served by Con Edison that UtiliSave represents. Q. Please describe UtiliSave and your relationship to the organization. I am the Founder and CEO of UtiliSave. UtiliSave is a utility auditing company. UtiliSave has used its proprietary systems and specialized knowledge to identify utility overcharges for its clients.

Q. What is your educational background, your professional qualifications, and employment history?

Employment History:

Steifman, LLP, New York, NY – admitted in New York, Texas and Massachusetts

Managing Partner, September 2020 -Present

UtiliSave, LLC, New York, NY

Founder, Managing Member and CEO, November 1991 - Present

- Manage 30+ person firm to achieve annual multi-million dollars in revenue.

- Provision utility bill auditing services resulting in energy and cost reductions for clients.
- Secured over $700 million in savings for large commercial, industrial and institutional property owners of 16,000 buildings nationwide over 35 years.
- Well practiced in legal research, issue spotting and legal writing.
- Successfully engaged in all phases of rate case litigation with various utility companies resulting in awards of millions of dollars to clients.

Starrett Housing Corporation, New York, NY

Vice President, June 1986 - April 1992

- Implemented and monitored all phases of real estate development projects.
- Responsible for site negotiation and acquisition, design, financing, construction management, marketing and leasing of projects.
- Youngest corporate Vice President in the Company’s 100 year history.

Education

New York Law School, New York, NY

LLM Tax candidate, May 2028

Juris Doctor, Graduated December 2019, Cum Laude

Honors: Dean's List, High Honors

The Wharton School, University of Pennsylvania, Philadelphia, PA *Bachelor of Science in Economics*, 1986

Q. Have you previously testified before the New York State Public Service Commission?

I have not testified before the Public Service Commission in a rate case, but I have presented cases in the Informal Hearing setting on behalf of clients of UtiliSave.

Q. What is the purpose of your testimony?

To advocate for the PSC to mandate that Con Ed be required to provide all the data and formulas related to each charge and component of a customer's bill, such that there is full transparency as to the method of formulation and calculation with provisioning of all bill inputs which are utilized to derive every billing component.

Q. What are the major findings of your testimony in these proceedings?

My testimony examines and provides evidence that the Joint Proposal fails to take into account that Con Edison's billing strategy and policies are not as transparent as they should be in order to protect ratepayers' interests. The Joint Proposal only provides for a limited expansion in billing transparency, that being related to taxation (see Joint Proposal at 93). Based on my 35years of experience in the industry, and my interactions with multiple utilities, much more in the way of informational transparency is required to fulfill the needs of the public in this critical area. My testimony will also highlight examples where the lack of data transparency inhibits the ability of a customer to determine the accuracy of the bills provided to them by Con Edison.

Q. Is greater information transparency and greater transparency in the billing process in the public interest?

Yes.

Q. Why is it important that the information you are requesting be made available?

There are a number of reasons:

A. There should be a sustained practice of

transparency. If a charge is being assessed, then all the billing components should be made available as a matter of course. This approach fosters a relationship of trust between the utility and a customer,

B. Given all the variables that go into a correct bill, it is very possible for there to be a mistake on how an input is allocated. Once example is in the calculation of the BTU heating factor, there are 5 zones that serve all customers, the billing does not disclose which zone the customer has been placed on, how can the customer check if he is in the correct zone?

C. Customers should have the ability to confirm each component of their bill and all the related inputs should be provided so that this is possible. If there is a charge the support/backup for this charge should be available. Why should anyone be required to pay for charges that are not verifiable? There is really no aspect of commerce where it would be acceptable to be presented with a bill by a vendor, and if you as the customer wanted to verify the accuracy of any component of the bill, would not be able to do so, yet you would still be expected to

pay the bill. Why should utility service not operate on the same concept? Yet today the requirement for such a level of information and transparency is not an obligation of the utilities. This needs to change.

Q. Why isn't the current treatment by Con Edison sufficient?

Because even when asked, Con Edison does not provide the reasonable information requested. I detail specific excerpts below from Con Ed dialogues that illustrate this point.

Q. Does the Joint Proposal adequately consider the issue of bill transparency in order to provide ratepayers with sufficient information to understand all the charges on their bill and to permit ratepayers, should they wish to, to confirm the accuracy of the charges assessed by Con Edison for utility service?

No.

Q. Are there specific examples where greater informational transparency would enhance a ratepayer's ability to confirm the charges assessed by Con Edison?

Yes. The examples I will give are not all inclusive,

but just illustrative. Gas Cost Factor: The Company's Gas Cost Factor is made up of the average variable cost and the average fixed cost of gas both of which have multiple sub-components. These components are set out in Con Edison's gas tariff at Leaves 155.1, 156, 157, 157.1, 158, 159, 160, 161. The values, data and formulas used to derive these sub-components are not disclosed to ratepayers. When UtiliSave filed an Information Request seeking information on Con Edison's policy regarding disclosure of these subcomponents, Con Edison replied that it did not propose to change its policy. Con Edison replied that such information was confidential, and without proof, alleged that disclosure of such data " could impair the Company's position in any future negotiations with gas suppliers and service providers with respect to hedge-based gas transactions."

Market Supply Charge: The price of the Market Supply Charge (MSC) for non-Rider M customers is based on Con Edison's forecast of NYISO market energy prices plus a defined 'Hedging Impact.' The cost per kWh is reconciled monthly via the Adjustment Factors – MSC, with true-ups reflected in

the following month's billing statements. While the tariff specifies each input to the MSC, Con Edison does not publish granular forecast or real-time hedging data, nor provide the raw input for analysis by customers or their representatives. Additionally, the charge components and adjustment factors are updated and filed publicly each month, but full calculation workpapers are not published, and so the final information cannot be independently calculated and verified by the customer. When UtiliSave filed an Information Request seeking if Con Edison was entertaining a policy change, Con Edison again replied, without evidence, that the confidentiality of this information was required so as not to "impair the Company's position in future negotiations with counterparties." BTU Factor: The tariff permits Con Ed to charge for gas based on the BTU content of the gas, as opposed to the volume of gas, such that for the same volume of gas, one ccf of gas with a higher BTU content, will cost more than a ccf of gas with a lower BTU content. The following information is not made available to the ratepaying public by Con Edison:

1. The method, process or other calculation the Con

Edison uses to calculate the Gas Therm for each city gate, as taken hourly throughout the year on each day.

2. The method, process or other calculation the Company uses to calculate the quantity of gas being passed through each city gate as taken hourly throughout the year on each day.

3. The method, process or other calculation the Company uses to calculate the quantity of gas that is being taken from each city gate into each thermal zone as taken hourly throughout the year on each day.

In the Information Request, UtiliSave requested information on how this data could be accessed. Con Edison replied for each "Current technology systems do not have the capability to publish this data as described to customers. There are currently no projects in the current technology roadmap that would provide this functionality."

What is being requested is the raw data. This can be presented in Excel spreadsheets, nothing fancier is required. A data dump in excel can certainly be made available.

Q. Is the information detailed in the example above

important for a ratepayer to access?

Yes.

Q. **What is the importance of this information?**

Access to this information would permit an interested ratepayer to evaluate the accuracy of the charges Con Edison assessed for utility service.

Q. **Do you believe that it is in the public interest if access to this information, or protocols established to make this information accessible were contained in the Joint Proposal and made part of the Joint Proposal?**

Yes. There is proposed legislation currently pending before the New York State legislature that supports the critical need for utility transparency. S8530, entitled "The Utility Transparency And Fair Billing Protection Act" seeks to prevent consumers from being overcharged due to misclassified utility rates by mandating proactive account reviews, automatic adjustments, and ensuring clear communication between utilities and customers. S8128 entitled the "Ratepayer Transparency Act" which requires bills utilized by public and private gas corporations, electric corporations and gas and electric corporations in levying charges for service

to include separate categories for certain charges. There is also legislation related to utility transparency that has been recently signed by the Governor and that is now in effect:

S9188 entitled "AN ACT to amend the public service law, in relation to information required to be published prior to a major rate change by a public gas or electric utility" became effective on November 24, 2025. This Act requires the public service commission to publish certain information prior to a major rate change by a public gas or electric utility including an explanation of why the rate change is requested and a summary of how the proposed revenue will be spent. The bill, now law, specifically requires the Public Service Commission to "within ten days of the commencement of any matter involving a major change in a rate for electric or gas service, publish, in a readily accessible location on the department's website, a summary in plain language, not to exceed one page or five hundred words…" containing information related to the rate change proceeding so that ratepayers can evaluate the potential effect on their utility costs, among others.

S6710 entitled "AN ACT to amend the public service law, in relation to false material statements related to a public utility" amends the Public Service Law to permit the assessment of a fine for a false statement and became effective on September 25, 2024:

> …any public utility company or corporation, and the officers, agents or employees thereof that knowingly makes a false material statement, representation or certification to the commission in any rate proceeding shall forfeit to the state of New York a sum not to exceed two hundred fifty thousand dollars. Each false material statement, representation or certification shall constitute a separate and distinct offense for purposes of this section.

Q. Do you support Con Edison's proposal related to billing transparency?

Not as proposed.

Q. What do you recommend instead?

I recommend that DPS consider requiring Con Edison to specifically list and detail individually each and every component of all charges assessed to a ratepayer for utility service, including commodity, delivery, tax and every component of the bill, as I have illustrated in my testimony above.

CONCLUSION

Q. Does this conclude your testimony?

Yes.

A.L.J. KERSEY: I will forward that testimony to the court reporting service for inclusion in the transcript.

(Cross-talk)

A.L.J. COSTELLO: I just want to make sure we also grant any motion with respect to the Statement in Opposition to Factual Statements. Does anyone have any objection to the factual statements in his opposition being entered as sworn testimony?

MR. SHERWIN: No, Your Honor.

MR. KRAMER: No, Your Honor.

A.L.J. COSTELLO: Thank you. Okay. So that also will be entered in the -- well, it's entered into the record. It's going to be entered in the record, as an exhibit, basically. But we're adopting the factual statements as given here orally today.

A.L.J. KERSEY: Okay. You're excused as a witness, Mr. Steifman.

THE WITNESS: Thank you, ma'am.

A.L.J. KERSEY: One other item we just wanted to note, Mr. Dichter with the Westchester Municipal Consortium had stated that he wanted to

enter some items into the record. Mr. Steifman -- I'm sorry -- Mr. Dichter, could you speak to that?

MR. DICHTER: Yes, Your Honor. We had identified in our exhibit list which is now under the new list, 1191, which consists of Company's responses to information requests submitted by WMC to Con Edison. These documents are relevant in that the Joint Proposal on page 52 makes reference to, and I'm quoting, "Consistent with the responses to WMC-4, and so the document that we're trying to admit are responses to WMC-4". So responding to provide some light on the Joint Proposal provision of the document. The Company --

A.L.J. KERSEY: Mr. Dichter, I'm sorry. You identified those as what number on the exhibit list?

MR. DICHTER: 1191.

A.L.J. KERSEY: Thank you.

MR. DICHTER: As on the updated list from -- I received from Judge Costello.

A.L.J. COSTELLO: Okay. And did you also want to indicate you had -- off the record indicated that you had received consent by Con Edison with respect to a number of those interrogatory

responses?

MR. DICHTER: I'll let Con Edison speak to that, but yes, Your Honor, they did request that I remove two of the responses which were objections, which is 110 and 111, which I've done -- now removed, and have a copy as amended that I can hand up to you at any time. But otherwise, they have indicated they have no objections.

A.L.J. COSTELLO: Okay. Please hand those up to us. So what we're going to do, just for clarity of everything we have, the exhibit list which contains all of them, so what we're going to do is just strike --

MR. LANG: Your Honor, before you make your own, may we be heard?

A.L.J. COSTELLO: Yes, sir.

MR. LANG: So we do have an objection here, so.

A.L.J. COSTELLO: You have? Okay. I'm sorry. We're jumping the gun. Go ahead. Let's hear it.

MR. LANG: All right. Yeah. So Mr. Johnson did not rely on any of these exhibits. He actually has in his testimony which has been marked

an exhibit which is the discovery that he relied upon, and it doesn't include any of these, and these were all discoveries that was available to him.

So to bring it in and say this is stuff that was relied upon, and it wasn't, the fact that the Joint Proposal makes reference to it, so be it. It makes reference to a number of things that aren't necessarily in the record either. We don't think that there is any basis to bring his discovery responses into the record.

And this instance, this party has stated in its statement that it is not opposed to the Joint Proposal, so it's not an adversarial position, and we don't think it does anything, and it's unnecessary.

A.L.J. COSTELLO: Okay. Let me, with respect to that, I know we sent out an email yesterday requesting that you address that. What is the purpose of getting these in when Westchester Municipal Consortium does not have any objection to the Joint Proposal? Why do you need these documents then?

MR. DICTHER: Your Honor, there was the position of the Westchester Municipal Consortium

not to oppose the Joint Proposal, it's based on a number of factors. There was the reduction in the amount, but there were also some provisions that were included in the Joint Proposal, and if they weren't there, we might take a very different position. One of those was the Company's agreement in its next embedded cost of service study to provide data on certain information related to the cost of providing service for overhead radio systems versus underground.

This is integral to our position here, and the Joint Proposal provides that they will conduct that study consistent with WMC-4. So for the record to be complete as to what it is they were to do upon the Joint Proposal, it makes perfect sense, and is logical and relevant, to admit into evidence the responses to WMC-4.

A.L.J. COSTELLO: Where in the Joint Proposal? Can you just point that out so we can --

MR. DICTHER: That is on page 52, in the first full paragraph, the first -- yeah, just the five -- first sentence.

A.L.J. COSTELLO: Okay. Before we move on, so Mr. Konecni, your position?

MR. KONECNI: Mr. Dichter was correct about our position. We have no objections with his revised submission.

A.L.J. COSTELLO: Mr. Kramer or DPS Staff?

MR. KRAMER: Thank you, Your Honor. Based on Mr. Dichter's explanation, Staff does not object to the entry of this material into the record.

A.L.J. COSTELLO: Does any other party want to be heard on this?

MR. LANG: Your Honor, this is Mr. Lang. I would just note that the Westchester Municipal Consortium filed comments on the Joint Proposal, and in those comments while they did reference the Joint Proposal language, they did not reference the discovery, they did not indicate that the discovery was necessary. They're trying to do so today, but they had an opportunity to at least reference it and they didn't do that.

MR. DICHTER: Your Honor, so these references, I mean it's been recorded, and quite from the JP, those records which have been entered before.

A.L.J. COSTELLO: Given that it is referenced specifically in the Joint Proposal, we do

note that with the deletion of two interrogatories that contained a legal objection, the Company is not -- does not object to that. I understand Mr. Lang's objection, however, because it is something that is referenced in the Joint Proposal, and something that the Commission may wish to be aware of given that it's referenced in the Joint Proposal, we are going to admit as evidence -- as exhibits, or as an exhibit the response to -- the updated response to IR's -- it would be just -- it would just be WMC-4 that we are going to admit.

A.L.J. KERSEY: Mr. Dichter, everything that you've brought up to us right now, is that just WMC-4?

MR. DICHTER: No.

A.L.J. KERSEY: Okay. So --

MR. DICHTER: WMC-4, responses to questions 48 to 109 and in addition, there are two responses to WMC-3 which relates to projects that Con Edison proposed in their initial filing that was in fact, is referenced in our comments. So to complete the record as to the projects for New York City versus Westchester, we've asked to include them here as well. In our comments, we specifically referenced

those two responses to the discovery.

A.L.J. COSTELLO: All right. So let's deal first with WMC-4. Those documents will be admitted as exhibits.

A.L.J. KERSEY: We'd be very specific again, though, to which interrogatories that you provided to us are you looking to have admitted for the respective WMC-4?

MR. DICTHER: Yes. Questions 48 through 109. The responses for Con Ed.

A.L.J. KERSEY: Okay. So those are what is being admitted at this point into evidence as Exhibit 1237.

I know, Mr. Dichter, that what you provided us here, or what I have are one, question 48 through -- I have through 109, which have just been admitted. What is also here is question number 43 and 44 with respect to WMC-3. And so we still need to deal with those.

So again, you're saying that these go to your comments, correct?

MR. DICTHER: That's correct.

A.L.J. KERSEY: And you would like them admitted.

MR. DICTHER: That's correct.

A.L.J. KERSEY: Do any of the other parties have thoughts on those? I'll start with objections.

Con Edison's Staff, please?

MR. SHERWIN: Okay.

A.L.J. KERSEY: No objections to that?

MR. SHERWIN: No objections.

A.L.J. KERSEY: Okay. DPS counsel?

MR. KRAMER: Your Honor, we do have -- we do object to have this information put into the record. Understand that the WMC-4 material, the responses, are pertinent to the Joint Proposal, we just don't see it here for the rest of the material. But that's our objection. Thank you.

A.L.J. KERSEY: Mr. Lang.

MR. LANG: Yes, Your Honor. I guess I'm also confused because -- and maybe it's just the numbering has changed, but in their statement, they referred to those two as already being part of another exhibit. So if they're already part of another exhibit, why do they need to be marked twice?

A.L.J. KERSEY: Mr. Dichter?

MR. DICHTER: It's the same exhibit,

Your Honor. The numbers were changed in Judge Costello's updated exhibit list from his initial one and with the reference in the comments as to the initial exhibit on the master exhibit list.

A.L.J. COSTELLO: So basically, of all of these documents are already in the record. No?

MR. DICHTER: No. These two documents are not already in the record.

A.L.J. COSTELLO: Okay. Which documents are already in the record with an updated exhibit list -- on the updated exhibit, which ones?

MR. DICHTER: Your list is -- these two are not on the updated exhibit list, WMC-4 is on the exhibit list.

A.L.J. KERSEY: My understanding is that WMC-4 --

A.L.J. COSTELLO: WMC-4 is already in.

MR. DICHTER: That's correct.

A.L.J. COSTELLO: That's fine. And we understand that the -- what we're going to do is modify that. We're going to strike that exhibit and we're going to admit these documents because they don't include the two interrogatories that deal with legal objection.

A.L.J. KERSEY: And so to be very clear then, while we had marked it and admitted it as Exhibit 1237 --

A.L.J. COSTELLO: That's going to come out because that includes other documents there. Okay.

A.L.J. KERSEY: Okay. It will remain so, Exhibit 1237.

A.L.J. COSTELLO: Now, that's with respect to WMC-4.

A.L.J. KERSEY: Correct.

A.L.J. COSTELLO: Now, we're dealing with WMC-3. That was not something you referenced in your opposition statement?

MR. DICTHER: I did reference it in my opposition statement.

A.L.J. COSTELLO: You referenced the --

MR. DICTHER: WMC-3, questions 43 and 44, specifically, are referenced in our comments on the exhibit. And now we're seeking to have them admitted into evidence to provide the Commission with their backup exhibits, and statements (indiscernible) and comments.

A.L.J. KERSEY: All right. And so I -- Mr. Lang, can you again give your substantive objection to admitting this into the record?

MR. LANG: No, I was just expressing confusion while I don't -- like this, I believe they shouldn't come in.

A.L.J. KERSEY: Okay. Thank you.

And DPS Staff counsel, Mr. Kramer, do you maintain your objection to them coming into the record?

MR. KRAMER: They're fine to go into the record, Your Honor.

A.L.J. KERSEY: Okay.

MR. KRAMER: Thank you.

A.L.J. KERSEY: So we are admitting WMC-3, also as Exhibit 1237.

A.L.J. KERSEY: And just to be clear, those are questions Number 43 and question Number 44 of the IRs, and identify as WMC-3. Okay.

MR. DICHTER: Thank you, Your Honors, and thank you (indiscernible).

A.L.J. KERSEY: You're welcome. Thank you.

Folks, we're going to take lunch.

It's 12:15. Can everybody be back here at 2 o'clock so that we can -- that the witness can also --

I'm sorry?

MR. KRAMER: How much time? Is it 1:30?

A.L.J. KERSEY: 12:15, I was saying we start back at 2:00, if that's too late?

MR. KRAMER: I see. It might be a little too late. Depending on how things go today.

A.L.J. KERSEY: That's fine. We can start back at 1:30 as well. What is the preference?

MR. KRAMER: I like 1:30.

A.L.J. KERSEY: Okay.

MR. KRAMER: He'll prefer earlier as well

A.L.J. KERSEY: Great. Okay.

A.L.J. COSTELLO: So 1:30?

MR. KRAMER: 1:30 is fine.

A.L.J. KERSEY: We'll be back. We are going to go off the record. We'll be back at 1:30. Thank you.

(Off the record)

(On the record)

A.L.J. KERSEY: All right, we are on

the record. We are going to turn to, the witnesses for cross-examination. UtiliSave, Richard Ellenbogen and Francis Menton have indicated they would like to cross-examine the Company, and Department of Public Service witnesses. Is that still correct? Mr. Steifman?

MR STEIFMAN: Yes, right.

A.L.J. KERSEY: And Mr. Ellenbogen?

MR. ELLENBOGEN: Yes, that's correct.

A.L.J. KERSEY: Mr. Menton?

MR. MENTON: That is correct.

A.L.J. KERSEY: Okay. We are now going to start with cross-examination of the Company and DPS staff, which have identified witnesses to be on a panel in support of the Joint Proposal. I'd like to confirm from counsel for the Company that the witness panel still includes the following individuals. If I may, let me just go through the list and then you can correct and make any corrections. Kelly McLaughlin from accounting, Wenqui Wang from accounting, Yan Flishenbaum, electric and gas rate, Shakira Wilson, electric infrastructure and operations, James Brennan, electric infrastructure, Rebecca Roberts, customer

operations, and Dennis Brady, municipal infrastructure support. Is that correct?

MS. SU: No, Your Honor. Wenqui Wang from accounting or accounting panel was not able to remain for the rest of the hearing.

A.L.J. KERSEY: Okay. And otherwise the list is correct.

MS. SU: Otherwise the list is correct.

A.L.J. KERSEY: Okay. Thank you. And for staff confirming that the witness panel consists of following individuals: Jerry Shang on the accounting panel, David Warnock, finance panel, Robert Cully, market and innovations panel, Alexander Yodashkin and Stephan Smith, electric and gas rates demand and cost of service panels. Philipose Philip, Daniel Roszko, Mohammed Hasan, Christopher Moquete, Nicholas DeLuca, the EIOP, David Marioriello, the GIOP, Emmanuel Alexis for the ERRPM panel, Craig Carroll for the customer operations panel, Jack Hamant and Daniel Roszko for the municipal infrastructure and support panel, and Caitlyn Edmondson and Robert Cully for the CLCPA panel. Is that correct? Are there any corrections?

MR. KRAMER: One correction, Your Honor.

A.L.J. KERSEY: Sure.

MR. KRAMER: Nicholas DeLuca is not available today and is not on the panel.

A.L.J. KERSEY: Thank you so much. And otherwise -- other than Mr. DeLuca, the panel is correct?

MR. KRAMER: It is correct. Yes. Thank you.

A.L.J. KERSEY: Wonderful. Thank you. Are there any witnesses on the panel that I have not named? Okay.

I will now swear in the witness, so I'll ask you to stand and raise your right hands. I'm going to give you the oath and then I'm going to read out the names again, and when I do, you can respond to the oath by saying yes or no

KELLY MCLAUGHLIN (Con Edison); Sworn

YAN FLISHENBAUM (Con Edison); Sworn

SHAKIRA WILSON (Con Edison); Sworn

JAMES BRENNAN (Con Edison); Sworn

CHRISTINE CUMMINGS (Con Edison); Sworn

REBECCA ROBERTS (Con Edison); Sworn

DENNIS BRADY (Con Edison); Sworn

A.L.J. KERSEY: You may be seated. Thank you.

Now, turning to the DPS staff witnesses.

JERRY SHANG (DPS staff); Sworn

DAVID WARNOCK (DPS staff); Sworn

ROBERT CULLY (DPS staff); Sworn

ALEXANDER YODASHKIN (DPS staff); Sworn

STEPHAN SMITH (DPS staff); Sworn

PHILIPOSE PHILIP (DPS staff); Sworn

DANIEL ROSZKO (DPS staff); Sworn

MOHAMMED HASAN (DPS staff); Sworn

CHRISTOPHER MOQUETE (DPS staff); Sworn

DAVIDE MAIORIELLO (DPS staff); Sworn

EMMANUEL ALEXIS (DPS staff); Sworn

CRAIG CARROLL (DPS staff); Sworn

JACK HAMANT (DPS staff); Sworn

CAITLYN EDMONDSON (DPS staff); Sworn

A.L.J. KERSEY: Did I mention Daniel Roszko?

MR. ROSZKO: Yes. I'm on two panels, Your Honor.

A.L.J. KERSEY: Oh, yes. Okay. I got

you. I thought I got you, but I wasn't sure. All right. Thank you. You may be seated. Thank you very much.

Let the record reflect that the panel members have all been sworn in.

I'm going to look at Company counsel right now to note if the witnesses adopted factual statements.

MS. SU: Can they do it as a group, or would you like --

A.L.J. KERSEY: Do it as a group? Yes. Yes. Absolutely.

MS. SU: Okay. Can the witnesses please confirm that your credentials are included in the pre-filed direct testimony?

WITNESSES: Yes.

MS. SU: Company witnesses, do you accept the factual statements in the Company's statement in support of your sworn testimony, and support of the Joint Proposal in this proceeding?

WITNESSES: Yes.

MS. SU: Your Honor, the Company witnesses are open for cross-examination.

A.L.J. KERSEY: Thank you very much.

And Department of Public Service counsel.

MR. KRAMER: Thank you, Your Honor.

Staff of the Department of Public Service, do you adopt the Department of Public Service Staff Statement in Support of the Joint Proposal in these proceedings?

WITNESSES: Yes. We do.

MR. KRAMER: Thank you.

I believe they're ready for cross-examination, Your Honor.

A.L.J. KERSEY: Okay. Mr. Steifman, we are going to start with cross-examination by you. Please provide us with the documents you intend to use for cross-examination. Please provide those to Counsel, and us if you are able to. I believe I --

MR. STEIFMAN: I will not be using any documents.

A.L.J. KERSEY: Okay.

MR. STEIFMAN: And just clear up my issues. My questions are going to be directed to the Company operations person, and only within the Company.

A.L.J. KERSEY: Okay.

MR. STEIFMAN: (Indiscernible) somewhere.

A.L.J. KERSEY: Okay. Please proceed.

MR. STEIFMAN: Thank you, Your Honors. And good afternoon, everyone.

Does the Company agree that clear communication with your customers is important?

MR. SHERWIN: Your Honors, this is Edward Sherwin for the Company. We object to that question as argumentative in that it's asking the witness to accept a conclusion, not to state a fact, and that it's vague about what the questioner means by clear communication and importance in other terms.

A.L.J. KERSEY: What's the basis for it being vague? It's really a clear question. Can you state it again, Mr. Steifman?

MR. STEIFMAN: Sure. Thank you, Your Honor. Does the Company agree that clear communication with your customers is important?

A.L.J. KERSEY: You said you were -- excuse me, you were -- the Company objected to it as being argumentative and vague, correct?

MR. SHERWIN: Yes.

A.L.J. KERSEY: How is it

argumentative?

MR. SHERWIN: It's asking for a fact. It's asking for the Company to adopt a conclusion, not to state a fact.

A.L.J. KERSEY: We're going to overrule the objections and let them answer.

Please answer the question.

MS. ROBERTS: This is Rebecca Roberts. Yes.

MR. STEIFMAN: Thank you. Clear communication refers to information that is accurate and understandable to the average customer, correct?

MS. ROBERTS: Can you repeat the question please?

MR. STEIFMAN: Sure. By clear communication, I'm referring to information that is accurate and understandable to the average customer. Do you agree with that?

MS. ROBERTS: Yes, though it depends on the context.

MR. STEIFMAN: Thank you. In the past, Con Edison has engaged, designed, implemented programs related to customer communication designed to determine the best way to get information to

customers. An example of this would be the SC -- rate SC 1-4 rate roll out. Is that correct?

MR. SHERWIN: Your Honor, I object to the question that's being compound.

A.L.J. KERSEY: Yeah. Can you break it down, Mr. Steifman?

MR. STEIFMAN: Yeah, absolutely.

A.L.J. KERSEY: Thank you.

MR. STEIFMAN: Absolutely.

In the past, Con Edison has engaged, designed, implemented programs related to customer communication; is that correct?

MS. ROBERTS: Yes.

MR. STEIFMAN: These programs were designed to determine the best way to get information to customers, as an example, the SC rate 1-4 rollout; is that correct?

MR. SHERWIN: Object on the basis of being a compound question. The question, break it down, please.

MR. STEIFMAN: An example of this -- these communications were designed in a manner to determine the best way to give information to customers, correct?

MR. SHERWIN: I would object on the basis of it being vague. It's not clear what communications the question is asking about.

A.L.J. KERSEY: Can you be more specific --

MR. STEIFMAN: Sure.

A.L.J. KERSEY: -- Mr. Steifman?

MR. STEIFMAN: Sure.

Communications that are related to informing the customer of a matter that's relevant to a customer. So anything to which the Company has been asked to or directed to provide communication?

A.L.J. KERSEY: I'm going to ask you to -- I'm going to ask you to restate that question.

MR. STEIFMAN: I'm referring to communication programs which were meant to deliver information to customers under the direction of the Public Service Commission.

A.L.J. KERSEY: Yes, but I think I'm --- we're missing the question part now. So you've -- you've answered what -- you kind of spoken to what directly you're looking for. What's the question that you're asking of the witness?

MR. STEIFMAN: The purpose of those

communications in that context of informing the customer.

MR. SHERWIN: Your Honor, I'm going to object on the basis of vagueness. We're not sure what communications, even now, not sure what communications he's talking about.

MR. STEIFMAN: Well, as an example, I mentioned the SC rate 1-4 rollout, when that was created, and there was a process to inform customers in advertising and in mailing and inserts as an example -- concerning the example that you're seeking.

A.L.J. KERSEY: Can the witness answer the question?

MS. ROBERTS: Yes, as it relates to that example.

MR. STEIFMAN: Thank you. And these programs have been designed to evaluate how to make information understandable to the average customer, correct?

MS. ROBERTS: Yes.

MR. STEIFMAN: Thank you. And Con Edison has relied on them in deciding how to communicate with its customers, correct?

MR. SHERWIN: Object. It's not clear what kind of reliance the question is asking about. It's very unclear. I don't know.

MR. STEIFMAN: In confirming the reason of these communications, as an example, SC rate 1-4 rollout, was designed was because Con Edison could rely on them to communicate appropriately to the customers.

A.L.J. KERSEY: Mr. Steifman, I'm going to ask you -- I'm going to ask you questions. Two things. Number one, you keep bringing up the example of SC rates --

MR. STEIFMAN: 1-4.

A.L.J. KERSEY: -- SC 1-4, excuse me, 1-4. Can we just use that? I mean, if you could pose the question with respect to that, why don't you try to pose it specifically?

MR. STEIFMAN: Certainly. Thank you, Your Honor.

In -- in designing the SC rate 1-4 rate rollout, which as you answered appropriately, was designed to evaluate how to make information understandable to the average customer. Con Edison has relied on these communication -- has relied on

these processes to design its communications with its customers.

MR. SHERWIN: Your Honor, the Company will object again. We're not sure on relevance grounds what the SC 1 rate for customer communication rollout has to do with the Joint Proposal in this proceeding, or -- and it's beyond the scope of the witnesses direct testimony.

A.L.J. KERSEY: Mr. Steifman?

MR. STEIFMAN: I'm happy to answer that. The rate 1-4 serves as an example of an instance where information was made available. It has to do with billing transparency. The point is that there are instances where it's been done, and I'm establishing the standard of conduct the Company has operated under to present information. And ultimately, that same standard should be applied to any context of it, not just this one example that we're focused on.

A.L.J. KERSEY: I'm going to let the Company answer the question.

MS. ROBERTS: Could you repeat the question, please?

MR. STEIFMAN: I will try. Maybe --

MS. ROBERTS: Okay.

MR. STEIFMAN: -- these can be read back.

A.L.J. COSTELLO: We have -- this is being -- it's being recorded.

MR. STEIFMAN: Okay. No problem.

In using the SC 1-4 rate roll out as an example -- that's the example, would you agree that the information that the way that product program was defined, that you've already affirmatively said was to make the information understandable to average customers, is the process that Con Edison relies on in establishing how to communicate with its customers. That that represented the model that would be used to communicate with its customers.

MR. SHERWIN: I would object on the basis, again, that this is vague, what he means by processes and reliance and models. There's no foundation for any of this, and it's beyond the scope of the witnesses' testimony.

A.L.J. COSTELLO: Are you -- are you limiting your question now to the SC 1-4?

MR. STEIFMAN: I am.

A.L.J. COSTELLO: Okay. If the witness can answer it, the witness can -- can respond whether she can answer it or not.

MS. ROBERTS: I --

A.L.J. COSTELLO: You know you can respond --

MS. ROBERTS: -- it's as it relates to SC 1-4 only. I -- different programs are run in different manners, so I can't answer that across the board.

MR. STEIFMAN: Okay. Thank you. In fact, Con Edison has a responsibility and a duty to communicate clearly and completely with its customers. Some examples are 16 NYCRR 11.16, which requires that residential customers provide clear -- provide clear and understandable bills in their foreign language. 16 NYCRR 271.2, implying that late payment charges provide all the information relating to all such charges, and 16 NYCRR 143.9 and 16 NYCRR 275.9.

A.L.J. KERSEY: Mr. Steifman, is there a question?

A.L.J. COSTELLO: The question is these are examples of Con Edison --

A.L.J. KERSEY: If they're -- if they're in regulations, the regulations speak for themselves. So the witness doesn't have to respond with respect to what's in the regulations.

MR. STEIFMAN: Okay. I'll follow-up. Thank you, Your Honor.

Are you aware that the New York State Legislature is also considering implementing clear and complete communication requirements between the utility and customers?

MR. SHERWIN: Your Honor, I object. Lack of foundation. Assumes facts not in evidence. Beyond the scope.

A.L.J. COSTELLO: Yeah. Mr. Steifman, it also isn't relevant to the -- to the extent that what the legislature is considering. If you have a bill that has been enacted by the Governor, that's a different story. If it's simply something that's for the legislature for consideration, that is not relevant to this proceeding. If it eventually gets passed, then the Company would have to comply to the extent that it applies to the Company.

So we're going to sustain the objection on that question.

MR. STEIFMAN: Okay. Thank you, Your Honor. I'll move on.

Would you agree that the one area of utility customer communication that is critical to get right is billing?

MR. SHERWIN: Your Honor, I object that the question is argumentative, and it's also vague and ambiguous as to what the question means by one area and critical. These are vague, meaningless terms that makes it impossible for the witness to answer.

A.L.J. KERSEY: Mr. Steifman?

MR. STEIFMAN: Is it important that the utility bill be accurate?

A.L.J. KERSEY: We're going let the witness answer that question.

MS. ROBERTS: Yes, to the extent systems and data can produce an accurate bill.

MR. STEIFMAN: Are you saying that there are systems and data that can't produce an accurate bill?

MS. ROBERTS: No. What I'm saying there could be data missing on rare instances.

MR. STEIFMAN: Well, when data's

missing, do you issue a bill?

MS. ROBERTS: We issue estimated bills.

MR. STEIFMAN: Okay. Those estimated bills ultimately are corrected, correct?

MS. ROBERTS: Yes.

MR. STEIFMAN: In every instance?

MS. ROBERTS: I -- I am not certain.

MR. STEIFMAN: Okay. I'll move on.

Do you agree that the Company has a duty, responsibility to assist its customers with billing inquiries?

MR. SHERWIN: Your Honor, I object to the extent this calls for a legal conclusion about what the Company has a duty to perform.

MR. STEIFMAN: In the -- I'm sorry. I'll wait for you. My apologies.

A.L.J. KERSEY: Can you repeat your question again, Mr. Steifman?

MR. STEIFMAN: Does the Company have a duty -- does the Company have a responsibility to assist its customers with billing inquiries?

MR. SHERWIN: Again, object to the extent it calls for a legal conclusion.

A.L.J. KERSEY: We're going to -- we're going to overrule that objection. The witness can answer.

MS. ROBERTS: Yes.

MR. STEIFMAN: Thank you. What about the -- what about with regard to inquiries concerning service classification?

MS. ROBERTS: Yes.

MR. STEIFMAN: What about inquiries related to addressing and understanding the cost that they pay for their gas and electric service?

MR. SHERWIN: I'm going to object that it's vague as to what the question means by -- what the question means by cost and --

A.L.J. KERSEY: Mr. Steifman, is your question to the witness that you are asking whether the Company -- whether the bill should be understandable -- the costs that are accrued to the customer should be understandable, or if they have a question they should be able to ask that of the Company?

MR. STEIFMAN: Correct, Your Honor.

A.L.J. KERSEY: We're going to allow it.

MS. ROBERTS: The bill should be understandable in compliance with regulations. And customers may ask questions to the Company.

MR. STEIFMAN: What do you mean by compliance and regulations?

MS. ROBERTS: Those regulations, through the Public Service Commission, under which the Company is obligated to comply.

MR. STEIFMAN: So are you saying there are instances where a bill can be rendered, and the customer doesn't have to understand all the components of the bill?

MR. SHERWIN: Your Honor, I object in that calls for speculation about what customers may or may not understand.

MR. STEIFMAN: I think we're talking about the average customer.

MR. SHERWIN: Again, in that case --

A.L.J. KERSEY: Can you ask the question again, Mr. Steifman?

MR. STEIFMAN: Sure. I -- I don't know if this is the exact question.

A.L.J. COSTELLO: I mean she was saying that to the extent --

MR. STEIFMAN: Right.

A.L.J. COSTELLO: -- if regulations required (indiscernible), that's what they provide.

MR. STEIFMAN: Right, right, exactly.

A.L.J. COSTELLO: All right?

MR. STEIFMAN: So --

A.L.J. COSTELLO: So that's -- again, the regulations speak for themselves. Are you saying are there some bills that are not covered by any regulations?

MR. STEIFMAN: You're asking me?

A.L.J. COSTELLO: I'm asking what your question is. Is that -- is that what you're trying to get at, or is there something -- because otherwise they're providing bills that comply with the regulations they're saying.

MR. STEIFMAN: Well, I'm asking are there bills that comply with the regulations, which aren't understandable by the average customer.

A.L.J. COSTELLO: That's -- that's not something that they should be able to testify about. That's something that the individual customers are -- it's their understanding. And they have no basis for determining the customer's understanding.

MR. STEIFMAN: I will move on. Thank you, Your Honor.

Do you agree that providing this assistance is in the public interest?

A.L.J. KERSEY: What assistance, Mr. Steifman? Can you be clear?

MR. STEIFMAN: The question is regarding the assistance in customers being able to -- addressing customer billing inquiries, questions relating to the service classification, and to understanding the costs in their bills.

A.L.J. KERSEY: I'm going to -- I'm going to ask you to break that question down.

MR. STEIFMAN: Okay. All right. Thank you.

Do you agree that providing assistance with billing inquiries, questions about service classification, and charges on their bills -- customer charges on the bills, is in the public interest?

MR. SHERWIN: Your Honor, to the extent that public interest is a legal standard applied by the Commission, I would object that it calls for a legal conclusion.

A.L.J. KERSEY: We're going to sustain that objection.

MR. STEIFMAN: Would you agree that those items of billing inquiries and service classifications and charges is something that's fundamentally the job of Con Edison?

MR. SHERWIN: I would, again, object to the vagueness of the phrase fundamentally the job of Con Edison. This is asking for characterizations. It is not asking for facts.

MR. STEIFMAN: I'll rephrase it. I'll rephrase it.

A.L.J. KERSEY: If you could rephrase it, that would be great.

MR. STEIFMAN: In your role in customer service group, is one of the main responsibilities assisting customers with billing inquires, questions about their service classifications, and explaining charges on their bills?

MS. ROBERTS: Yes.

MR. STEIFMAN: Okay. Thank you. In the JP, in section 7, part 14, page 93 of the JP.

A.L.J. KERSEY: Can you repeat that,

Mr. Steifman? Just page -- what page it was? You just said it.

MR. STEIFMAN: Page 93.

A.L.J. KERSEY: Thank you.

MR. STEIFMAN: Of the JP. It is titled billing transparency. That section contains a single paragraph related to bill transparency. This is the only section discussing the Con Edison's responsibility to billing transparency in the JP, in the Joint Proposal, correct?

MR. SHERWIN: I would again object to the witness testifying, and to compound questions. Ask individual questions.

A.L.J. KERSEY: I believe Mr. Steifman just asked if the paragraph on bill transparency was the only paragraph in the Joint Proposal that addressed bill transparency. Is that correct?

MR. STEIFMAN: Yes, Your Honor.

A.L.J. KERSEY: I think that the witness can answer that question.

MS. ROBERTS: As the only paragraph with the title bill transparency. I cannot speak to the entirety of the Joint Proposal, and anything that might be interpreted as bill transparency that's

mentioned.

MR. STEIFMAN: And this section involves only information related to taxes, correct?

MS. ROBERTS: Yes.

MR. STEIFMAN: And these taxes -- sorry. Are these taxes a billing component of the customer's bill, meaning a direct charge based on the rate or usage for an individual customer?

MS. ROBERTS: They are a component of the customer's bill. I'm -- I'm not sure about the latter half.

MR. STEIFMAN: Thank you. Wouldn't it be in the public interest to provide customers with the breakdowns and details of all the charges that comprise their work?

MR. SHERWIN: Your Honor, I object on the grounds that it is speculative, and that it calls for a legal conclusion about what it is or is not in the public interest, a legal standard applied by the Commission.

A.L.J. KERSEY: We're going to sustain that. It calls for an interpretation of legal standard.

MR. STEIFMAN: In referring to what

you said earlier that was one of the main purposes of your bill to provide various types of information, would providing a breakdown, in detail, of all the charges that comprise a customer's bill to be part of that responsibility?

MR. SHERWIN: Your Honor, I will object in that I believe that mischaracterizes the witness's testimony. The witness did not testify, to my recollection, about the purposes of the bill or the role of any breakdown on the bill.

MR. STEIFMAN: What -- I'm waiting for your order.

A.L.J. COSTELLO: No. Go ahead. Do you have response to that?

A.L.J. KERSEY: Do you have a response, Mr. Steifman?

MR. STEIFMAN: Yeah. I'm not asking her to -- for any opinion other than to answer a question about this particular type of information which is the breakdown in detail that would be part of answering questions on billing inquiries and rate questions and charge questions.

MR. SHERWIN: But that was not the question asked.

A.L.J. COSTELLO: That was not. So reframe your question.

MR. STEIFMAN: My apologies.

Would be -- would providing a detailed breakdown, or providing a breakdown and the details of all the charges that comprise their bill, be in keeping with your focus of assisting customers with billing inquiries, questions about their service classifications, and general questions about their charges?

MR. SHERWIN: Your Honor, I object in that it calls for speculation. I also object in that it is vague as to what the question means by a breakdown of bills because the Company already provides a breakdown pursuant to Commission regulations.

A.L.J. KERSEY: Mr. Steifman, the Company has already stated that they are in compliance with Commission regulations when it comes to their billing. Are you -- you're asking whether --

MR. STEIFMAN: Well, is it their position - this is a question that's among that. Every line aspect can only be addressed and provided

if it's directed from -- by the Commission. There isn't information that the customer can ask for to understand their bill unless it's directly required by the Commission, it doesn't have to be provided?

A.L.J. COSTELLO: No, I don't think that's -- let me just clarify something, so -- and we'll move forward with this. The -- the question is, if they -- they said they can respond -- you're asking two different things. You're asking about what's provided on a bill, and you're asking about what is information that can be provided by customer service representatives on the phone. So those are two different things.

MR. STEIFMAN: Then, I wasn't clear, Your Honor. Let me rephrase the question.

My question is, in keeping with what you've already said are the responsibilities of the customer service unit, wouldn't a breakdown in detail of all the charges be in line with those responsibilities? I'm not saying that they are available, but they should be made available or that they would be relevant to answering those questions. I'll -- I'll change that. Let me repeat that. Given what you've said are the responsibilities of the

customer service unit, should a breakdown and details of all the charges be available to a customer?

MR. SHERWIN: Your Honor?

A.L.J. COSTELLO: Available in what way?

MR. STEIFMAN: Either --

A.L.J. COSTELLO: Line billing for the bill, information sent with the bill, or through customer service inquiries?

MR. STEIFMAN: In any manner that they chose as long as they're available. Meaning, on the bill, or on a website, or sent directly to a customer upon request, but that they be made available to the customer to clarify a billing charge.

MR. SHERWIN: Your Honor, the Company objects that this is speculative, it's argumentative, and it's vague in that we don't know what information we're talking about, and we don't know what billing situation, and we don't know what a customer may or may not find useful in any unspecified situation. It's too vague to be answerable.

MR. STEIFMAN: Your Honor, before you rule? I have examples, so we could do on the specific examples when I get to it in a moment

specifically.

A.L.J. COSTELLO: Okay. Yeah. So I would -- yeah, that's I would suggest is do a detailed -- specific information that you're seeking to find out.

MR. STEIFMAN: Yes, Your Honor, I will do that. Okay. I'm going to skip to that and then I'll come back to where I was going continue from there.

As an example, the gas cost factor, data, values, and the formulas that are used in its calculation are not disclosed. And the proposed --

MR. SHERWIN: Your Honor, I object to the testimony.

MR. STEIFMAN: I didn't finish my question.

A.L.J. COSTELLO: Yeah, that -- basically, you'd have to find out if that's -- if they agree to that. I mean, you're just saying that it's not disclosed.

MR. STEIFMAN: No, they've already --

A.L.J. COSTELLO: You have to establish for the witnesses that they agree that it's

not disclosed. So just do it --

MR. STEIFMAN: Yeah, that's fine.

A.L.J. COSTELLO: -- do it that way first.

MR. STEIFMAN: Yes, I understand. Yes. Thank you, Your Honor.

With regard to the gas cost factors, are the data, values, and formulas used in that calculation currently disclosed to customers?

MR. SHERWIN: Your Honor, I object on the grounds that this is not relevant to the Joint Proposal. The gas cost factor is a supply-related charge. This is a proceeding to establish delivery rates. And there's nothing in the witness's testimony regarding disclosure of components of the gas cost factor. So this goes well beyond anything to which the witness has testified.

MR. STEIFMAN: And I'd like to address that --

A.L.J. KERSEY: Mr. Steifman?

MR. STEIFMAN: -- before you decide, Your Honor.

A.L.J. COSTELLO: Yeah.

A.L.J. KERSEY: Go ahead.

MR. STEIFMAN: It is my understanding that the Joint Proposal is a process by which parties agree to what should be in there. And to the extent things aren't in there, that's the reason why there's an opportunity to be in the opposition. There is a section on billing transparency which I read to mean that the issue of billing transparency is a real issue, is a known issue. And by the fact that the real estate tax issue was addressed in it demonstrates that at least that is. And it's my contention that there are others, and those are omitted. And that's exactly why I'm in opposition to the Joint Proposal.

MR. SHERWIN: Your Honor, if I may be heard? Property taxes are a component or a factor into the delivery charges that the Company charges. They were also the subject of testimony in this proceeding from interested parties unlike the gas cost factor components.

A.L.J. COSTELLO: Can I just clarify with you? Is there any information in the -- well, let me ask the witness.

Is there anything -- any information in bills that deal with supply charges?

MS. ROBERTS: Yes.

A.L.J. COSTELLO: There are? Okay. So his position is that there's other information regarding supply charges, at least with respect to this question, that should be included in the bills. It's not addressed in the Joint Proposal. To the extent there's -- I don't know that -- what -- it was raised, but I think it's actually fair game for a question at this point. So let's hear the question again, and we can take it from there.

MR. STEIFMAN: Well, have they acknowledged that those data and values and formulas are not disclosed?

A.L.J. COSTELLO: You may have to repeat your question because we've got a little --

MR. STEIFMAN: Okay. Well, my question is with regard to the gas cost factor, are the data values and the formulas that are used in this calculation disclosed to customers?

MR. FLISHENBAUM: The Company files -- I'm sorry. Yan Flishenbaum for the --

A.L.J. COSTELLO: Oh, go ahead. I was just saying you could answer.

MR. FLISHENBAUM: Thank you.

MR. STEIFMAN: Go ahead.

MR. FLISHENBAUM: The Company files monthly statement -- statements with the Commission and as well as available on their website that show the information behind the gas cost factor.

MR. STEIFMAN: The question I had asked was is that made available to the customer?

MR. FLISHENBAUM: The customer can access those statement both on the Company and the Commission's website.

MR. STEIFMAN: To clarify, you're saying that that information that I just referenced is available with regard to the customer's individual bill?

MR. FLISHENBAUM: The rates that are seen on the customer bill are -- the customer is able to look them up on the Company's website or the Commission website related to that month statement.

MR. STEIFMAN: I'm not talking about their rates. I'm talking about the gas cost factor. Is that what you're referring to?

MR. FLISHENBAUM: Yes.

MR. STEIFMAN: And that all the data, values, and formulas are located there and

accessible? Is that what you're saying?

MR. FLISHENBAUM: What I'm -- what I'm saying is that the Company provides information related to the development of gas cost factor as following Commission regulations.

MR. STEIFMAN: Again, I don't believe that information is available to customers.

Your Honor, I just point out --

A.L.J. COSTELLO: Let me just? He asked a specific question about, and you just specified the specific information you're looking for about the gas cost factors. Is that provided to the public, or not? I mean, I understand you're saying the information is provided pursuant to regulations that it's available on the website. It's available on DPS website, or DPS. It can be looked up by the public. So there was specific information he was referring to underlying the gas cost factor.

And if you would just clarify what that specific information was again?

MR. STEIFMAN: The data, values, and formulas that are used in calculating the gas cost factors for each customer.

A.L.J. COSTELLO: Now, is that

information available on the website or on DPS's website?

MR. SHERWIN: Your Honor, I would object to the statement of gas cost factor for each customer as implying that each -- different customers have different gas cost factors which I don't know to be factually accurate.

MR. STEIFMAN: They absolutely do, Your Honor.

A.L.J. COSTELLO: Well, you can't -- you can't establish that. You have to have to establish this. This is an objection. You're not testifying about it. You have to establish that that's in fact the case, and they under -- they know that. So go ahead. Try to do that through the witness.

MR. STEIFMAN: Well --

A.L.J. COSTELLO: You can try to do that through the witness.

MR. STEIFMAN: Okay. Is the information regarding the data, values, and formulas that are used in calculating the gas cost factor provided to the individual customer?

A.L.J. COSTELLO: And I think you can

say whether it's provided. But that doesn't -- that doesn't -- that's not a response saying it, you know, it's available. You can -- whatever it is the response is, he just wants to know if that is information that's provided.

MR. FLISHENBAUM: Your Honor, can I clarify that which is we don't develop gas cost factor for individual customers. They're developed on a service class basis.

A.L.J. COSTELLO: Okay. Explain that. Explain it. Sure.

MR. FLISHENBAUM: So as the Company develops monthly gas cost factor rates, they're developed on a service cost basis, and the customer is able to look that up on the Commission website or the Company website. I understand that not all granular details behind those calculations are available on the website. Is that what you're asking about?

MR. STEIFMAN: Yes. Absolutely. Granular details.

MR. FLISHENBAUM: But they're not related to an individual customer.

MR. STEIFMAN: Well, however they're

related to customers, whether in groups or individually, is the relevant question. But I think you already answered the question. I will --

A.L.J. COSTELLO: I believe he did.

MR. STEIFMAN: I will move on.

A.L.J. COSTELLO: And I just want to clarify that. So you're saying that granular type information is not available whether it's for, you know, for the whole thing and overall?

MR. FLISHENBAUM: There's a level of granular detail that is not available, but it is provided to DPS staff on a monthly basis for them to verify on behalf of customers.

MR. STEIFMAN: Are you aware that we've asked the Department of Public Service Commission for that information, and they told us that they don't have that information?

MR. SHERWIN: Your Honor, I object to the statement, the Department of Public Service Commission's.

MR. STEIFMAN: He doesn't know them.

MR. SHERWIN: Being two different things.

A.L.J. COSTELLO: How would how would

they be aware that you've --

MR. STEIFMAN: Right. So didn't say, no, I guess, but.

Con Edison and --

A.L.J. KERSEY: I'm just going to break in for a second. The witness was just saying that you filed that information with the Commission. Is it filed on DMM? Is it publicly available? I'm sorry, with the Department of Public Service. My apologies. Is it publicly available or do you find it --

MR. FLISHENBAUM: Are you referring to the granular level of detail?

A.L.J. KERSEY: Yes, yes.

MR. FLISHENBAUM: No, that is not publicly available.

A.L.J. KERSEY: Okay. Thank you very much.

MR. STEIFMAN: Are you aware that when we requested this information from Con Edison, they replied that this information is confidential?

MR. FLISHENBAUM: I am.

MR. STEIFMAN: Thank you. Why is the data confidential?

MR. FLISHENBAUM: At that more granular level of detail, there is information related to the Company's forecasting, hedging practices, as well as in the case of the gas cost factor data related to pipeline contracts which is confidential.

MR. STEIFMAN: The information that I'm asking about are the final values. They have nothing to do with strategy or asking for contracts or hedges. It's what is the number used in the calculation?

A.L.J. KERSEY: Well, Mr. Steifman, actually, you asked for data, values, and formulas, correct? So it wasn't just as simple as the value?

MR. STEIFMAN: Right.

A.L.J. KERSEY: Or are you changing your questioning because --

MR. STEIFMAN: No, no. I'm addressing what he's trying to say. I believe I want to clarify is that there are components that are proprietary because they would give away some strategy.

A.L.J. COSTELLO: Okay.

MR. STEIFMAN: And what I'm asking is --

A.L.J. COSTELLO: This is not an appropriate forum to address confidentiality of documents. There are other ways to address confidentiality of documents, not through a witness to -- on the stand to ask about why they -- the Company maintains that it's confidential.

MR. STEIFMAN: Okay. Your Honor, thank you. I'll move on to the market supply charge.

While the tariff specifies each input to the market supply charge, Con Edison does not publish granular forecasts or provide the raw inputs for analysis by customers or their representatives. Additionally, the charge components and the --

A.L.J. COSTELLO: Again, you'd have to --

A.L.J. KERSEY: Is there a question?

A.L.J. COSTELLO: You have to establish that through the witness.

MR. STEIFMAN: Okay.

Does --

My apologies.

A.L.J. KERSEY: Okay.

MR. STEIFMAN: Does Con Edison publish the granular forecasts and the raw input data used in

calculating the market supply charge?

MR. FLISHENBAUM: No, for the same reason as we talked about on the gas cost factor.

MR. STEIFMAN: So the charge components and adjustment factors are updated and are filed publicly, but the calculation of how those numbers were calculated is not provided. Can you explain what's confidential about that?

MR. SHERWIN: Your Honor, objection as being compound, as being testimonial, and as being argumentative.

A.L.J. KERSEY: I think this -- Mr. Steifman, this issue is going against the basis of the confidentiality.

MR. STEIFMAN: Okay. I'll continue then.

A.L.J. KERSEY: We're going to sustain the objection.

MR. STEIFMAN: Last example, because it touches a different aspect of confidentiality. BTU factor. In calculating the BTU factor, are the method, process, or other calculations Con Edison uses to calculate the gas burned for each city gate that's taken hourly throughout the year and each day

provided to the customer?

MR. SHERWIN: Your Honor, I will object again on relevance grounds. The BTU factor is not an issue that is in the Joint Proposal. It's not an issue that's been in the witness's testimony, and goes far afield from the witness's direct examination here.

A.L.J. KERSEY: Mr. Steifman, your response?

MR. STEIFMAN: So this example, first of all, doesn't touch on confidentiality. Con Edison didn't imply that he couldn't make it available because of confidentiality. Con Edison said that current technology systems do not have the capability to publish this data as described to customers. And I'd like to ask --

A.L.J. COSTELLO: Where is that information? Where did Con Edison --

MR. STEIFMAN: In a request that we made. This is the response that we got.

A.L.J. COSTELLO: Okay. But the request that you made, it has to be --

MR. STEIFMAN: Your Honor, I will --

A.L.J. COSTELLO: -- use the response

to the request.

MR. STEIFMAN: Yes. Okay. So what prevents that information -- what prevents that information from being made available to the customer?

MS. ROBERTS: As stated, it's not in the existing systems.

MR. STEIFMAN: All right. Could you explain that? I don't understand that question -- that answer.

MS. ROBERTS: Could you repeat the detail so I can answer you correctly?

MR. STEIFMAN: The answer was given that this information relating to the BTUs.

A.L.J. COSTELLO: Okay. First of all, again, the answer is not in the record. You're reading something, you're reading an answer, or you're referring to an answer that's not in the record. If you have an interrogatory response that contains that response, then you have to show it to the witness. You can ask questions about it as long as they are familiar with it. Or otherwise, it comes into the evidentiary record.

MR. STEIFMAN: Well, I think she was

answering the question.

A.L.J. COSTELLO: I don't care if she was answering the question.

MR. STEIFMAN: Okay.

A.L.J. COSTELLO: You have to provide the interrogatory for them to look at.

MR. STEIFMAN: I have that here. Can I give?

A.L.J. COSTELLO: You can, and you'd have to provide it to counsel, provide me a copy, provide the judges a copy. You can't just read something as if it's in evidence if it's not in evidence.

MR. STEIFMAN: I don't have a copy. So I'm precluded from in any way introducing this letter?

A.L.J. COSTELLO: Well, don't testify, or don't specify what's in the response. If you want to ask a question, a general question, you can't rely on what was responded to that's not -- you're not providing us.

MR. STEIFMAN: Yes, Your Honor. I was trying to go in that direction by asking follow-up questions.

A.L.J. COSTELLO: Okay. Go ahead. I'm sorry. I'm just try --

MR. STEIFMAN: It's okay. I just wanted to clarify --

A.L.J. COSTELLO: -- just trying to keep the record clear.

MR. STEIFMAN: -- that I took your -- I'm taking your advice to heart.

With regard to the methods that we -- and processes and information that I'd asked about with regarding the BTU factor, the response was it's not made available to customers, correct?

MR. FLISHENBAUM: Correct.

MR. STEIFMAN: Can you explain what prevents it from being made available?

MR. FLISHENBAUM: Does the response speak for itself?

MR. STEIFMAN: No. Is it because it's confidential? Does --

MR. FLISHENBAUM: I don't have the interrogatory response, but I believe you mentioned that response was to the current systems are not able to produce the information.

MR. STEIFMAN: Okay. So that's your

answer. The current systems aren't able to produce the information. I just want to clarify. That is your answer?

MR. FLISHENBAUM: As the Company responding to that interrogatory.

MR. STEIFMAN: Okay. Thank you. So what exactly about the technology makes it unavailable to the public? Because I'll even ask -- well, answer that question, please?

MS. ROBERTS: We don't have the information.

MR. STEIFMAN: Who has the information?

MS. ROBERTS: I'd have to see who responded to that interrogatory and learn more of the details.

MR. STEIFMAN: But this information is used to produce billing to oil and gas customers, correct?

MR. FLISHENBAUM: The BTU factor is used to produce billing.

MR. STEIFMAN: Right.

MR. FLISHENBAUM: That's right.

MR. STEIFMAN: So to produce that

billing, all the underlying information would have to be under Con Edison's control and processed in whatever fashion is used to derive those factors to then include it in the bill, correct?

MS. ROBERTS: Yes.

MR. STEIFMAN: Okay. So you just said a moment ago that the reason that information, which you just said Con Edison analyzes and produces for its billing, cannot be made available because of some technologies, and I had asked what is that technologies?

MS. ROBERTS: I think we've made it clear that we are not familiar with the details of the interrogatory. But we support if the Company submitted it, the accuracy of the information. So to the extent that you informed us --

MR. STEIFMAN: Okay.

MS. ROBERTS: -- that we said it was about the systems, we agree, but we don't have further information.

A.L.J. COSTELLO: All right. They've now responded that they're relying on interrogatory. Without it being in the evidence, we're going to stop this line of questioning.

MR. STEIFMAN: Well, can I ask one follow-up question?

A.L.J. COSTELLO: Try it.

MR. STEIFMAN: This information is basically a grouping of data collected that's presented to you from the various sources that are then used in some calculation for the BTU factor, correct?

MS. ROBERTS: It seems so, yes.

MR. STEIFMAN: So why can't that be presented in an Excel spreadsheet?

MS. ROBERTS: I don't have familiarity with the details of that data --

MR. STEIFMAN: Correct.

MS. ROBERTS: -- to know if it can be --

MR. STEIFMAN: I'll move on.

MR. FLISHENBAUM: -- presented in an Excel spreadsheet.

MR. STEIFMAN: I'll move on. This is my final question. In light of all the billing information that the Company doesn't provide, at least the information we're able to touch upon now, is it your position that the single four-sentence

paragraph on page 93 of the joint -- of the JP addressing bill transparency in the whole 134-page Joint Proposal constitutes all the relevant bill transparency that's relevant to a customer's billing?

MR. SHERWIN: Your Honor, objection. It's argumentative.

A.L.J. COSTELLO: That's sustained.

A.L.J. KERSEY: Mr. Steifman, that's a statement.

A.L.J. COSTELLO: You can make arguments based on what the JP says, but that's not something for them to respond to.

MR. STEIFMAN: Thank you very much, Your Honor. I am finished.

A.L.J. KERSEY: You want to redirect staff for Con Edison? Any redirect?

MR. SHERWIN: Give us one second?

A.L.J. KERSEY: Sure.

A.L.J. COSTELLO: Yup.

A.L.J. KERSEY: Yeah. Absolutely.

MR. KONECNI: No redirect from the Company, Your Honor.

A.L.J. KERSEY: Okay.

A.L.J. COSTELLO: Thank you.

A.L.J. KERSEY: Thank you very much.

Next, we move to the cross-examination of the witness panel by Mr. Ellenbogen.

MR. ELLENBOGEN: Thank you.

A.L.J. KERSEY: Mr. Ellenbogen, you can start.

MR. ELLENBOGEN: Yes, Your Honor, Judge Costello, US Interrogatory Number 6 are all of the capital programs and projects proposed in the JP necessary for Con Edison to provide safe and reliable service. If not, explain why those programs and projects are included in the JP? Okay. Now, on Monday at the pre-trial hearings, everybody was objecting to my exhibit. So this is one of my exhibits. It is page 66 of the JP. All right. So I have to recalibrate a little bit from what --

A.L.J. KERSEY: I'm good. I've got a copy. So you can hand those out to other people. Yes.

(Cross-talk)

MR. ELLENBOGEN: Okay. I have the same thing.

A.L.J. KERSEY: Thank you very much.

MR. ELLENBOGEN: Okay. Did anyone

else wants one?

A.L.J. COSTELLO: Yeah, I believe people -- most people should have copies of the Joint Proposal.

MR. ELLENBOGEN: Okay. All right.

A.L.J. COSTELLO: So just -- what -- the ALJ question is relevant, but you can ask your question with respect to page 68.

MR. ELLENBOGEN: Okay. The JP on page 68 says, "The engagement plan will include promoting SC1 Rate IV in the Company's Clean Heat Program literature marketing an outreach targeting heat pump customers, educational initiatives for contractors and industry stakeholders, and materials and guidance to help stakeholders access tools and resources." Did I read that correctly? It's in the middle of page 68.

A.L.J. COSTELLO: That's fine.

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: That was a direct quote.

MR. ELLENBOGEN: Now, I'd like to ask the Company or the PSC or anybody if they could please define clean heat to me?

MR. KRAMER: Your Honors, I just want to have the record reflect that Commission is not here testifying today.

A.L.J. COSTELLO: Right.

MR. KRAMER: This is staff --

MR. ELLENBOGEN: Oh.

MR. KRAMER: -- of the Department of Public Service.

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: But Mr. Ellenbogen, the Clean Heat Program is something that was established by the Commission.

MR. ELLENBOGEN: Yes, I agree. I'm not questioning that. I'm just asking for the definition of what they're calling clean.

A.L.J. COSTELLO: They can't provide a definition what the Commission has determined is part of the Clean Heat Program.

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: Is this part of the Clean Heat Program? That you can ask them.

MR. ELLENBOGEN: Well, this is where Exhibit 21 came in, which was additional. It is an NYSERDA document, and I will -- I printed one full

copy, but there's only one particular clause in the abstract that's relevant. Can I read from that?

A.L.J. COSTELLO: All right. Hold --

A.L.J. KERSEY: Hang on just a second.

A.L.J. COSTELLO: Yeah, a second.

MR. ELLENBOGEN: It's an NYSERDA document. It's official.

A.L.J. KERSEY: Right. But we --

A.L.J. COSTELLO: Are you providing? You're providing? You have it?

MR. ELLENBOGEN: I have a bunch of copies for people.

A.L.J. COSTELLO: Okay. Wait a second. We'll have to --

(Cross-talk)

A.L.J. KERSEY: So for the record, this is identified as Exhibit 21 on your --

MR. ELLENBOGEN: Yes.

A.L.J. KERSEY: in your --

MR. ELLENBOGEN: Yes.

A.L.J. KERSEY: -- proposed affirmation of the NYSERDA analysis of residential heat pump potentials --

MR. ELLENBOGEN: Yeah.

A.L.J. KERSEY: -- and economics. The final report from January 2019.

MR. ELLENBOGEN: Uh-huh.

A.L.J. KERSEY: Okay. This is another document that we can take administrative notice of, so we will do so.

And you are referring to -- I believe you said you're referring to?

MR. ELLENBOGEN: Exhibit 21.

A.L.J. KERSEY: No, what page of the -- what page of the analysis of --

MR. ELLENBOGEN: Of this?

A.L.J. KERSEY: -- residential heat pump?

MR. ELLENBOGEN: I'm only looking at the abstract, which is on page ii.

A.L.J. KERSEY: Okay.

A.L.J. COSTELLO: Okay. And have you provided that to the witnesses?

MR. ELLENBOGEN: I put a whole -- where did they all go? Who do I give it to?

A.L.J. COSTELLO: We had indicated the number of copies that were needed.

MR. ELLENBOGEN: No, I know. I

thought I brought them.

A.L.J. COSTELLO: Okay. So just --

MR. ELLENBOGEN: I brought twenty of each. I just don't know who I'm supposed to give them TO.

A.L.J. KERSEY: Oh, just -- yeah, just put them on the table. They'll distribute them. I'm not sure what the question is yet, so.

A.L.J. COSTELLO: Yeah, mark it for -- just say mark it for identification so that we have --

A.L.J. KERSEY: You want to give it a number?

A.L.J. COSTELLO: Yeah.

A.L.J. KERSEY: Well, wait. I thought we weren't doing that for certain things. We're taking administrative notice of them.

A.L.J. COSTELLO: We're going to mark it for identification. It's being used in the transcript.

A.L.J. KERSEY: Gotcha.

A.L.J. COSTELLO: So we'll mark it for --

A.L.J. KERSEY: Okay. We are going to

mark this for purposes of identification as for purposes of the transcript. Let's see. Just trying to make sure where we're at.

A.L.J. COSTELLO: I think we're on 1238.

A.L.J. KERSEY: Yeah. As Exhibit 1238.

Mr. Ellenbogen, do you have a question with respect to this?

MR. ELLENBOGEN: Yes, I do. If you read the abstract, I've highlighted it on the last page of your document. It says,

> "This report describes NYSERDA's analysis of the costs, benefits, and adoption opportunities for small-scale residential heat pumps in New York State over the period to 2025. The report concludes that based on conservative application of constraint assumptions, heat pumps could serve approximately half of the thermal energy load in the small residential sector with potential to increase this estimate as barriers such as landlord-tenant constraints or availability of hydronic heat pump systems are overcome. Achievable adoption potential for small-scale residential heat pumps is assessed to be around 7.5 trillion BTUs of incremental site energy savings from oil and resistance heating replacements by 2025."

My question is to the Company, did I -- first of all, did I read that correctly? Does

anybody have any issue?

MR. LANG: Can I object at this point, Your Honor? Well, you may be able to take judicial notice?

They haven't laid a foundation for a cross-examination.

A.L.J. COSTELLO: Yeah. Exactly.

MR. LANG: There is no foundation the witness is familiar with this document or is appropriate to ask questions.

A.L.J. COSTELLO: That's right, so.

MR. ELLENBOGEN: Well, I just have one simple question.

A.L.J. COSTELLO: Well, the question, you have to ask them first.

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: You have to ask -- explain -- are they familiar with it?

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: Is this something they would rely upon --

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: -- in determining the rate plan? So that's what you have to find out

from the witnesses. If they're not familiar with this and they don't -- it's not something -- a document that they rely on in making the rate plan, that's -- it's not something you can cross-examine them on. Just ask the question.

MR. ELLENBOGEN: Okay. Well, the question is --

A.L.J. COSTELLO: The question about their familiarity.

MR. ELLENBOGEN: Okay. Is anybody familiar with this, with this document?

A.L.J. COSTELLO: With the specific provision that you're -- not the document.

MR. ELLENBOGEN: Oh. Well, the question I'm asking is where does it say natural gas on it? That's the question.

A.L.J. COSTELLO: That doesn't matter.

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: You have -- you have to. You can make that argument --

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: -- that it doesn't say natural gas.

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: You -- in order for them to -- you want them to say that it doesn't say natural gas. I mean, I --

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: -- you have to show that this is something that they are familiar with, the document itself, the provision that you were quoting, and something that they would rely upon -- or something that they would rely upon in making rates.

MR. ELLENBOGEN: Well, are -- are you aware that NYSERDA never stated that natural gas was included in part of their savings?

UNIDENTIFIED SPEAKER: Yes.

A.L.J. COSTELLO: Did they -- did -- are they familiar with this document?

MR. ELLENBOGEN: Are you familiar with the document?

A.L.J. COSTELLO: And are they familiar -- okay. First, are they familiar with the document?

Go ahead.

A.L.J. KERSEY: Is anyone on the witness panel for the Company familiar with this

document?

IN UNISON: No.

A.L.J. KERSEY: You have to --

UNIDENTIFIED SPEAKER: No. No.

(Cross-talk)

A.L.J. COSTELLO: The document that -- the witnesses have only been provided with an excerpt of the document --

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: -- so they don't have the complete document in front of them. And we're referring to that specific highlighted provision that you read out into the record --

MR. ELLENBOGEN: Yeah.

A.L.J. COSTELLO: -- correctly.

MR. ELLENBOGEN: Yeah.

A.L.J. COSTELLO: So that is what we need to know are they familiar with.

MR. ELLENBOGEN: Are they familiar with the -- the document or just this provision?

A.L.J. COSTELLO: Well, they don't have the document in front of them.

MR. ELLENBOGEN: Okay. Are you -- is anybody familiar with this provision from the NYSERDA

heat pump report?

UNIDENTIFIED SPEAKER: No.

UNIDENTIFIED SPEAKER: No.

UNIDENTIFIED SPEAKER: No.

UNIDENTIFIED SPEAKER: Nope.

A.L.J. COSTELLO: Okay. That is the end of that line of questioning on that document.

MR. ELLENBOGEN: Well, has --

A.L.J. COSTELLO: That's the end of the line of questioning on the document. They're not familiar with it.

MR. ELLENBOGEN: Can I ask a different question?

A.L.J. COSTELLO: With respect to this document?

MR. ELLENBOGEN: No.

A.L.J. COSTELLO: No. You can ask -- sure.

MR. ELLENBOGEN: Okay. Has anybody calculated the emissions profile of heat pumps in the downstate area? Air source heat pumps in particular; not ground source.

MR. HEDEMAN: I'm going to object. Heat pumps were not a part of this panel's issue.

Heat pumps were only addressed through rates for heat pumps.

A.L.J. COSTELLO: So who -- who are -- so the -- are there witnesses that dealt with rates that would have that information?

MR. HEDEMAN: Not present. We consulted what the Independent Intervenors indicated they would be questioning us on and what they've provided, and that was not.

A.L.J. COSTELLO: And that's fair because this document was provided for the first time here today in reference to cross-examination. So you can ask them if -- ask the question. If they don't -- can't answer it, they can't answer it. And that's --

MR. ELLENBOGEN: Your Honor, it was actually provided in some of the other documents that they objected to in the calculations that were part of the exhibits. The calculations regarding the emissions and things like that.

A.L.J. COSTELLO: You can ask the witness panel that we have up here --

MR. ELLENBOGEN: Um-hum.

A.L.J. COSTELLO: -- if they can

answer the question. If they can, fine.

MR. ELLENBOGEN: Can you answer the question as to whether anyone has calculated the emissions profile for heat pumps -- air source heat pumps in the downstate service area, in your service area?

MR. HEDEMAN: I'm going to object. That's a compound question.

A.L.J. KERSEY: Can you rephrase the question, please? Has any -- I believe you said --

MR. ELLENBOGEN: Okay.

A.L.J. KERSEY: -- had anyone calculated -- go ahead.

MR. ELLENBOGEN: Okay. Okay. If a customer in the Con Ed territory replaces on-site natural gas combustion heat with heat from an air source heat pump powered with Con Ed electricity, will that increase or decrease overall GHG emissions?

MR. HEDEMAN: I'm going to object. That calls for speculation.

MR. KONECNI: Additionally, Your Honor, we'll object from the grounds of relevance. The clean heat program exists outside of this Joint Proposal. As my colleague mentioned, all this does

is have the rates for the proposal. It doesn't have funding for the clean heat program.

A.L.J. COSTELLO: Okay. So since the rates don't include funding for the heat clean -- clean heat program and this provision deals only with the engagement plan, including promoting SE-1 rate 4 in the Company's clean heat program literature, marketing, and outreach targeting heat pump customers, educational initiatives for contractors and industry stakeholders, and materials and guidance to help stakeholders access tools and resources.

You would have to limit your questioning to what's in the Joint Proposal if they can answer that. It doesn't go beyond because there's fundings outside of the Joint Proposal. It's done through the clean heat program. So that's -- that's where you are -- where we're at.

MR. MENTON: Your Honor, if I might speak to that?

A.L.J. COSTELLO: Sure.

MR. MENTON: Summary of Joint Proposal page 2. The Joint Proposal contains numerous provisions that are intended to further New York State's ability to meet the goals of the CP -- CLCPA,

including provisions of funding that will --

A.L.J. COSTELLO: Okay.

MR. MENTON: -- series of bullets --

A.L.J. COSTELLO: So why -- so why don't you ask --

MR. MENTON: -- enhance electric system --

A.L.J. COSTELLO: -- why don't you ask a question about that?

MR. MENTON: Okay.

MR. ELLENBOGEN: You can ask it.

MR. MENTON: No, no. It's your turn. Your turn.

MR. ELLENBOGEN: No. Go ahead. Finish the question. Finish the question. You're the lawyer.

(Cross-talk)

A.L.J. COSTELLO: And you have to reference what you're specifically referring to. Allow the witnesses to get there.

MR. ELLENBOGEN: Okay. If -- well, I -- can I just reask the same question? Did they --

A.L.J. COSTELLO: We're not talking about the summary for the Joint Proposal. They're

saying that something includes -- there's funding included. There was a statement in the summary. Ask them about that. What funding are they referring to?

MR. MENTON: My colleague is asking me to pose this question, so I'll -- so I'll take a crack.

The summary of the Joint Proposal, which I believe we have an exhibit number for. I believe it is Exhibit Number 1214, page 2.

And there is a paragraph at the bottom of page 2 which reads, "Climate leadership and Community Protection Act goals. The Joint Proposal contains numerous provisions that are intended to further New York State's ability to meet the goals of the health CPA, including provisions for funding that will", and there are several bullet points, but I'm going to emphasize "enhance the --

A.L.J. COSTELLO: Okay. Just let me -- let me just stop you just for a question. It says "including funding". So that doesn't mean that everything here, at least my reading of it, is -- says there's funding in there. So establish with the witnesses whether there is funding, to the extent they know, for the heat pump that you're referring

to.

MR. MENTON: Okay. The question is, is there funding in the Joint Proposal to enhance the electric system in anticipation of transportation and building electrification?

MR. HEDEMAN: Your Honor, I'm going to object that the Joint Proposal speaks for itself.

A.L.J. COSTELLO: Well, I think it's just to get to a question -- some questions.

So if you want -- first of all, you can ask the questions; they can answer it. To the extent they can answer it, that's fine. And then we'll see what your follow-ups are.

MS. ROBERTS: There is no transportation-related representative present in this panel.

MR. MENTON: How about building? Does anyone on the witness stand know whether there -- there's funding for -- for that in there?

UNIDENTIFIED SPEAKER: Can you repeat the question?

MR. MENTON: I'm going to ask it this way. I'm going to read from the summary of Joint Proposal, and I'm going to ask you if that statement

in the summary of Joint Proposal is correct or not.

A.L.J. COSTELLO: Now, again, what -- I have a problem with it because your reading of it is -- takes it that the provision for funding provides to all things, and I'm not sure. It says "including provisions for funding".

Okay. Go ahead. You can ask -- just ask the question. We'll go line by line with the provisions.

MR. MENTON: Okay. I'm not going to ask about every one, but my question is, does --

A.L.J. COSTELLO: Yeah. I'm so sorry.

MR. MENTON: -- the Joint Proposal --

A.L.J. COSTELLO: It says "provisions or funding". So it doesn't apply to all, right? Provisions or funding.

MR. MENTON: Okay.

A.L.J. COSTELLO: It's not "for funding". "Provisions or funding."

MR. MENTON: Okay. Does --

A.L.J. COSTELLO: So that -- so you can find -- you can ask the questions to find out --

MR. MENTON: Okay.

A.L.J. COSTELLO: -- whether there's

funding for the specific or they're aware of it.

MR. MENTON: Does the Joint Proposal contain provisions for funding of --

A.L.J. COSTELLO: Not for funding.

MR. MENTON: I'm asking him for funding.

A.L.J. COSTELLO: Okay. Okay.

MR. MENTON: Does the Joint Proposal contain provisions for funding enhancement of the electrical system in anticipation of building electrification, yes or no?

MR. KRAMER: Your Honor, I'm going to object. This is a -- this may not be a yes or no question. The panelists should be free to answer the questions as they see fit. All the questions posed to them today.

A.L.J. COSTELLO: Okay. So to the extent you can answer the question, somebody on the panel can answer the question.

MR. BRENNAN: The Joint Proposal includes funding to enhance the electric system in support of safe and reliable service that may also support building transportation and electrification.

MR. MENTON: Does the Joint Proposal

contain funding to facilitate the clean energy transition?

MR. HEDEMAN: I'm not going to object to that as compound. It asks for speculation. Ask him to rephrase the question.

A.L.J. COSTELLO: Just ask your question again. I don't -- I don't have any problems with the question, and I just want to hear it one more time.

MR. MENTON: Yes. Does the Joint Proposal contain funding to facilitate the clean energy transition?

Okay. And that's contained in the summary of the Joint Proposal, which is part of the -- has been included as an exhibit here.

MR. KONECNI: And Your Honors, we're going to object on the grounds of vagueness. What does "clean energy transition" mean in the context of the question?

MR. MENTON: It means whatever you meant it to say. This is your document, my friend.

MR. KONECNI: Where does it say that in the document?

A.L.J. COSTELLO: It says -- page 2.

MR. KONECNI: I thought we were talking to the CLCPA.

A.L.J. COSTELLO: Bullet proof -- bullet point 4.

MR. KONECNI: I see. So you're asking about bullet point 4?

MR. MENTON: Yes.

MR. KONECNI: Thank you.

MR. MENTON: Does it or doesn't it?

A.L.J. KERSEY: Hold up a second.

A.L.J. COSTELLO: Just give them -- give them a moment --

MR. MENTON: Okay.

A.L.J. COSTELLO: -- to review it. And when they're ready, just let us know.

MR. BRENNAN: The Joint Proposal provides funding for infrastructure required to deliver safe, reliable service that will also enable the clean energy transition.

MR. MENTON: Does all of the funding that enables the clean energy transition, is all of it necessary to support safe and reliable service, or is there some that is and some that is not?

MR. BRENNAN: All of the funding for

electric infrastructure is required to support safe and reliable service.

MR. MENTON: So -- so if, for example -- if, for example, I went to a conference last week where a Mr. Raghu (phonetic) spoke --

A.L.J. COSTELLO: Let me stop you there. He answered your question, and what you learned in a conference is not something that's in front of us.

MR. MENTON: Okay. Okay.

Is Con Edison, with funding from this Joint Proposal, proposing to build a new infrastructure in the South Bronx to support electrified trucks at the Hunts Point Market, yes or no?

MR. BRENNAN: The Joint Proposal includes funding to build electric infrastructure to meet growing customer demand, some of which may or may not be electrification of transportation.

MR. MENTON: So is -- is infrastructure to support electrified trucks in the South Bronx, is that necessary for safe and reliable service in Con Ed territory?

A.L.J. COSTELLO: They -- they did not

respond that that was included. Is there a specific project that's listed in appendix 11 that you want to -- that you can refer to?

MR. MENTON: Well --

MR. ELLENBOGEN: When you did your --

A.L.J. COSTELLO: Wait. One question --

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: We're not asking --

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: They have not responded that that was the case, that that was a project that was included. So you're now asking whether it's necessary, and they haven't -- you haven't established that it's included.

MR. MENTON: Okay. Is that project included?

MR. BRENNAN: Yes.

A.L.J. COSTELLO: Now you can ask your question.

MR. ELLENBOGEN: Okay. Is that project necessary for safe and reliable service?

MR. BRENNAN: Yes.

MR. KRAMER: Your Honor, I'm going to

object. Asked and answered.

A.L.J. COSTELLO: No, it actually wasn't asked and answered. This is a specific question as to that project which he just identified as part of the Joint Proposal, so we're going to allow the response.

MR. BRENNAN: Yes.

MR. MENTON: Well, I think I'm going to turn this back over to Mr. Ellenbogen because I'm taking up his time.

MR. ELLENBOGEN: That's okay.

MR. MENTON: But I -- I will have my questions when the time comes.

MR. ELLENBOGEN: Did your safety analysis stop at the Con Ed borders when you did the analysis? I recall --

MR. KRAMER: Objection, Your Honor.

(Cross-talk)

A.L.J. COSTELLO: What safety analysis are you referring --

MR. ELLENBOGEN: Well, they -- when -- during the thing, there was, like, a security -- like, a -- an analysis of --

A.L.J. COSTELLO: During what -- what

thing?

MR. ELLENBOGEN: During the -- during the hearings that we sat through.

A.L.J. COSTELLO: What hearings?

MR. ELLENBOGEN: The -- the rate case hearings. Settlement discussions.

MR. KRAMER: I believe those were settlement discussions, Your Honor. And we're going to object to any --

A.L.J. COSTELLO: Settlement discussions. That's -- that's confidential.

MR. KRAMER: Thank you.

A.L.J. COSTELLO: It's not appropriate to bring up --

MR. ELLENBOGEN: All right.

A.L.J. COSTELLO: -- during this. It's all confidential.

MR. ELLENBOGEN: Sorry. Has anyone taken into account the availability of electricity to support these programs?

MR. HEDEMAN: Your Honor, we're going to object. Who is "anyone"?

MR. ELLENBOGEN: Anyone for the Company, anyone for the PSC.

A.L.J. COSTELLO: Well --

MR. ELLENBOGEN: Because the -- if you look at document number --

A.L.J. COSTELLO: It's not the PSC, Department of Public Service.

MR. ELLENBOGEN: Department of Public Service. If you look at document number 4 from the NYISO, it shows extremely rapidly declining safety margins on the downstate system.

A.L.J. COSTELLO: Okay. You can -- you can --

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: Again, that's something that you can make arguments about.

MR. ELLENBOGEN: Okay.

Has -- has anybody reviewed the NYISO, our Exhibit 4, regarding the declining generation and energy margins on the downstate system?

MR. BRENNAN: The Joint Proposal covers investment required to deliver electricity to meet customer demand in accordance with safe and reliable service.

MR. ELLENBOGEN: But has anyone bothered to consider how you're going to deliver

electricity that doesn't exist?

MR. HEDEMAN: Objection, Your Honor. Argumentative.

A.L.J. COSTELLO: Sustained.

MR. ELLENBOGEN: How can I ask that?

MR. MENTON: Accept it.

MR. ELLENBOGEN: All right. I'm running out of questions because --

MR. MENTON: Oh. Okay.

MR. ELLENBOGEN: Go ahead. Do your thing.

MR. MENTON: Oh.

MR. ELLENBOGEN: Because everything's going to get an objection to it.

MR. MENTON: No. It's -- a sustained objection is -- is an asset to us on the appeal. So collect -- collect a bunch of them.

MR. ELLENBOGEN: Regarding -- has -- has anybody reviewed the NYISO document in terms of the amount of zero emissions energy available on the downstate system?

MR. HEDEMAN: Objection, Your Honor. He's stating a conclusion of what the report says without establishing that they're familiar with the

report.

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: But also let me ask you this. Did anyone consider with respect to the Joint Proposal --

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: -- and did this document come out before the Joint Proposal was --

MR. ELLENBOGEN: The draft was out earlier.

A.L.J. COSTELLO: What about the final document?

MR. ELLENBOGEN: The final document came out a week and a half ago.

A.L.J. COSTELLO: Okay. And we're not asking that the -- we said we would -- we said we would take judicial or administrative notice of the final document.

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: So you can ask -- you don't even have to tie it right directly to the document. So what it seems to me you're trying to ask is whether they considered emissions, some part of it is emissions from -- from the --

MR. ELLENBOGEN: Yes.

A.L.J. COSTELLO: -- factory or the plants?

MR. ELLENBOGEN: Have you -- have you considered the emissions of the downstate electrical system and the age of the generating plants on the downstate system? Are you -- are you aware of the age of the generating plants on the downstate system, and particularly in New York City?

A.L.J. KERSEY: Mr. Ellenbogen, so you just asked a number of questions --

MR. ELLENBOGEN: Okay.

A.L.J. KERSEY: -- in one question.

MR. ELLENBOGEN: Okay.

A.L.J. COSTELLO: So please ask --

MR. ELLENBOGEN: Okay. I'll go one at a time.

A.L.J. KERSEY: -- one -- one part of that question individually.

MR. ELLENBOGEN: Okay. Okay.

Are you aware of the emissions profile of the downstate system and how much renewable energy is actually on the downstate system relative to fossil fuel generation?

A.L.J. COSTELLO: Objection. It's still a compound question.

MR. ELLENBOGEN: Okay. Are you aware of the level of renewable generation on the downstate system?

MR. BRENNAN: I'm aware of the NYISO report you're referring to.

MR. ELLENBOGEN: Okay. You're aware that it's only five percent as they put in? Are you aware of that figure?

MR. BRENNAN: I am aware of the report. I am not familiar with the details of the report.

MR. ELLENBOGEN: This was on page 8 in the draft.

A.L.J. COSTELLO: Mr. Ellenbogen.

MR. ELLENBOGEN: It got -- it got moved to page 16. Can --

A.L.J. COSTELLO: This is a different line of questioning?

MR. ELLENBOGEN: No, it's just -- I'm just going to inform him of --

A.L.J. COSTELLO: He's not familiar with it.

MR. ELLENBOGEN: All right.

A.L.J. COSTELLO: You can show it to him and say, is this -- is this something that you're familiar with? But again, you can't ask questions about it if they're not familiar with it.

MR. ELLENBOGEN: Is this something you're familiar with? The page numbers are on now page 16 in the final. Okay.

MR. BRENNAN: No.

MR. KRAMER:: Your Honors, could --

UNIDENTIFIED SPEAKER: Can you -- can you --

MR. KRAMER:: -- copies, please, be provided --

A.L.J. COSTELLO: Yeah.

UNIDENTIFIED SPEAKER: -- to all parties?

MR. ELLENBOGEN: Yeah. Here. I have plenty.

A.L.J. COSTELLO: And you also have to indicate what document you're handing them.

MR. ELLENBOGEN: This -- this is page 16. It was -- says page 8. That was in the draft. It's page 16 from the final document that came out a

week and a half ago. They moved the page numbers around.

Do you guys want more of these? Here.

Anybody else want one?

(Cross-talk)

MR. KRAMER: You know, we need one. We're Staff counsel.

MR. ELLENBOGEN: Okay.

MR. KRAMER: We need a copy.

(Cross-talk)

MR. ELLENBOGEN: I got copies for everybody. I just don't know --

A.L.J. KERSEY: Mr. Ellenbogen, I believe you asked the witness a question. I believe the witness responded, but we did not catch it up here. What was the question? Was it whether you were familiar with it, or I --

MR. ELLENBOGEN: Okay. Are you now familiar with the level of emissions --

A.L.J. KERSEY: No. No. Are you familiar with the document?

MR. ELLENBOGEN: Are you familiar with the level of emissions of renewable energy going to --

A.L.J. COSTELLO: No. Are you familiar with the document? It's not are you familiar with --

MR. ELLENBOGEN: Are you familiar with the document?

A.L.J. COSTELLO: -- what's in the document as far as --

MR. ELLENBOGEN: Are you familiar with the document?

MR. BRENNAN: I'm aware of this piece of paper you put in front of me. I'm not familiar with the document that you cited as the source of this --

MR. ELLENBOGEN: Okay.

MR. BRENNAN: -- piece of paper.

MR. ELLENBOGEN: That's from the NYISO 2025 to 2034 reliability analysis. The draft came out in --

MR. MENTON: September.

MR. ELLENBOGEN: -- September. The final document was published on November 21st. It's page 8 there. It's page 16 in the final document.

A.L.J. COSTELLO: And you have a question?

MR. ELLENBOGEN: No. He said he was not aware of it.

Well, this document is fairly critical.

Is anybody at the Company familiar with this NYISO --

MR. MENTON: I think he said --

MR. ELLENBOGEN: -- report? Anybody?

MR. MENTON: Did you say you were familiar with it or you were not familiar?

MR. BRENNAN: I said I am aware of the report. I'm not familiar with it. The electric infrastructure operation and operations panel within the Joint Proposal covers the investments in delivery infrastructure to meet customer demand.

The NYISO process covers identifying generation and transmission solutions at a state level, and we are part of that process, but that is separate and apart from this joint report.

MR. SHERWIN: Your Honor, I would ask what the whole relevance of this line of questioning is. We run a transmission and distribution company, not a generation company.

MR. MENTON: Yes.

A.L.J. KERSEY: Please respond to that.

MR. MENTON: The relevance is Con Edison, and I can't say I blame them. I would -- I would love --

A.L.J. KERSEY: No. Just --

A.L.J. COSTELLO: Just say what the relevance is.

MR. MENTON: The relevance is that we're giving them a lot of revenue to dig holes and fill them back in for useless things because the -- the electricity doesn't exist. They provide for customer demand where there is no electricity to provide.

A.L.J. COSTELLO: Okay. So you want them to testify about what is available on the system that NYISO information provides?

MR. MENTON: Well, we want to find out whether Con Ed is aware that the infrastructure they're proposing to build and stick to the ratepayers is infrastructure that has no electricity behind it and therefore is wasted.

A.L.J. COSTELLO: That's -- that -- that is -- that's argumentative. So I think, you

know, if you want to ask them the question about what they're aware of. And it may go -- it's beyond -- it may be beyond what they're able to testify to --

MR. MENTON: Maybe they don't know.

A.L.J. COSTELLO: -- because they're not --

MR. MENTON: I mean --

A.L.J. COSTELLO: -- and they may not know because that's not part of what they do. This is the NYISO that provides this information, so.

MR. MENTON: Frankly, Your Honor, on -- on the appeal of this matter, the fact that Con Edison doesn't seem to know that it's building infrastructure for electricity that doesn't exist is a rather important fact.

A.L.J. KERSEY: I'm not clear -- I'm not sure that that's what's been testified to, Mr. Menton.

MR. MENTON: Okay.

A.L.J. KERSEY: That has not -- that has not been established.

MR. MENTON: Okay.

A.L.J. KERSEY: So --

MR. KONECNI: Your Honor, and I would

also -- Your Honors, I would also point out that the Company serves demand. It builds infrastructure to serve demand. It doesn't build resources. It builds infrastructure to serve demand, customer demand. So I really don't understand the relevance of this questioning.

A.L.J. COSTELLO: And -- and so I guess the question is, in determining the resources that you -- is part of that determining what the electricity supply is, or available supply at the time? That's -- the witness can answer that if -- is part of the process in determining what projects to include considering the electricity supply?

And I understand we're talking about NYISO and all of that, but the electricity supply that exists to support the planned projects. Or is that a separate -- you know, taken care of separately by either someone else in the Company, by different companies, or the NYISO? And I know that I just gave you a big compound question, so to the -- to the extent you can answer.

MR. BRENNAN: Within the scope of the Joint Proposal, generation supply is not contemplated.

A.L.J. COSTELLO: Okay.

MR. BRENNAN: The Joint Proposal covers the infrastructure required to deliver electricity in accordance with demand within our service territory.

MR. MENTON: Okay.

A.L.J. COSTELLO: That's your answer.

MR. MENTON: Okay. So I want to ask that question to the Department of Public Service staff.

A.L.J. KERSEY: Well, Mr. Menton, I want to hold up for a second. Just is Mr. -- how are we doing it?

MR. MENTON: Okay.

A.L.J. KERSEY: Mr. Ellenbogen, are you finished with your cross-examination, and now we're moving to Mr. Menton?

MR. ELLENBOGEN: Well, it's --

MR. MENTON: All right. Let him go. Let him go. You know, unfortunately, he's not a lawyer and --

MR. ELLENBOGEN: Yeah. I'm not a lawyer. I'm an --

MR. MENTON: -- I'm trying to help him

out. That's all --

A.L.J. KERSEY: Okay. But I mean --

MR. MENTON: -- that's going on.

A.L.J. KERSEY: -- if you're done with your cross-examination that's -- that's fine.

MR. MENTON: Okay.

A.L.J. KERSEY: Or are you doing it together?

MR. ELLENBOGEN: We'll do it -- we'll do it together.

MR. MENTON: I'm just trying to help it. He should finish --

MR. ELLENBOGEN: We'd like to --

MR. MENTON: -- and then I'll go.

MR. ELLENBOGEN: -- do it together.

MR. MENTON: No, no. I want you to go, and then -- and then I'll go.

MR. ELLENBOGEN: Is Department staff aware of the age of the downstate generation and the fact that, according to the NYISO, 90 percent of the generation in the -- in the New York City area is over sixty years old?

MR. KRAMER: Objection, Your Honor. It's a compound question. Please --

MR. ELLENBOGEN: Okay.

MR. KRAMER: -- split it up.

MR. ELLENBOGEN: Okay. Is -- is DPS -- is DPS staff aware of the age of the downstate generation, in particular, the New York City generation? Has state --

MR. KRAMER: And again, I'm -- now I'm going to object on relevance, Your Honor. The awareness of staff as to generation is not the subject of the Joint Proposal. Generation is not addressed in the Joint Proposal. It's a delivery case. Both of these cases, the gas and the electric.

MR. ELLENBOGEN: Your Honor, you can't deliver what doesn't exist.

A.L.J. COSTELLO: You know --

MR. KRAMER: No one's going to ask for delivery of something that doesn't exist. What are we talking about?

MR. MENTON: They're asking for money for delivery of something that doesn't exist.

MR. KRAMER: You missed -- you missed the -- well, we'll -- we'll -- we'll let the record speak for itself.

A.L.J. KERSEY: Yeah. We're going to

sustain that objection.

Mr. Ellenbogen, ask another question, please.

MR. ELLENBOGEN: Go ahead, friend.

MR. MENTON: Oh, no. No.

MR. ELLENBOGEN: Nope. I'm done.

MR. MENTON: You have to finish.

MR. ELLENBOGEN: I'm done.

MR. MENTON: Oh. He's saying he's finished. Okay. It's my turn.

A.L.J. KERSEY: Okay. You are --

Mr. Ellenbogen, you're done with your cross-examination?

MR. ELLENBOGEN: Yes. For now, yes.

A.L.J. COSTELLO: Not for now. You're done.

MR. ELLENBOGEN: Okay. I'm done.

MR. MENTON: Could you move over this way a little bit?

A.L.J. KERSEY: Okay. So now we're moving -- I'm sorry?

(Cross-talk)

A.L.J. COSTELLO: Let me just ask counsel for the Company and DPS staff to the extent

they answer questions on cross, do you want to see about redirect witness by witness or do you want to wait for Mr. Menton to finish his cross-examination and then you can determine as to both whether you're going to do redirect?

MR. KONECNI: The Company would prefer the latter approach.

A.L.J. COSTELLO: Okay. So that's what we'll do. So let's continue with Mr. Brennan.

That's okay?

MR. KONECNI: It is. Yes, Your Honor. Thank you. I shouldn't just shake my head. Thank you.

A.L.J. KERSEY: Thank you.

Mr. Menton, you can proceed with cross-examination.

MR. MENTON: Okay. Thank you very much.

This is Francis Menton, Independent Intervenor. When Mr. Ellenbogen was just finishing up, he had asked the question to Con Edison if -- if they were aware that they were building infrastructure to deliver electricity that doesn't exist, and they said that's not part of their job.

So I want to address that to the Department of Public Service staff because is that part of your job to understand --

A.L.J. KERSEY: Mr. Ellenbogen -- or I'm sorry. Mr. Menton, can you break down the question and -- and have it be a question?

MR. MENTON: Okay. Is it part of the job of the staff of the Public Service Commission to determine whether the electricity exists before approving a rate increase to deliver the nonexistent electricity?

MR. BRENNAN: They don't approve it. They propose the rate -- propose the Joint Proposal --

A.L.J. KERSEY: These are witnesses --

MR. BRENNAN: -- so was it part of their --

MR. KRAMER: It's also argumentative, Your Honor. The question's argumentative.

A.L.J. COSTELLO: Just ask -- ask it one more time.

MR. MENTON: Is it part of the staff -- of the job of the staff of the Public Service Commission before signing on to a settlement

proposal for a rate increase for delivery of electricity to be sure that the electricity exists?

A.L.J. KERSEY: Someone answer the question?

A.L.J. COSTELLO: Department of Public Service witnesses, is there anyone that can answer -- respond to that question?

MR. KRAMER: I think they're conferring, Your Honor.

A.L.J. COSTELLO: Okay. I'm sorry.

A.L.J. KERSEY: No problem.

A.L.J. COSTELLO: It's a -- it's set up --

MR. KRAMER: Yeah.

A.L.J. KERSEY: It's not ideal.

MR. PHILIP: Yes. What we do actually as part of our -- okay. Sorry. Yeah. As part of our review of the rate proposal, what we do is we look at everything, but we have a separate section where we deal with the NYISO regarding this generation deficiencies and transmission reliability and all those stuff.

So they are not part of the rate proceedings, and we don't specifically look at the

generation requirements, whatever is coming, but based on the forecast from Con Ed and the demand for the customers, we have to build the infrastructure to provide supply to the people, supply to the customers.

Our separate group is the one who does the -- who does this, what do we call the evaluation of the load and the generation and the transmission and delivery, all those stuff.

MR. MENTON: Okay. I want to use a document. The document was Exhibit 17 of the ones we proposed, so it was submitted on November 26th with our --

A.L.J. COSTELLO: Was that document already admitted into evidence?

MR. MENTON: I think you said, Your Honor, that you would take administrative notice of it.

A.L.J. KERSEY: It's a letter.

MR. MENTON: It's one of those. It's a -- it's a letter from the Attorney General in a court proceeding. And I have a lot of copies to pass out if people want.

A.L.J. COSTELLO: Okay. Well, pass it

out to counsel. Give the counsel copies.

A.L.J. KERSEY: And then you can lay a foundation, Mr. Menton.

A.L.J. COSTELLO: And then, well, also --

MR. MENTON: And would Your Honors like the copies for --

A.L.J. COSTELLO: Yes, please.

MR. MENTON: -- to follow the testimony?

A.L.J. COSTELLO: And with counsel and then give some to the witnesses. And you're going to have to lay a foundation for cross-examination.

(Cross-talk)

A.L.J. KERSEY: I've got one, Mr. Menton. Thank you.

MR. MENTON: You do? Okay. Move on.

(Cross-talk)

MR. MENTON: Okay.

(Cross-talk)

MR. MENTON: I'll had out a few. Could you pass them up and down --

UNIDENTIFIED SPEAKER: Thank you.

MR. MENTON: -- wherever it's

appropriate, please. Thank you.

A.L.J. KERSEY: Okay. For purposes of the transcript, we're going to mark the August 11th, 2025, letter to Justice Schreibman in the matter of Citizen Action of New York v. New York State Department of Environmental Conservation as -- it's marked for identification as Exhibit 1239.

You may proceed, Mr. Menton.

MR. MENTON: Okay. Thank you.

So this is a letter that was sent by the Attorney General of the State on behalf of the State Department of Environmental Conservation to a court. Are any of the witnesses familiar with this document?

IN UNISON: No. No.

MR. MENTON: Okay.

A.L.J. COSTELLO: That's -- that's it. You're done.

MR. MENTON: Can I ask questions that -- okay.

A.L.J. COSTELLO: No.

MR. MENTON: I'm going to ask them --

A.L.J. COSTELLO: If they're not familiar with it, this is not something they rely

upon, no. You can make arguments about it because we're taking judicial -- administrative notice of it.

MR. MENTON: Okay.

A.L.J. COSTELLO: But if the -- if the witnesses aren't familiar with it, you can't cross-examine them on it.

MR. MENTON: Okay. I'll just -- I'll just ask questions without referring to the document.

A.L.J. COSTELLO: That's okay.

MR. MENTON: Okay.

A.L.J. COSTELLO: You can do that. But don't refer to the document while you're do that.

MR. MENTON: Okay. Are any of the witnesses familiar with something called the 2025 Draft New York State Energy Plan? Anybody?

MR. BRENNAN: No.

MR. MENTON: Do any of the witnesses know what the New York State Energy Planning Board is that put out the New York State draft Energy Plan?

A.L.J. COSTELLO: Can I -- can I ask a question about this?

MR. MENTON: Yes.

A.L.J. COSTELLO: Does this go to supply -- or that you're referring to? Does this

go -- the information you're talking about now trying to go to supply? Or is it going to generation by -- by generation of it?

MR. MENTON: Well, it -- it goes to the question of building infrastructure to deliver electricity which the State itself says is not going to exist.

A.L.J. COSTELLO: Okay. You can -- you -- the thing is you can make these arguments in your brief. It's not something that you have to bring through cross-examination if they're not familiar with it. Do you -- do you understand what I'm saying?

MR. MENTON: I -- I understand what you're saying. I'm having to say I'm sitting here stunned that nobody on the Public Service staff or Con Edison has ever heard of --

A.L.J. COSTELLO: That's not on --

MR. MENTON: -- the State Energy Plan?

A.L.J. KERSEY: But this is on -- we have witnesses --

A.L.J. COSTELLO: Dealing with the joint --

A.L.J. KERSEY: specific --

A.L.J. COSTELLO: -- proposal.

A.L.J. KERSEY: -- specific witnesses --

MR. MENTON: Okay.

A.L.J. KERSEY: -- dealing with the Joint Proposal.

MR. MENTON: Okay. And the State Energy Plan --

A.L.J. KERSEY: Not any employee here.

MR. MENTON: -- has said that the Joint Proposal is infeasible.

MR. BRENNAN: No, it hasn't.

A.L.J. COSTELLO: Again --

A.L.J. KERSEY: No.

A.L.J. COSTELLO: -- again, again.

UNIDENTIFIED SPEAKER: No, it hasn't.

A.L.J. COSTELLO: -- you can make your argument. It may not be appropriate to get that information through them.

MR. MENTON: Okay. Okay.

Does anybody on the panel know that one of the members of the State Energy Planning Board is Rory Christian, the chairman of the Public Service Commission?

MR. KRAMER: Objection.

MR. MENTON: Does anybody know this?

A.L.J. COSTELLO: Sustained.

MR. KRAMER: Relevancy and a bunch of other things.

MR. MAIORIELLO: Your Honor, this is Davide Maioriello. I am aware of the State Energy Plan draft. It's a draft. I am aware that they actually recently had a meeting to discuss the draft. But --

MR. MENTON: Okay. Okay. I'll address this next question to you.

Does the draft plan show that a 40 percent greenhouse gas reduction from 1990 levels by 2030 is infeasible under the Climate Act's accounting methodology?

MR. KRAMER: Objection. The plan speaks for itself.

A.L.J. COSTELLO: Sustained.

A.L.J. KERSEY: The objection's sustained.

MR. MENTON: That sentence does not appear in the plan.

MR. KRAMER: The plan speaks for

itself. Whether your sentence is in there or not has nothing to do with the plan and its contents.

MR. MENTON: Okay. I take note that the Department of Public Service does -- does not want this information --

A.L.J. KERSEY: It's also just --

MR. MENTON: -- in the record.

A.L.J. KERSEY: -- you're also referring to --

A.L.J. COSTELLO: No, the infor -- the information --

A.L.J. KERSEY: -- a draft plan.

A.L.J. COSTELLO: -- the information -- what information are you talking about? Because the information that you -- the underlying information is in.

MR. MENTON: The underlying --

A.L.J. COSTELLO: Or we can take notice of it. Go ahead.

MR. MENTON: What's not in is that the Public Service Commission staff is signing --

A.L.J. COSTELLO: It's not the Public Service Commission staff. It's the Department of Public Service.

MR. MENTON: Department of Public Service.

A.L.J. COSTELLO: I'm sorry. There is a distinction.

MR. MENTON: I thank you, Your Honor. I apologize. The Department of Public Service staff is signing on to rate increases without knowing about this. That's the important thing.

A.L.J. COSTELLO: You can argue that.

MR. MENTON: I can't find out that they don't know about it unless they'll answer that question that they don't know.

A.L.J. COSTELLO: You asked people -- there's only one person that you had asked.

And the name of you?

MR. MAIORIELLO: Davide Maioriello.

A.L.J. COSTELLO: Sorry. So let's hear the question again. Let's see if he can respond to it. And let's -- well, go ahead.

MR. MENTON: Okay. Is the Department of Public Service staff aware that a 40 percent greenhouse gas reduction from 1990 levels by 2030 is infeasible under the Climate Act's accounting methodology? Are they aware of that?

MR. KRAMER: Objection. Again, this is argumentative. There's no citation to anything where this assertion is contained.

A.L.J. COSTELLO: And let me ask you this question. You -- just to clarify, you're saying under the Climate Act methodology?

MR. MENTON: Yes.

A.L.J. COSTELLO: Climate Act which is -- is law?

MR. MENTON: Yes.

A.L.J. COSTELLO: Okay. What is infeasible under -- the Climate Act is what it is.

MR. MENTON: Okay.

A.L.J. COSTELLO: Your argument is that it's infeasible, right? It's not --

MR. MENTON: The Attorney General's statement is that it's infeasible.

A.L.J. COSTELLO: You can argue that.

MR. MENTON: Okay.

A.L.J. COSTELLO: They're not familiar with this Attorney General's statement.

MR. MENTON: Okay. Well, but fact that they're not familiar with the position of the State of New York is -- is an --

A.L.J. COSTELLO: You know --

MR. MENTON: -- incredibly important fact.

A.L.J. COSTELLO: -- do you know everything that's going on with everything? I mean, these people have jobs that -- they do a lot of work that's not -- you know, they don't have to know everything about everything.

MR. MENTON: Okay.

Do you agree --

(Cross-talk)

MR. MENTON: -- do you agree that building the infrastructure to attempt to meet the 2030 Climate Act goals would impose extraordinary and damaging costs upon New Yorkers? Do you agree with that?

MR. KRAMER: Your Honor, I'm going to have to object. It's --

A.L.J. COSTELLO: Let -- let them respond. Let's let them respond.

MR. MAIORIELLO: I can't answer that question.

MR. MENTON: Do you know that the Attorney General has taken that position?

MR. MAIORIELLO: I have no idea --

MR. MENTON: Okay.

MR. MAIORIELLO: -- about what the Attorney General has stated.

MR. MENTON: And as -- as a member of the staff of the Department of Public Service, are you okay with imposing extraordinary and damaging costs --

MR. KRAMER: Objection.

A.L.J. COSTELLO: That's sustained. You're -- you're putting in extraordinary and -- that's your characterization.

MR. MENTON: No. That is the word of the Attorney General of the State of New York.

A.L.J. COSTELLO: They're not familiar with that.

MR. MENTON: Are you not fam -- is it true what the judge just said, that you're not familiar that the Attorney General has said that?

MR. MAIORIELLO: Yes.

A.L.J. COSTELLO: He just said they were not familiar.

MR. MENTON: Okay.

A.L.J. COSTELLO: And why don't -- why

don't -- you know, you can ask them if -- if it's their view --

MR. MENTON: Okay.

A.L.J. COSTELLO: -- not whether they agree. Whether it's their view, and they can respond to that.

MR. MENTON: Okay. Is it -- is it your view that report -- that imposing extraordinary and damaging costs upon New Yorkers would be required by trying to meet the Climate Act goals?

A.L.J. KERSEY: Mr. Menton, I'm going to ask you to rephrase that question.

MR. MENTON: I thought that's what he told me to say.

A.L.J. COSTELLO: It's all right. Let them -- let them -- just let them respond if you can. Let them respond.

MR. KRAMER: So Your Honor, I mean --

A.L.J. KERSEY: I would ask you --

MR. KRAMER: -- Your Honor, please.

A.L.J. KERSEY: -- that was a different -- I'm sorry. That was --

MR. KRAMER: It is a different question.

A.L.J. KERSEY: That was a different question --

MR. MENTON: Okay.

A.L.J. KERSEY: -- then the quest that -- I want you to rephrase that question, and we'll deal with --

MR. MENTON: Okay.

A.L.J. KERSEY: -- whatever question you now posit.

MR. MENTON: Now you've confused me. Hang on a second.

MR. KONECNI: Your Honors, I'd like to ask what -- what the relevance of this -- whether the State can or cannot meet its climate goals are? First of all, it's speculative as to whether what will happen in the next -- over the three years of the next rate plan, but I -- the relevance to whether the Joint Proposal is just and reasonable and in public interest, I don't think, it's been established.

A.L.J. KERSEY: Mr. Menton, I would like you to speak to that issue.

MR. MENTON: Okay.

A.L.J. KERSEY: Of the relevance of

the climate -- these climate goals with respect to the rate proceeding that is in front of us for the net -- for the three-year rate plan.

MR. MENTON: Okay. The summary of Joint Proposal contains a list of funding provided in the Joint Proposal for --

MR. KONECNI: We've been over this.

MR. MENTON: Yes, we have. Well, he just said he doesn't know about it.

A.L.J. COSTELLO: Right. So it doesn't -- and again, that state -- what's in the -- what's in the summary doesn't say it contains funding. It doesn't specify what funding is provided.

MR. MENTON: Actually --

A.L.J. COSTELLO: It says --

A.L.J. KERSEY: Includes provisions or funding.

A.L.J. COSTELLO: -- includes provision or funding.

MR. MENTON: Okay.

MR. KONECNI: Your Honors, may I also say it's not -- the Company is not responsible for meeting the climate -- the CLCPA goals. It's not as

if this document was drafted with the purpose of kind of having a legal obligation under the CLCPA.

A.L.J. COSTELLO: Right. So what -- the way that CLCPA is considered, it's considered by the Commission in determining whether the Joint Proposal is consistent with the CLCPA goals under -- so we look at Section 7.2 for that.

That's -- that's where we are. That's what the -- what they'll look at. But you can't talk about funding from the summary when you haven't established what -- what's -- what funds are in there and what -- what's not in there.

MR. MENTON: Good. Let's do that. Thank you, Your Honor.

So are -- does everybody still have copies of the summary of Joint Proposal, which was Exhibit -- if I got a number for that. Exhibit 1214.

MS. MURPHY: Excuse me. Your Honors, this is Erin Murphy with EDF. I'd just like to interject with a point of clarification. The Joint Proposal speaks for itself and is a document that was carefully negotiated by the signatory parties.

The summary of the Joint Proposal -- well, perhaps the summary is -- is not -- was not

negotiated or signed on to by all of the signatory parties to the JP.

MR. MENTON: Okay. So can I ask a preliminary question about that?

Do any of the witnesses disavow the summary of Joint Proposal?

A.L.J. KERSEY: That's -- we're not going to allow that question.

A.L.J. COSTELLO: Yeah. It's -- the witnesses -- the witnesses didn't provide this. There's no indication that the witnesses provided this document, okay? A summary of Joint Proposal is prepared. It doesn't necessarily -- I don't know. You can ask if -- if the witnesses themselves prepared the document, but I would find it unlikely that the witnesses on the panel prepared it.

MR. MENTON: Okay.

A.L.J. COSTELLO: Their information may have been --

MR. MENTON: Well, and --

A.L.J. COSTELLO: Go ahead.

MR. MENTON: -- here's questions I'm going to ask. So on that paragraph at the bottom of page 2 where it says, "The Joint Proposal contains

numerous provisions that are intended to further New York State's ability to meet the goals of the CLCPA, including provisions or funding that will" and a list of bullets. So I want to take the second bullet. Enhance the electric --

A.L.J. COSTELLO: That question was already -- with respect to transportation and electrification, that question was asked and answered.

MR. MENTON: Not this question.

A.L.J. COSTELLO: Okay. Let's see.

MR. MENTON: This question is -- the second bullet, enhance the electric system in anticipation of transportation and building electrification.

My question is, how much funding in the Joint Proposal for that bullet point?

MR. HEDEMAN: Your Honor, we're going to object. The Joint Proposal has some details. If Independent Intervenors want to add up those categories, they're free to do that, but I'm not even sure if our witnesses would be able to do that quickly now.

MR. MENTON: Okay. May I address

that, Your Honor?

A.L.J. COSTELLO: You can respond to it.

MR. MENTON: We've spent a lot of time with the full Joint Proposal and the summary of Joint Proposal and also the answer provided -- or the nonanswer provided to our interrogatories, and we can find nothing that segregates out how much of the funding in the Joint Proposal is for this purpose.

A.L.J. COSTELLO: Okay. And when I say the question was asked and answered, everything that was earlier with Mr. Ellenbogen, I believe, was asked if there was things that were only with respect to CLCPA goals, electrification. And the witness responded on behalf of the Company that they are for both safe and reliable service as well as -- maybe they'd be referring further to CLCPA goals. So that was your answer, and that's why I'm sustaining the objection.

MR. MENTON: So is it the position of the Company that no breakout can be made -- and by the way, why are we asking this? Because we don't want to object to the whole Joint Proposal. We only want to object to the part that's for useless things.

But if they won't break it out, we have to object to the whole thing. That's why we're asking the question.

A.L.J. COSTELLO: Well, your objection is -- the time to submit something in opposition is --

MR. MENTON: We did. We submitted it.

A.L.J. COSTELLO: You did.

MR. MENTON: That's discovered.

A.L.J. COSTELLO: In other words, you're not going back and saying, oh, now we object to the whole thing. Nobody has the opportunity to brief -- brief --

MR. MENTON: Our document says exactly what I just said.

A.L.J. COSTELLO: Okay.

MR. MENTON: We object to the whole thing --

A.L.J. COSTELLO: That's fine. Your document is what your document is.

MR. MENTON: Yes.

A.L.J. COSTELLO: Okay.

MR. MENTON: Yes. But I'm trying to find out if they can break it out.

A.L.J. KERSEY: But --

A.L.J. COSTELLO: Ask -- ask your question one more time. Go ahead.

MR. MENTON: Can anybody for either the Company or the Department of Public Service provide me a breakout of how much of the spending in the Joint Proposal is for things in the bullet points that are specifically listed under meeting the CLCPA goals? How much? That's my question. We asked an interrogatory. We got only objection, no answer.

MS. MCLAUGHLAN: I'll try that one. Kelly McLaughlan for the Company. Similar to what was --

A.L.J. KERSEY: Please -- yeah. Thank you.

MS. MCLAUGHLAN: Similar to what was just mentioned before, our projects and programs in the Joint Proposal, they satisfy multiple purposes. So it's meeting safe and reliable energy delivery, and there might be a byproduct of clean energy transformation embedded in there.

There's not a lot of projects that are only for meeting electrification or meeting certain CLCPA goals. It's all multi-value projects.

MR. MENTON: Okay.

MS. MCLAUGHLAN: So I can't give you one dollar amount for clean energy.

MR. CULLY: I'll add from -- Robert Cully from DPS staff. I'll add that we did not calculate that breakout. It's not something that we feel we can provide.

MR. MENTON: Okay. Are you aware that in the State draft Energy Plan they actually break out what the increment cost to the system of complying with the CLCPA is so they can do it?

MR. KRAMER: Objection. It's irrelevant to these proceedings. That question's irrelevant.

A.L.J. COSTELLO: It has nothing to do with the Joint Proposal. It has -- really, it's -- you can make your arguments based on what that says. But again, it's not something for these witnesses to respond on cross-examination.

MR. MENTON: Is it possible to break out how much incremental spending is in this Joint Proposal to pursue CLCPA goals? Is it possible to break that out?

MR. KRAMER: Objection. Asked and

answered.

A.L.J. COSTELLO: Yeah. Sustained.

MR. MENTON: Is anybody here from Con Edison or the Department of Public Service staff familiar with a project in Spain called "El Hierro"?

MR. HEDEMAN: Your Honor, objection. Relevance.

A.L.J. KERSEY: Just they could ask if they're familiar with it.

So are you familiar with it?

IN UNISON: No.

A.L.J. KERSEY: Okay.

MR. MENTON: Anybody at Department of Public Service staff familiar with it?

MR. CULLY: I think I would quibble that I'm sure there's probably someone at Department of Public Service that --

A.L.J. COSTELLO: No. I think he's asking -- he's asking the witnesses.

MR. CULLY: Not this panel.

MR. MENTON: Is any witness here aware that the attempt on El Hierro Island to demonstrate --

A.L.J. KERSEY: They've already --

A.L.J. COSTELLO: No, they've already answered they're --

A.L.J. KERSEY: That they're not --

A.L.J. COSTELLO: -- not familiar with it, so move on from that line of questioning.

MR. MENTON: Okay. Has -- has anybody from Con Edison here or Public Service staff looked into evaluating the question of whether a solar and wind-plus storage electrification system is possible to do? Has anybody looked into it?

MR. KRAMER: Objection.

A.L.J. COSTELLO: That has nothing to do with this Joint Proposal, so we're going to sustain. Let me hear what the objection is.

MR. KRAMER: Yeah. It's just beyond the scope of these proceedings, Your Honor. I don't under -- I'm getting -- yeah.

MR. MENTON: Just so I have --

A.L.J. COSTELLO: Go ahead.

MR. MENTON: -- my response on the record --

A.L.J. COSTELLO: Yes.

MR. MENTON: -- our objection is to spending ratepayer money on doing things that are not

possible, and therefore, the money will be wasted. That's -- that is our objection. And the wasted money is in the Joint Proposal. They won't tell us how much.

A.L.J. COSTELLO: They explained to you that they cannot.

MR. MENTON: Oh, no. No. That's -- that's --

A.L.J. COSTELLO: Yes.

MR. MENTON: -- their argument --

A.L.J. COSTELLO: That's what their response was.

MR. MENTON: That's their argumentative answer.

A.L.J. COSTELLO: But that was their answer.

MR. MENTON: Okay. Well --

A.L.J. COSTELLO: That was their answer.

MR. MENTON: Okay.

A.L.J. COSTELLO: You can make whatever arguments about that on the record that you want to make.

MR. MENTON: Okay.

A.L.J. COSTELLO: We're moving on.

MR. MENTON: Do you understand that Chairman Christian in the --

A.L.J. COSTELLO: I do understand who --

MR. MENTON: -- State's Energy Plan --

A.L.J. COSTELLO: -- who Chairman Christian is.

MR. MENTON: broke out those costs?

A.L.J. COSTELLO: That's -- that's wonderful. Okay.

MR. KONECNI: Your Honors, I would just point out, too, I think this whole line of questioning is a little bit confusing and confused. The cost of compliance with the CLCPA are not the same as the cost of meeting demands on Con Edison's system.

So when we're talking about building in anticipation of expected load, whether it be from new business or from transportation electrification or building electrification, that's not synonymous with building to meet, you know, the CLCPA's goals of having a certain amount of renewable energy, a certain amount of solar and wind. So this whole line

of questioning is just off base.

A.L.J. COSTELLO: And can I just, for clarification purposes, with respect to the summary of the Joint Proposal, it's referenced to the CLCPA. Is that -- is that more -- is that a factual statement, or is that -- is that something that you would say it's something that you're proposing for the Commission's consideration?

MR. KONECNI: I would say the latter, Your Honor. I would also point out that, again, we've been harping on anticipation of transportation and building electrification, our counsel has been harping on that. That's a demand issue for the Company. We take demand as it comes, regardless of what the source of that demand is.

Customers make decisions about whether they want to electrify their building. We don't get involved in that and force them to do that. We have -- you know, we get load letters, and we -- according to -- that's different than the State's -- the mandates to have a certain amount of renewable energy under the CLCPA. Those are -- there's apples and oranges decisions there. They're not the same thing.

MR. MENTON: If I might speak to that, Your Honor. I com --

A.L.J. COSTELLO: We've finished -- we've taken -- let's just move on with the questions, okay? That -- this is argue -- this is not -- that's not testimony.

MR. MENTON: That's his argument, right?

A.L.J. COSTELLO: So what I'd like you to do, though, is move on to your next question.

MR. MENTON: Well, I think -- I think my questions are gradually getting -- getting disallowed here, although I think I maybe have made my points. I would like to ask whether -- Con Edison made a statement that they -- they don't -- they don't deal with whether the electricity exists. They just meet demand as it exists.

The question is, is that the position of the Department of Public Service? We don't have to be concerned with whether the electricity exists or not?

MR. KRAMER: Objection. That's -- that's argumentative. It's beyond the scope of these proceedings. We've already heard testimony from the

staff members of this panel that there are people who do these -- look at these issues, but they're not here. This is a delivery rate case, particularly talking about electric since that's what we're focused on here.

A.L.J. KERSEY: Mr. Kramer, we're --

MR. KRAMER: Thank you.

A.L.J. KERSEY: -- we are sustaining the objection on those grounds.

MR. KRAMER: Thank you. Thank you.

A.L.J. KERSEY: Next question, Mr. Menton.

MR. MENTON: Okay. No, I think I'm concluded. Thank you.

A.L.J. KERSEY: Okay. So you are all set with your cross-examination.

Is there any redirect?

MR. KONECNI: Not from the Company.

A.L.J. KERSEY: Okay. No redirect.

Any other parties?

MR. KRAMER: No. None here, Your Honor.

A.L.J. KERSEY: Okay.

MR. KRAMER: Thank you.

A.L.J. KERSEY: All right. Hold for just one moment. Okay. We are going to move to the ALJ questions for the witness panel now.

Although we may refer to Con Edison's or DPS staff's respective statements since the Court --

(Cross-talk)

A.L.J. KERSEY: Anyone on the panel can respond who's appropriate to these questions.

The Con Ed statement in support of page 2 and the Joint Proposal page 10. Can someone explain what "unbilled revenue" refers to?

MS. MCLAUGHLAN: Kelly McLaughlan with the Company. "Unbilled revenue" is the revenue that's reported under US GAAP accounting principles that is from after the meter is read, the meter still runs. So we have a meter-reading schedule, right?

So for accounting purposes, we need to record revenue on a monthly basis. So the unbilled revenue is the period from after the meter -- the customer's meter is read until the end of the accounting month.

A.L.J. KERSEY: So -- so in the statement in support on page 24, can you explain why

the amounts are being listed as an offsetting regulatory asset in electric and gas rate base?

MS. MCLAUGHLAN: Sure. So back in 2009, I think was the case where we -- 2008, sorry. Where we had filed -- prior to 2008, we did not record this unbilled revenue. We kind of followed the regulatory model for Con Ed accounting purposes.

In 2008, we petitioned the Commission, and we -- this order was received that allowed us to accrue for this unbilled revenue. When we adopted that accounting change, it resulted in a one-time increase in revenue for that period. And we agreed, and that was issued as part of the order of what we were going to do.

What we did was set aside that -- that basically increased revenue as a reg liability to customers to be used for future rate mitigation. So it's been sitting on our accounting books, and now we're using it to offset a portion of the rate increase.

A.L.J. KERSEY: So that is the same -- that is the -- that that same amount has been sitting on the books?

MS. MCLAUGHLAN: So we're required

monthly to update our unbilled revenue. So it's kind of an accrual reversal. Each month, we evaluate based on the usage, based on what the accounting would be. So it's kind of -- it changes each month based on usage, but it's --

A.L.J. KERSEY: Understood. But it's the same monies that were --

MS. MCLAUGHLAN: It represents the same thing.

A.L.J. KERSEY: From -- from 2008 --

MS. MCLAUGHLAN: Correct.

A.L.J. KERSEY: -- order. Thank you.

So I just want to clarify that the net credits listed in appendix 3 to the JP are separately being applied, and as applied, reduce the rates by those stated amounts per rate year. And if not, what are the impacts on the revenue requirements?

MS. MCLAUGHLAN: So if you look at appendix 3 -- sorry. I'm just trying to find which amount credit page.

A.L.J. KERSEY: No, that's okay. so in appendix 3 --

MS. MCLAUGHLAN: On page 1 of 2?

A.L.J. KERSEY: Yeah. That's correct.

And then the unbilled. See the net credits and net debits -- net -- I'm sorry. the net debit and the net credit amounts at the bottom of the these pages?

MS. MCLAUGHLAN: Like, the 62 million 882, for example, in rate year one in 2026?

A.L.J. KERSEY: Yes, exactly.

MS. MCLAUGHLAN: So that's different than the net unbilled. So what we do as part of each rate agreement is we'll go through, and we'll look at the reg assets and reg liabilities that we've accumulated during the past, you know -- the current case that we would have been working in, and we net those amounts together. And then we'll set up an amortization schedule that we agree on with staff. So that's what this particular appendix refers to.

A.L.J. COSTELLO: So how is -- how -- how does that affect the rates? Are they -- because according to the JP, they're being applied.

MS. MCLAUGHLAN: Yes.

A.L.J. COSTELLO: And so how -- how is it? Are they being applied to reduce rates or being applied -- how -- what's the effect from this?

MS. MCLAUGHLAN: So this particular year, they were -- there were more reg liabilities

than reg assets, which means they're reducing rates.

A.L.J. COSTELLO: Okay. So that --

MS. MCLAUGHLAN: So that -- that credit at the bottom in the parentheses are reductions to rates.

A.L.J. COSTELLO: Okay. And that's -- that's already -- that's included as part of the rate's structure already. It's not something that you're saying separately doing to mitigate rates?

MS. MCLAUGHLAN: That's correct. This is in normal course of business.

A.L.J. COSTELLO: Okay.

MS. MCLAUGHLAN: Okay.

A.L.J. KERSEY: Thank you. In the ConEd statement and support, page 9 refers to minor changes to the electric RDM. The JP at page 8 says the modifications are outlined in sections G.7, which refers to a seasonal rate study and appendix 4. Does this refer to the delivery revenues?

A.L.J. COSTELLO: So in appendix 4, if you look at appendix 4, what in appendix 4 deals with? Where can we -- what are the minor changes to the RDM? What specifically are you referring to in appendix 4? In other words, we couldn't tell what

the minor changes were. They -- so I wanted to find out if it's -- if the JP section G.7 refers to the seasonal rate study in appendix 4, whether it's the delivery revenues listed in appendix 4, page 1; is that what you were trying to?

MR. FLISHENBAUM: Sorry, Your Honor, can you point me to the page in the JP?

A.L.J. COSTELLO: Yes.

A.L.J. KERSEY: It's P -- let's see, it's page 8.

A.L.J. COSTELLO: So --

(Cross-talk)

A.L.J. COSTELLO: All right. Page --

A.L.J. KERSEY: Yeah, it's page 8.

A.L.J. COSTELLO: So it's page 8 of the Joint Proposal. It's the first paragraph under revenue decoupling mechanisms. So it says "The modifications recommended in this proposal as outlined in section G.7 and in appendix 4". So we're just trying to find out what the modifications, where we can find it because appendix 4 has -- it's multiple pages. And section G deals with --

A.L.J. KERSEY: The seasonal rates.

A.L.J. COSTELLO: -- seasonal rates.

MR. FLISHENBAUM: Your Honor, I believe it refers to the new RDM targets?

A.L.J. COSTELLO: So section G.7?

MR. FLISHENBAUM: Yes.

A.L.J. COSTELLO: G.7, Joint Proposal, looks like it says the seasonal rate study?

A.L.J. KERSEY: It's on page 55?

MS. SU: Your Honor, I believe that's the incorrect -- inaccurate cross-reference. So the appendix that he's talking about has the updated RDM targets. The reference should be the G.10, which has the tariff changes and G.10(d) talks about --

A.L.J. COSTELLO: Okay.

MS. SU: -- updating the RDM.

A.L.J. COSTELLO: This doesn't refer to G.10, so is that a correction --

MS. SU: Yes.

A.L.J. COSTELLO: -- that should be made to --

MS. SU: Yes. That should be -- the cross reference should be the G.10, not G.7.

A.L.J. COSTELLO: Okay. And if we look at appendix 4, can I -- we're just trying to --

MS. SU: Yeah.

A.L.J. COSTELLO: -- figure that out.

MS. SU: That has the updated RDM targets in it, believe.

A.L.J. COSTELLO: Let me just get that. Bear with me.

MS. SU: So if you go to G.10(d), it talks about the RDM update. And then appendix 4 has the updated RDM targets.

A.L.J. COSTELLO: Okay. So and which page on appendix 4 are you referring to here? So you're saying that every item on appendix 4 -- where are the minor modifications? That's what I'm trying to find out. Which --

MS. SU: It's just the updated RDM targets. So the numbers that are the new RDM targets are reflected in appendix 4.

A.L.J. COSTELLO: Updated. Okay. Okay. Thank you. Sorry, I'm a little dense sometimes.

MR. LANG: Your Honor, I would just note that if you turn to page 12 of the Joint Proposal, you're going to see the same issue for gas --

A.L.J. COSTELLO: Yes.

MR. LANG: And there's --

A.L.J. COSTELLO: There's -- we were going to get to that.

MR. LANG: Yeah. There's a typo there, too. I believe there is no page 8, so I think it should be page 6.

A.L.J. KERSEY: So next question, Mr. Lang.

MR. LANG: Okay. And you'll see in page 6 under letter N, it's the reverse (indiscernible) adjustment.

A.L.J. KERSEY: My apologies, just confirm for us again where the revision is with respect to the gas?

MS. SU: Page 8 should --

A.L.J. KERSEY: Yeah.

MS. SU: -- be page 6.

A.L.J. KERSEY: 6. Got it. Thank you. Okay. Okay.

For DPS staff, statement and support pages 18 to 19 and page 21 refers to the impact of the make-whole based on when the Commission decides these rate cases. Do the percentage increases refer to the total bill? For example, I'm sorry, for

example, on page 18 of the statement in support, does the reference to the 3.9 percent impact if rates go into effect as of February 1st, 2026, mean the total bill impact for the make-whole would bring the total bill percentage increase from 2.8 percent to 3.9 percent?

MR. YODASHKIN: Yes, that is correct.

MR. LANG: I'm sorry, but I don't think that answer is correct. The 2.8 percent isn't across the board for all customers, and this 3.9 is specific to SC-1.

UNIDENTIFIED SPEAKER: Sorry.

A.L.J. COSTELLO: So it's not on the total bill. Total --

MR. LANG: No --

A.L.J. KERSEY: -- total bill for SC-1?

MR. YODASHKIN: Yeah, it's the total bill for -- that the customer stated in the section of the statement and support that we're talking about.

A.L.J. COSTELLO: Okay.

MR. YODASHKIN: So it's the total bill for a typical SC-1 residential customer as stated.

MR. LANG: Right. But the 2.8 percent total bill impact wasn't across the board total. It wasn't -- that wasn't a class-by-class percentage. The class-by-class percentages were different.

A.L.J. COSTELLO: So I believe I understand, and thank you for the clarity.

MR. YODASHKIN: Yeah. I'm sorry I mis -- the 2.8 which is not stated here was not something -- that's --

A.L.J. COSTELLO: Right.

MR. YODASHKIN: -- the 3.9 should be -- is referring to a typical SC-1 residential electric customer. The 2.8 that you said earlier is not, that's an across-the-board impact that's different from what is stated here for the typical customer specifically.

A.L.J. COSTELLO: Okay. Thank you. Yeah.

And let me just ask, is either the Company or DPS staff, do they have available the impact to the delivery portion of the bill for those customers?

MR. YODASHKIN: We did make those calculations, so those could be made available.

A.L.J. COSTELLO: Yes. Would you provide the documents to all the parties, whatever it is, the information of parties and us in an email? And we'll deal with them as far as a ruling if we're going to have them admitted into evidence.

MR. YODASHKIN: Okay. That's something that staff can do. I don't want to speak for the Company in terms of --

A.L.J. COSTELLO: No, that's fine. We don't need both. The staff would be fine. So again, email it us and to all parties.

Is that okay, Mr. Kramer?

MR. KRAMER: Yes. They'll send it to me first, and we'll get it --

A.L.J. COSTELLO: Right.

MR. KRAMER: -- back to you. Yes.

A.L.J. COSTELLO: Okay.

MR. KRAMER: Thank you, Your Honor.

A.L.J. KERSEY: So in section, and again, this is the -- in the statement in support regarding additional capital reporting, and referring specifically to page 39 --

MR. LANG: Your Honor, DPS or the Company?

A.L.J. KERSEY: This is -- it's directed to DPS.

A.L.J. COSTELLO: Okay. On page 39, the second sentence of the first full paragraph, and let me just -- bear with me one second. And this is just to see if it needs to be corrected so.

So are you on page 39, whoever's -- okay. So if you look at the first full paragraph, and then the second sentence starting with "The budget for projects within the IT portfolio"; if you go down, there's a "As discussed in section FB", and I just want to clarify that should be F.1.B? And -- because I didn't see an update. I believe it is F.1.B, I just want to clarify.

So now, I'm sorry, F.1.B in the Joint Proposal, right? If you look at F.1.B in the Joint Proposal, I believe that's the reference. And that's page 66, starting on page 66 of the Joint Proposal. I don't think there's a subdivision FB. I believe the reference should be the subdivision F.1.B, and I just wanted to clarify that.

A.L.J. KERSEY: Relating, I think to productivity; is that correct?

A.L.J. COSTELLO: Yeah. Yeah. And --

A.L.J. KERSEY: I think --

A.L.J. COSTELLO: -- Mr. Kramer --

A.L.J. KERSEY: -- page 46.

A.L.J. COSTELLO: -- I'll -- if you're --

A.L.J. KERSEY: Page 46.

A.L.J. COSTELLO: -- able to answer the question, we'll -- and if you're not, that's fine too.

MR. KRAMER: I believe you're absolutely right, but I want to make sure these folks do as well because --

A.L.J. COSTELLO: Do you understand -- do I -- should I point something out to you or that you need me to point out?

MR. ROSZKO: So Daniel Roszko from staff. We get the concern. It's just the two folks that would have worked on the common IT stuff are not here, Brian Fisher and Andrew Carpenter, so we can't definitely say.

A.L.J. COSTELLO: Okay. All right. But if you notice the reference --

MR. ROSZKO: Yeah.

A.L.J. COSTELLO: -- based in context

and that I understand. Since the statement in support, I'm sorry, page 39 of your statement in support refers to "Supports efficiency productivity as discussed in section FB of the JP". My reading, there is no subdivision FB --

UNIDENTIFIED SPEAKER: But there is --

A.L.J. COSTELLO: -- and productivity is addressed in subdivision F.1.B, F1B.

MR. ALEXIS: Your Honor, as Mr. Roszko mentioned, staff witnesses who worked on this section of the --

A.L.J. COSTELLO: Oh, okay.

MR. ALEXIS: -- are not here.

MR. KRAMER: Your Honor, but --

A.L.J. COSTELLO: We'll --

MR. KRAMER: -- you're correct.

A.L.J. COSTELLO: Yeah.

MR. KRAMER: You're correct.

A.L.J. COSTELLO: Okay. So I just -- then we'll just note that for the record so.

MR. KRAMER: Thank you.

A.L.J. COSTELLO: And then it's one other question.

MR. KRAMER: Is there a concern that

it's not correct?

MR. ALEXIS: So we -- yes. And we believe that this section is referring to Section F8 instead of FB. So F --

MR. KRAMER: F8?

MR. ALEXIS: Yeah. F --

MR. KRAMER: The IT reporting --

MR. ALEXIS: On page 71.

MR. KRAMER: And it starts --

MR. ALEXIS: -- of staff statement --

MR. KRAMER: -- here is --

MR. ALEXIS: -- in support.

MR. KRAMER: -- is that --

A.L.J. COSTELLO: Page 71.

MR. ALEXIS: Page 71 of staff --

MR. KRAMER: Yes.

MR. ALEXIS: -- statement --

MR. KRAMER: Yeah.

MR. ALEXIS: -- in support.

MR. KRAMER: I see your point now. Okay. So --

A.L.J. COSTELLO: Well, Mr. Kramer, I just ask you to go back and confirm that --

MR. KRAMER: We'll confirm it.

A.L.J. COSTELLO: -- send me an --

MR. KRAMER: Yes.

A.L.J. COSTELLO: -- email with the --

MR. KRAMER: Yeah.

A.L.J. COSTELLO: -- corrected version of the page.

There's also -- okay. Also for clarification purposes, this is still on page 39 of the Joint Proposal? And it's the following sentence, which says "The JP also includes the modifications of the BEUP Project recommended by New York City"? And then it references section Joint Proposal in a footnote 124, Joint Proposal section I3, which deals with the gas infrastructure removal or replacement. So what I would just ask if one of the witnesses can specify, is that -- if you're aware --

And Mr. Lang, you could also tell us if you're aware that if the information of the -- if the modifications recommended by New York City are all of those modifications in your testimony -- pre-filed testimony?

MR. WHITE: This is Mr. White. Yes, the modifications are in our testimony. I do think the reference to section I3 is incorrect in the

footnote (indiscernible) correct.

A.L.J. COSTELLO: And I would just ask, Mr. Kramer, if you, again, with that, if you can correct the reference, and we're aware.

Are all the modifications contained in your testimony, the modifications that are referenced, referred to, or tend to be referred to in the Joint Proposal? Mr. Lane, you're aware?

MR. LANG: I'm sorry, could you repeat?

A.L.J. COSTELLO: All of the modifications that are recommended in your testimony, have all of those modifications, to your awareness, been adopted as part of the Joint Proposal?

MS. TRINSEY: Well, yes, they're -- Your Honor, there isn't a description of the project in the Joint Proposal, but it's our understanding that that project will be going forward. And it is listed in appendix 9 and, yeah, 9 schedule 1 as a project so --

A.L.J. COSTELLO: And those --

MS. TRINSEY: -- yeah.

A.L.J. COSTELLO: -- that includes your --

MS. TRINSEY: Yeah.

A.L.J. COSTELLO: -- modifications?

MS. TRINSEY: I believe so. Yeah.

A.L.J. COSTELLO: Appendix 9?

MR. KRAMER: Your Honor, when you have a moment?

A.L.J. COSTELLO: Go ahead, Mr. Kramer.

MR. KRAMER: Okay. Thank you. Just a --

MS. TRINSEY: Excuse me, your Honor, appendix 11, not 9.

MR. KRAMER: Just need a little help on the correction. There was -- I think there was a footnote on I3? I'm not sure which footnote, or maybe I've got that mistaken.

A.L.J. COSTELLO: So it's -- yes, it's footnote 124 on page 39.

MR. KRAMER: 124. Thank you, Your Honor.

A.L.J. COSTELLO: And if you could just, when you update, if there's a specific provision that you can point to, but we also know where it's available on.

MR. CULLY: Your Honor?

A.L.J. COSTELLO: Yes.

MR. CULLY: I think we can provide that correction right now.

A.L.J. COSTELLO: Okay. Great.

MR. CULLY: It should be section J3 --

A.L.J. COSTELLO: J --

MR. CULLY: -- which includes the Customer Energy Solutions Projects. And J3 does refer to the building energy usage platform -- or B.

A.L.J. COSTELLO: All right. Thank you.

MR. CULLY: Just one other thing --

A.L.J. COSTELLO: Sure.

MR. CULLY: -- we do have a section, beginning on page 106, that describes that project and the testimonial positions of the various parties on it in our statement in support that's a little -- a little more fleshed out.

A.L.J. COSTELLO: Yeah. I just -- I was just making -- I just wanted to make sure that we were aware that it could have been some of the modifications, all of the modifications, just as long as we can tell what it is.

A.L.J. KERSEY: One final question in the statement in support page 69 it discusses the electric and gas depreciation reserve deficiency and it states that "Other than the electric amortization established in the current rate plan of 3.8 million for the Hudson Avenue Station and for the purposes of reducing the incremental revenue requirements, there will be no other reserve deficiency amortization for either electric or gas for the duration of the three-year rate plan."

What, if any, impact will that have on Con Edison's future rate plans?

A.L.J. COSTELLO: And that would be the Con Edison's --

A.L.J. KERSEY: Yes.

A.L.J. COSTELLO: -- does it have any effect, or is it just simply you're just going to be amortizing it over a different period of time?

MS. MCLAUGHLAN: Right. So it'll extend out the time to recover the cost of that plan.

A.L.J. COSTELLO: Okay. So you're just basically putting it on hold, and it will --

MS. MCLAUGHLAN: Correct.

A.L.J. COSTELLO: -- probably maybe --

MS. MCLAUGHLAN: We'll have a bigger balance to -- we're kind of kicking the can down the road a little bit --

A.L.J. COSTELLO: Okay.

MS. MCLAUGHLAN: -- if you will.

A.L.J. COSTELLO: So there'll be an increase in the balance that has to be amortized?

MS. MCLAUGHLAN: So not necessarily direct increase, but we're not decreasing it for these three years --

A.L.J. COSTELLO: Right.

MS. MCLAUGHLAN: -- so it's not going up, but it's not going down either. So we'll --

A.L.J. COSTELLO: So actually --

MS. MCLAUGHLAN: -- eventually need to --

A.L.J. COSTELLO: -- just could be --

MS. MCLAUGHLAN: -- recover it.

A.L.J. COSTELLO: Right. Okay.

MS. MCLAUGHLAN: Correct.

A.L.J. COSTELLO: Got it. Thank you.

MR. SHANG: Excuse me, Your Honor. Jerry Shang, Staff Accounting Panel. I want to add a little clarification on your earlier question on

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unbilled revenue adjustment. You asked about the -- how it impacted really in the revenue requirement, right? So if you turn page -- to page -- start at SIS, page 73, we talk about this issue too. Echoing Company's accounting panel witness, Ms. Kelly's point that in the 2008 case, Commission kind of adopt authorized Company to accrue this unbilled revenue.

Before this order, the Company accounted this revenue on the cash basis, not on the accrual basis. But after this order, Company's authorized to accrue the revenue. So that basically create additional revenue, as you can see on page 74, that based on the accounting -- on the GAAP requirement, the Company accrued this revenue.

But the -- I mean, more revenue means less rate increase. So that's a benefit to customer. That's why the Company has to book a regulatory liability. But that regular liability haven't been passed back to customer. It's a rate mitigator.

But in this rate case, to reduce the rate for customer, the Company proposed to use this regulatory liability. That's why if you turn to the JP appendix, appendix 1, page 4 of 11, that's the electric side of the amount, how is it reflected into

revenue requirement in rates, right, you see there's a line in the middle, "Net unbilled revenue electric"; there's an annual rate allowance of $83 million dollars. So each year, over the three years, for electric, there's a pass-back of $83 million dollars in other operating revenue.

On the other side of the coin is that because this is just a GAAP accrual, the Company didn't really collect the money, it's the revenue that it's a regulatory liability, but in order to make them whole, because they now here pass the cash to customer, in order to make them whole in cash, for the cash purpose, the Company requests that the cash effect of this pass through also. Because they haven't collected them in rates, they now pass back. So that creates a regulatory asset offsetting as we explained in page 74.

A.L.J. COSTELLO: Yeah. That's the part that I didn't get just from reading.

MR. SHANG: Yes.

A.L.J. COSTELLO: I didn't quite understand it. So I -- that's -

MR. SHANG: So now --

A.L.J. COSTELLO: -- I appreciate

(Cross-talk) --

MR. SHANG: -- the Company passed the cash. It's reflected as one of the offsetting regulatory assets in the rate base.

If you turn to page -- it's exhibit -- same for electric, appendix 1, page 9 of 11, there's a line in the middle called "Net deferral or credit". So the reg. assets, the $83 million dollars each year, the reg. assets is embedded in that total amount of $375 million annually. I mean, for Rate Year 1, 375. That's the net of the reg. assets and credit. So the 83 is a piece of the --

A.L.J. COSTELLO: That amount.

MR. SHANG: -- amount. That's how the whole picture, the whole rate-making revenue requirement flows.

A.L.J. KERSEY: Thank you.

A.L.J. COSTELLO: Thank you very much.

A.L.J. KERSEY: Thank you.

Any of the parties want to have any issues with respect to anything that we raised, any -- anyone want to say anything with respect to the ALJ questions?

MR. KONECNI: Nothing from the

Company.

MR. KRAMER: Nothing here, Your Honor.

A.L.J. KERSEY: Okay. Hearing none, at this time, I want to thank and excuse the witnesses. And we will discuss further procedures. We're going to speak --

So the witnesses are excused.

Mr. Menton, just before we take a break, let me ask, is Mr. Ellenbogen here to be --

MR. MENTON: Oh, he departed.

A.L.J. KERSEY: He left for the day?

MR. MENTON: Yes. I'm sorry. Did somebody want to redirect him?

A.L.J. KERSEY: No. I -- no.

A.L.J. COSTELLO: No. We had indicated that we would address that additional documents. We tried to get them in through whatever documents, but cross was fine. We were going to give you an opportunity.

MR. MENTON: I think he used one of them. And I think --

A.L.J. COSTELLO: Okay. That's --

MR. MENTON: -- he gave you copies.

A.L.J. COSTELLO: -- that's -- okay.

No. That's fine.

MR. MENTON: Okay?

A.L.J. COSTELLO: So that's -- wo we're done with --

MR. MENTON: I think so.

A.L.J. KERSEY: With the individual Intervenors, then.

Cross-examination is done, and --

MR. MENTON: Well, cross-examination is done.

A.L.J. KERSEY: Yes.

MR. MENTON: I mean, I do want to --

A.L.J. KERSEY: Yes.

MR. MENTON: -- address, I'm sure you will, the subject of whether there's going to be a post-hearing --

A.L.J. KERSEY: Hearing date --

MR. MENTON: -- submission of some kind?

A.L.J. KERSEY: -- we'll do that. Yeah. So we're going to take a break until 10 minutes, to 4:10, and then we're going to go back on the record and discuss post-hearing briefs and closing matters. Thank you.

(Recess from 3:59 p.m. until 4:15 p.m.)

A.L.J. KERSEY: We are on the record. Just a couple housekeeping issues.

Mr. Menton?

MR. MENTON: Yes, ma'am.

A.L.J. KERSEY: With respect to the affirmation of Mr. Ellenbogen --

MR. MENTON: Yes.

A.L.J. KERSEY: -- we will request -- we are not going to accept this. We're going to request, though, that you provide a new one by close of business Friday.

MR. MENTON: Um-hum.

A.L.J. KERSEY: With respect to paragraph number 2, the way it's drafted, it says "The facts stated in the statement are true to the best of my knowledge, information, and belief"; we're looking for the statement to provide that Mr. Ellenbogen adopts the factual statements in the statement in opposition --

MR. MENTON: Um-hum.

A.L.J. KERSEY: -- as his sworn testimony in the proceeding.

MR. MENTON: Okay.

A.L.J. KERSEY: If that's something that he's willing to do. And I do -- and then if you could just take out the rest of it. We don't need reference to the exhibits.

MR. MENTON: Oh. So just that one line?

A.L.J. KERSEY: Yup. Yup.

MR. MENTON: I think we can do that.

A.L.J. KERSEY: Okay.

MR. MENTON: If I provided -- do you need hard copies, or this is something I could send in by email?

A.L.J. KERSEY: This can be file --

A.L.J. COSTELLO: Email -- no, it's email because we're going to have to put it in by ruling and (indiscernible).

A.L.J. KERSEY: Email will be fine because we'll put it in by ruling. That's right. Email --

A.L.J. COSTELLO: So to all -- yeah --

A.L.J. KERSEY: But email --

A.L.J. COSTELLO: -- email to --

A.L.J. KERSEY: -- to all parties,

please.

A.L.J. COSTELLO: Email to the ALJs --

A.L.J. KERSEY: Yes.

A.L.J. COSTELLO: -- and, yeah, copy to all parties.

A.L.J. KERSEY: Now, I do want to note one thing for the record, though, because when we get that affirmation, as we look at it to the extent we look at it -- and we put in the ruling and evidence, it --

A.L.J. COSTELLO: There's one part --

A.L.J. KERSEY: -- we will --

A.L.J. COSTELLO: -- we have to --

A.L.J. KERSEY: -- add it to the to the evidence. However, we are doing this on the record right now. We are striking on page 23 of such statement of the Independent Intervenors Roger Caiazza, Richard Ellenbogen, and Francis Menton in opposition to the Joint Proposal filed on November 26, 2025, the following words, "There is a significant inconsistency between these numbers and DPS estimates in the confidential JP settlement documentation that the Independent Intervenors have been unable to reconcile. The main issue and the

likely reason for the discrepancy is that" --

Those words will be stricken as those -- that statement goes to settlement, things that came up during settlement --

MR. MENTON: Okay.

A.L.J. KERSEY: -- and that is --

MR. MENTON: Okay. We --

A.L.J. KERSEY: -- not permissible.

MR. MENTON: -- we understand that. We were trying not to actually disclose confidential information, but --

A.L.J. COSTELLO: But you're saying that -- it's in -- so kind of -- we're just -- I think your argument flows with --

MR. MENTON: I think it stands --

A.L.J. COSTELLO: -- strike --

MR. MENTON: -- on its own --

A.L.J. COSTELLO: Yeah.

MR. MENTON: -- without that.

A.L.J. KERSEY: Okay. Okay. Please be reminded that the ALJ interrogatories and document request deadline for response is December 10th. We will accept post-hearing briefs with respect to issues raised at the evidentiary hearing and to reply

to the statements in support or opposition to the Joint Proposal, not to any new material, but to those issues. We are wondering, we want to --

A.L.J. COSTELLO: Yeah, it's new issues raised that came up and that need to be addressed in the hearing. Those can be briefed.

And I'm sorry, I didn't mean to interrupt.

A.L.J. KERSEY: No, that's okay.

Does anyone have any questions on that, what's acceptable?

A.L.J. COSTELLO: Yes, and the reply --

MR. KRAMER: So yeah, just so I understand --

A.L.J. COSTELLO: Yeah, and the reply to -- as far as -- I was trying to just say it's not every issue that was raised at the hearing. It's specifically things that were new, that are on the record, they're new, they were allowed, the questions were allowed, were answered. That type of stuff is fair game for the post-hearing brief as is your reply to the statements in support or opposition.

MR. KRAMER: Thank you, Your Honor.

A.L.J. KERSEY: And we want to ask, we obviously are on a limited type -- a time frame here, but we are going to ask if anyone has thoughts on when they would like those due.

MR. KRAMER: We would --

A.L.J. KERSEY: They may or may not be granted, but we're going to throw that out at the moment.

MR. KRAMER: -- we would say December 12th.

A.L.J. KERSEY: Okay. And that's from the Company.

DPS staff? Counsel for ConEd said the 12th.

MR. KONECNI: Yes. I think the 12th is great under the circumstances, yes. Thank you.

A.L.J. KERSEY: Okay. Mr. Menton, any thoughts as to 12th?

MR. MENTON: Well, we are unpaid, retired people, but I think --

A.L.J. KERSEY: 12th would work --

MR. MENTON: -- we'll do it.

A.L.J. KERSEY: -- for you?

MR. MENTON: We'll do it.

A.L.J. KERSEY: Mr. Lang?

MR. LANG: No objection, Your Honor.

A.L.J. KERSEY: Okay. Mr. Dichter and Mr. Musich and Mr. --

MR. DIAMANTOPOULOS: Your Honor --

A.L.J. KERSEY: -- Diamantopoulos --

MR. DIAMANTOPOULOS: -- quick question, when can we expect a transcript?

A.L.J. COSTELLO: Okay. With the court reporting service we have, because it's an evidentiary hearing, we have a two-business day turnaround.

Once we get the transcript, however, we have to -- it takes a day or two for us to -- we'll review it, and then it's reviewing it and having the corrections, if any, made by the transcription service. So it's not going to be within two days, but hopefully shorter than a week. We'll get it out as soon as we can.

MR. DIAMANTOPOULOS: So will we have it to review for the brief? I obviously, want to make some quotes from what people said.

A.L.J. COSTELLO: Well, we're -- we'll get it out as soon as we can. All I can tell you is

we're supposed to get it within two business days. We review it for any type of errors. It has to go back for the error correction, and then we can get it out from that point. So I really can't tell you exactly what day it will be.

A.L.J. KERSEY: So any --

MR. DIAMANTOPOULOS: Because a week --

A.L.J. KERSEY: -- other thoughts?

MR. DIAMANTOPOULOS: -- week from Friday --

A.L.J. KERSEY: Right now we're --

A.L.J. COSTELLO: But I can't tell you. I just don't know.

A.L.J. KERSEY: So right now we're hearing a bit of a consensus on December 12th. So we are setting the acceptance of post-hearing briefs to be served and filed by Friday, December 12th close of business.

As far as page numbers --

A.L.J. COSTELLO: I'm sorry to interrupt. Also what we can do so you have the transcript, if we get it back within two business days, we can send you what we have with the understanding that there may be errors that we're

going to correct. And we're only going to correct errors that were actually, like, misspellings, if witnesses are not identified correctly.

MR. DIAMANTOPOULOS: Sure.

A.L.J. COSTELLO: So we can get you those transcripts, but there may be corrections to them that are made subsequent to it. And that will give you --

MR. DIAMANTOPOULOS: Understood.

A.L.J. COSTELLO: Okay?

MR. DIAMANTOPOULOS: Thank --

A.L.J. COSTELLO: Is that -- is everybody --

MR. DIAMANTOPOULOS: Much appreciated.

A.L.J. COSTELLO: -- okay with if I send those out that way? Okay?

MR. DIAMANTOPOULOS: Yes.

UNIDENTIFIED SPEAKER: Yes.

A.L.J. COSTELLO: All right. Good.

A.L.J. KERSEY: Thank you.

As opposed -- I mean, with respect to page limits, does anyone have any thoughts they would like to bring up to us about that?

I'll ask Company counsel first.

MR. KONECNI: We propose a ten-page limit.

A.L.J. KERSEY: Okay. DPS staff?

MR. KRAMER: Yeah, I think ten is probably sufficient, Your Honor, yes.

A.L.J. KERSEY: Mr. Minton?

MR. MENTON: I appreciate not having to write more.

A.L.J. KERSEY: Okay. Mr. Lang?

MR. LANG: Fine with us.

A.L.J. KERSEY: Mr. Musich, Mr. Dichter, Mr. Diamantopoulos?

MR. DIAMANTOPOULOS: Ten is fine.

MR. DICHTER: Ten is fine, Your Honor.

A.L.J. KERSEY: Mr. Musich?

MR. MUSICH: That's fine.

A.L.J. KERSEY: Okay. So we are limiting the post-hearing brief to ten pages.

Are there any other issues that the parties wish to address at this time?

MR. KONECNI: Not from the Company.

MR. LANG: So Your Honor, it's 10 pages at a 6 font.

A.L.J. KERSEY: 10 pages at a 24 font.

Wow. Are there any other issues?

I think, Mr. Menton, you had a question.

MR. MENTON: Yeah, I just want to check if I can make sure I got the exhibit numbers right for things we're going to refer to. But can I check that with the court reporter or you? It doesn't have to be on the record, I don't think. I just want to be sure --

A.L.J. COSTELLO: We can do that afterwards.

MR. MENTON: We can do that afterwards.

MR. MENTON: Okay.

A.L.J. KERSEY: Okay. So if there are no other issues the parties wish to address, thank you very much. We are concluded and off the record. We are adjourned.

(Proceedings concluded)

STATE OF NEW YORK

I, ILDIKO NYARI, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 300, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 5th day of

December, 2025.

ILDIKO NYARI, Reporter